

PHARISAIISM

ITS AIM AND ITS METHOD

BY

R. TRAVERS HERFORD, B.A.

WILLIAMS & NORGATE

14 HENRIETTA STREET, COVENT GARDEN, LONDON

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R. TRAVERS HERFORD, B.A.

AUTHOR OF
"CHRISTIANITY IN TALMUD AND MIDRASH"

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PREFACE

Most of the contents of the following pages were given as lectures in Manchester College, Oxford, in the autumn of 1911. I have thought it better to confine myself within the limits of what I then said, rather than to expand and recast the lectures into a complete monograph on the Pharisees. My aim throughout has been to present and make clear the Pharisaic conception of religion, the point of view from which they regarded it, and the methods by which they dealt with it. It is far more important that the reader, especially the Christian reader, should understand the meaning of Pharisaism than that he should be presented with a survey of all the details, theological, ethical, historical, and other, included in the wide field of the Pharisaic literature. I am not without hope that a small book may be read where a large one would be passed by, and that the ends of justice—in this case justice to the Pharisees—may thereby be the better attained. I have not sought to write a panegyric on them, but, so far as may be possible for one who is not a Jew, to present their case from their own standpoint, and not, as is so often done, as a mere foil to the Christian religion. This is one reason why I have not referred to the writings of other scholars, except in the one case of Weber. He is typical of them all in their attitude towards Rabbinical Judaism. Even the fine work of Oesterley and Box, *The Religion and Worship of the Synagogue*, though it is written in a spirit of courtesy, and with a sincere desire to understand the Rabbinical position and to recognise whatever is good in it, yet judges it by the standard of the Christian religion. Something was still left to be done, by way of treating Pharisaism fairly, that is, without either contempt or condescension; and that "something" I have tried to do—whether successfully or not, the candid reader will judge.

In conclusion, I tender my thanks to the Hibbert Trustees, to whom I owe the opportunity of delivering the lectures, and to the authorities of Manchester College, Oxford, for the invitation to do so.

R. TRAVERS HEREFORD.

STAND, MANCHESTER,

April 1912

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PHARISAISM

CHAPTER I

HISTORICAL SKETCH

The subject to which in the following pages I shall invite the reader's attention is one which may seem to promise but little of living interest, and still less of religious worth. The Pharisees are presented in the New Testament in no favourable light; and the average Christian has not much further acquaintance with them. Yet, though the name be now disused, the principles of Pharisaism have been maintained down to the present day; and it is these, more than anything else, which have kept Judaism as a living religion. That Pharisaism should wear an unpleasing aspect in the New Testament is not surprising; for it was not in the nature of things that the adherents of the old religion should understand or be understood by those of the new, in the times when they parted company. And there has not been much attempt at mutual understanding in all the centuries since. Christianity could by no possibility have remained in union with Pharisaism; what Jesus began, and what Paul completed, was a severance as inevitable as it was painful. But it was painful because it was the dividing, not of the living from the dead, but of the living from the living. The Judaism of the Pharisees, from which Christianity tore itself away, was no obsolete formalism, but a religion having the power to satisfy the spiritual wants of those who were faithful to it. The form in which its religious ideas were expressed is peculiar, and to Christians by no means attractive. While, therefore, the Christian has usually but little inclination to inquire into the real significance of Pharisaism, and but scanty means of informing himself even if he were so inclined, the fact remains that such knowledge is

necessary if he would rightly understand the attitude of the New Testament to the older religion.

Pharisaism is usually judged from the outside, as seen by not very friendly eyes; and, even of those Christians who have studied the Pharisaic literature and who thus know it to some extent from the inside, there are few who seem able to imagine what it must have been to those whose real religion it was. No one but a Jew, of whom it may be said that the Talmud runs in his blood, can fully realise the spiritual meaning of Pharisaism; but sympathy can show even to a Christian much of that meaning, and it is on the strength of that sympathy that I rest my hope of carrying out my present task. Briefly, I wish to show what Pharisaism meant to the Pharisees themselves, as a religion having a claim to be judged on its own merits, and not by comparison with any other. The knowledge thus obtained will throw light upon many passages in the New Testament; but it will be chiefly valuable if it helps the reader to realise that the Pharisees were "men of like passions with us," men with souls to be saved, who cared a great deal for the things of the higher life, men who "feared God and worked righteousness," and who pondered deeply upon spiritual problems, though they did not solve them on Christian lines, nor state the answers in Christian terms.

It ought not to be impossible to do this in compass of a small book; and I hope that, when I have done, I shall have left with the reader some clear idea of who the Pharisees were and what they stood for, and a more just appreciation of them than is indicated by the word "hypocrites." I can at least say how they appear to me, as the result of exploring their literature, which has been to me the fascinating study of thirty years.

In this first chapter I shall survey the history of the development of Pharisaism, from its source in Ezra to its final literary embodiment in the Talmud. The following chapter will deal with the theory of Torah, and Pharisaism as the system intended to put that theory into practice. Then I shall consider Pharisaism in reference, firstly, to Jesus, and, secondly, to Paul. Some general points of Pharisaic theology will be dealt with in the fifth chapter; and in the concluding one I shall try to present Pharisaism as a spiritual religion.

I proceed now to the historical survey of the development of Pharisaism.

A great Rabbi, Resh Lakish, who lived in the third century A.D., uttered the saying that, "when the Torah was forgotten, Ezra came up from Babylon and re-established it; when it was forgotten again, Hillel came up from Babylon and re-established it; and when it was forgotten again, R. Hija and his sons came up from Babylon and re-established it" (b. Succ. 20^a). The meaning of that remark is that *Pharisaism* traced its origin back to Ezra; for it was the Pharisaic tradition which counted Hillel, and R. Hija, and the Talmudic Rabbis generally amongst its exponents. And while no one would say that Ezra was a Pharisee, it is true that he was the spiritual ancestor of the Pharisees more than of any other element in post-exilic Judaism. In the time of Christ, Judaism was represented by Pharisees, Sadducees, Essenes, Apocalyptists, Hellenists; and all could claim a share in the inheritance of Israel. But the Sadducees had little reason to set up a descent from Ezra; and what was peculiar to Apocalyptists and Hellenists (two terms which of course overlap) was entirely unconnected with him. Pharisaism alone was the result of his work; and Pharisaism alone survived, to carry down through the centuries the spiritual treasure of Israel. Moreover, of all the elements in Judaism, Pharisaism is the one which was least affected by foreign influences. What it borrowed, from Greece or Rome, from Persia or Egypt, it fused into its own mould, or merely treated as unimportant curiosities; it never wavered for a moment in its allegiance to its own ground principle, never swerved from the line of development of which Ezra had marked the beginning, and for which he might be said to have stated the formula. The Talmud shows the traces of contact with Greek language and Roman law, gives glimpses of men of many nations, from Babylonians to Goths and even Germans (j. Jom. 45^b). But, from one end to the other, it is the embodiment of a principle which Ezra was the first to introduce; and like a huge tree it has all grown from the seed which he planted. If Ezra could have looked forward and seen what the Talmud became, the vision would have filled him with delight; also, with deep thankfulness to God that he had been the means of giving to Israel what Israel needed.

I will reserve for the next chapter the explanation of the theory of Torah, which is the key to the whole system of Pharisaism in general, and to the work of Ezra in particular. But without some reference to that theory I cannot show what it was that Ezra did, and that the Pharisees carried on. If

some of the statements I make appear to be unfounded or improbable, I ask the reader to suspend his judgment on them till I come to the theory which, as I believe, justifies them.

Ezra was the first who seriously took in hand the problem of the future of Israel after the great convulsion of the Exile. For nearly a century after the time, 536 B.C., when liberty to return had been given, the small band of Jews in and around Jerusalem had maintained with difficulty their place as a nation and the religion of their fathers. Subjects of the Persian king, like their neighbours, they were exposed to dangers, both political and religious, against which they were ill able to guard. They had the Temple as the central point of their religion; but the Temple was no protection against the influence of contact with "the peoples round about," nor did the performance of its ritual give any lead in the direction of a new religious development. Till Ezra came, the Jews did hardly more than mark time, if indeed they were not gradually losing ground. If Ezra had not come, it is conceivable, and indeed highly probable, that Judaism would have disappeared altogether.

The significance of the work of Ezra is this, that he stopped the process by which the religious vitality of Israel was draining away, and he gave a lead, opened a new line of development, turned the thought and energy of his people into a direction where progress was possible almost without end.

His reformation was carried out with a severity which would have been impossible unless he had had the support of Nehemiah, armed as governor with the authority of the Persian king. And the success he achieved was only won in the face of bitter opposition, and at a cost of domestic suffering and heart-burning which still makes one shudder as one reads of it in the book which bears his name. It was a case in which "diseases desperate grown, by desperate appliance are relieved." Ezra had it clear in his mind that if Israel was to survive at all, it must resolutely cut itself off from all possible contact with what was not Israel. It must become a closed corporation, a community occupying not merely a political but much more a religious and social enclosure of its own, within which it could work out its own salvation. In the catastrophe of the Exile, Ezra read the lesson that indiscriminate association with neighbouring peoples had corrupted its religious life, and brought upon a faithless nation a deserved punishment. If

now Israel let itself relapse into the old way of intercourse and alliance with non-Israelites, the result would be the final extinction of Israel.

Such a prospect might have been tolerable if there had been nothing left for Israel to do. Some of those who opposed Ezra may well have thought that there was nothing which could demand so hard a sacrifice as that which he would force upon them. Why should they not live in peace with their neighbours, and do as they did? And why could they not keep their old religion, without making it a source of enmity abroad, and a cause of grief at home?

But Ezra had a clear perception of what there was for Israel to do. That religion, which in former times had been mainly the collective expression of the nation's relation to God, must now be realised as the personal concern of each individual. What the prophets had taught about God had so far produced no corresponding result in personal piety and conscious service. What had been declared by Moses as the will of God had been by no means fully taken to heart and wrought into the acts of daily life. There was divine teaching in abundance, and had been for centuries; now, the task must be seriously taken in hand of applying it, so that each individual might feel that he had a responsibility for doing the will of God, and might know what that will was. The great declaration: "Hear, O Israel, the Lord thy God the Lord is one," was immediately followed by: "and thou shalt love the Lord thy God with all thy heart, and with all thy soul, and with all thy might." If Israel now asked how he was to do this, Ezra's answer was that God had taught him in the Torah, contained in the five books of Moses. Henceforth let Israel "observe to do all that is written in this book of the Torah." That solemn promulgation of the Torah, described in the book of Nehemiah, is the central point of the reformation of Ezra, whether it were only the Priestly Code which was then introduced or whether it were the Pentateuch substantially complete. What Ezra did was to set up a written authority as the guide of personal conduct for each individual Jew. His demand was for the acceptance of this authority on the part of the nation, and a determined loyalty in carrying out the commands of God which would shrink from no sacrifice. It was, no doubt, the severity of this demand which for thirteen years delayed its acceptance; and the opposition was only crushed by the strong hand of Nehemiah. Whatever one may think of the method, the result was that Ezra gathered to him those who were prepared to do most and to

sacrifice most for the sake of their religion; he had weeded out the weak and the faint-hearted, the indifferent and the lazy, and kept those who could be fanatics, heroes, martyrs, if the occasion should arise.

The Jewish community having accepted the policy of Ezra, was in this position:—it was separated by its own act from all avoidable contact with those whom we may now call Gentiles; and, within the enclosure thus as it were railed off, it was free to work out its national life on the lines of the religion of Torah, free also to interpret that religion of Torah in such ways as it might see fit. Ezra had secured for it a field of action and given to it the task it should perform there. If I say that Ezra was the second founder of the religion of Israel, I do not mean to imply that everything in the later Judaism owed its origin to him, still less that what survived from the pre-exilic Judaism was only what he endorsed and gave out again. The older religion had come down from a far-distant past; the ancient writings, prophetic, historical, legal, were witnesses of God's former dealings with His people; they still had the memory, as they renewed after the Exile the practice, of the ancient customs and religious rites. And the later Judaism could, and did, develop in several directions, taking up, as it were, suggestions from the older religion, and not confining itself to the line which Ezra more especially marked out. But the work of Ezra is practically the only channel by which whatever survived from the ancient religion passed into the later, and became the Judaism which is properly so called.

In some of its representatives later Judaism departed widely from the principles of Ezra, and Christianity may be said to be in part a protest against and a revolt from those principles; but nevertheless, if it had not been for Ezra there would have been no Judaism sufficiently alive to protest, or sufficiently vigorous to produce revolt. Ezra saved the life of the Jewish people, none the less that in later times there were Jews who cherished ideals which were far different from his.

I am concerned here only with one particular line of development of the later Judaism, the one which in an especial degree was originated by Ezra. This is the line of the religion of Torah strictly so called, meaning by that the religion which found expression in the intention of fulfilling, as a personal duty, the commands of God set forth in the Scriptures, and especially in the Pentateuch. This is not a full or an exact statement of the

meaning of the religion of Torah; but it will serve for the present purpose, and I shall go into detail about it in the next chapter. Judaism, as the religion of Torah, required that every Jew should be in a position to know what was contained in the Torah and what it meant. There must be someone whose business it was to study the Torah and explain its contents, and to show how the precepts it contained were to be applied to cases not directly provided for. Teaching of that kind, to the extent at all events of giving instruction in moral and religious duties, had been given from time immemorial, and mainly by the priests. And there were still priests who could, and probably did, perform the same function. But the case was now different when every Jew was expected to know the commandments of the Torah, and was directly concerned with their bearing upon his own actions. This new necessity of the time was met by the labours of a new class of men, viz. the Scribes (Sopherim). It is significant that Ezra himself is called "the priest the *Scribe*." It is also significant that the men who assisted him by "explaining the sense," when he first read publicly the book of the Torah, were not priests but Levites. It is natural to suppose that many Levites chose to take up the important, honourable, and sacred work of the Scribe, the interpreter of the divine teaching, rather than to perform the menial duties of serving the priests in the Temple. Whether Ezra definitely organised and founded the order of the Scribes, I do not know; but the appearance of them is a necessary result of his policy, and may well be attributed to him. The term Sopherim is vouched for, as extremely ancient, in certain phrases mentioned in the Talmud.

The duties of the Sopherim would be, in the first instance, to study the Torah themselves, then to teach it to others, then to act as interpreters and judges in cases where appeal was made to them to know how, under such and such circumstances, the divine command was to be fulfilled. Now it is scarcely conceivable that each individual Scribe would feel himself at liberty to expound the Torah entirely according to his own judgment, without reference to what other Scribes might teach; or that such unfettered liberty would have been allowed to him if he had tried to use it. There must have been some amount of consultation of the Scribes with each other; and there must have been some kind of tribunal to which appeal could be made, some central authority whose decision would be recognised as final. Otherwise, the whole attempt made by Ezra would have ended in failure

almost at the outset; and it did not end in failure. Now the Talmud contains some scanty references to an assembly called "The Men of the Great Synagogue," to which were attributed certain ancient institutions and sayings. That the statements in the Talmud about the Great Synagogue are all historically trustworthy is by no means the case. But the Rabbis who are responsible for those statements may well have been right in the main fact, though not in the details. The Great Synagogue, as they represented it, is clearly based upon the description of the assembly in Neh. x. And there is nothing to show that that assembly, or anything like it, became a permanent institution. But an assembly of some kind, a council of men "learned in the law," is the most natural form which would be taken by such a central authority as the system instituted by Ezra required for its successful working. It must remain an open question whether such a council was permanent, its members being chosen for life, or whether it was such an assembly as might be called together, *ad hoc*, from time to time, whether the number of its members was fixed, and on what conditions and by whom they were appointed. Upon these points the Rabbis of the Talmud had no certain tradition, perhaps no tradition at all. That the conception of the Great Synagogue was modelled upon the pattern of the Assembly in Neh. x. only means that the Rabbis had no better guide for their imagination in reconstructing what nevertheless must have been. And the same reason which prompted the calling of that historical council, under Nehemiah, would suggest that the natural tribunal from time to time would be a similar council of elders and learned men. This is all that is required to give a historical basis to the traditions concerning the Great Synagogue. Less than this leaves the facts unexplained; more than this opens the way for the discrepancies which have been used for discrediting those traditions altogether. I believe we are therefore warranted in retaining the name of the Great Synagogue, to mean in the first instance Ezra and those who supported him, and then those who in later times exercised authority on his lines and in his spirit.

Now it is nowhere stated in the Rabbinical literature, so far as I know, that the Sopherim of the early times were identical with the Men of the Great Synagogue. But they are closely associated, they seem to stand on the same level of antiquity, and, what is still more important, no distinction is drawn between their several functions, except that the Men of the Great

Synagogue ordained (*tikkēnu*) certain things, while the Sopherim only taught and expounded. As just stated, there is no agreement amongst scholars upon the question whether the Great Synagogue was a real body or not; but of the existence of the Sopherim there is no room for doubt. And the Sopherim are the key (if I am right) to the meaning of the term, "Men of the Great Synagogue." That term represents the Sopherim acting together as a council to decide religious questions; a council not necessarily permanent, but called together from time to time as occasion might require. But it would be a council of Sopherim, *not* of all the leading men of the nation. The authority in public matters was, under the Persian governor, in the hands of the priestly aristocracy, whose interests lay in other directions besides that of the study of Torah. What was done by the Sopherim, and those with and for whom they worked, was done privately and without official sanction. The Rabbinical tradition which mentions the Zūgōth, or pairs, and calls one the Nasi and the other the Ab-beth-din, and implies that the one was president and the other vice-president of the *Sanhedrin*, is certainly incorrect. The Nasi was never the president of the Sanhedrin, in times when the Sanhedrin was still the great council of the State. But it may very well have been the case that in the meetings of the Sopherim, in other words, the Great Synagogue, there were a president and a vice-president; and that the names recorded in pairs in the Talmud are the names of some of the later of these officers. I should add that this explanation of the meaning of the term, "Men of the Great Synagogue," and the identification with them of the early Sopherim, is only a theory of my own; but it is the result of long consideration of the problem.

In an often-quoted passage from the treatise of the Mishnah called the Pirké Abōth, three sayings are ascribed to the Men of the Great Synagogue: "Be deliberate in judgment; make many disciples; make a hedge for the Torah." It will be of use at this point to consider these sayings, because they throw light upon the development of the religion of Torah in the particular direction indicated by the name Pharisaism.

To prove that these dicta were actually uttered by the Men of the Great Synagogue is impossible. But it is admitted that they are very ancient; and the tradition which places them at the forefront of the development of Rabbinism has this much in its favour, that they logically belong there. Either they date from a time not remote from Ezra, or they express the

opinion of some later teacher as to the aims and methods of those who in that early time were responsible for the training of the people in the religion of Torah. This latter interpretation is possible; but the form in which the brief statement is made clearly shows that the Rabbis who compiled the Mishnah had no suspicion that the dicta in question were the utterances of a later teacher. If they had had such a thought they would have expressed it thus: "Rabbi so-and-so said that the Men of the Great Synagogue had said, etc." There is no hint that the three maxims are anything else but an old tradition; and the fact that these and no more are ascribed to the Men of the Great Synagogue indicates, by its very moderation, some reason for so ascribing them. A capricious inventor would have attributed much more to so ancient an authority, in order to obtain for his inventions the sanction of high antiquity. There is really nothing improbable in the transmission, even from the time of Ezra, of these bare fragments of ancient teaching. Their contents are in keeping with this supposition; and, if they were a later invention, they nevertheless accurately describe what the men of Ezra's time must chiefly have had at heart. They are instructions to do certain things, and are addressed to persons who had some special responsibility in reference to the Torah. We have seen that the central idea of Ezra's reformation was to make the Torah the inspiring and controlling influence in Jewish life, both national and individual. To this end it was needful that the people should be taught, that they might know what was in the Torah, *i.e.* what God had given for their instruction; also that they should be able to appeal to competent authority for the settlement of doubtful points. The Torah was the source of divine truth and divine justice, and both must be made accessible to those whose life as a conscious service of God depended on them. The shrine in which the divine treasure was contained must be kept safe from injury, as if it were protected by a fence.

The three maxims, ascribed to the Men of the Great Synagogue, were intended, as it would seem, for the guidance of teachers and expounders of Torah. They were the lines which the Sopherim collectively agreed upon, for their own practice as interpreters and judges. Deliberation in judgment is the key to the casuistry of the Talmud, and in the main justifies that casuistry. For what does it amount to except the desire to study a question from every possible point of view, and to take into account every possible, even though improbable, contingency?

To make disciples, in the sense of imparting knowledge of Torah, has always been the aim and the practice of Rabbinical Judaism; a fact to which the Talmud bears ample witness. The names, Torah, Talmud, Mishnah, Midrash, all imply the idea of teaching and learning—study as regarded either by the student or the instructor. In this larger relation, the minor one of discipleship to a particular teacher holds but a small place. Equally the ancient Scribe or the later Rabbi was enjoined not to make adherents of himself, but to impart to all whom he could influence the knowledge of divine truth which he possessed.

To "make a hedge about the Torah" is a famous phrase that has been much misunderstood. It certainly does not imply any intention to make a rigid system of precept in which all the spiritual freedom enjoyed by the enlightened soul in communion with God should be lost. The Talmudic Rabbis, who entirely endorsed the maxim, never read in it any such intention, and never supposed that they suffered any such loss of spiritual freedom. As in fact they did not. The notion that they did is an idea which only exists in the minds of Christians, misreading an experience which, as Christians, they have never known. What was always understood by the "hedge about the Torah" was the means taken to keep the divine revelation from harm, so that the sacred enclosure, so to speak, might always be free and open for the human to contemplate and commune with the divine. And, so far as the Torah consisted of precepts, positive and negative, the "hedge" was of the nature of warnings whereby a man might be saved from transgression before it was too late. The detailed mass of precept elaborated in the course of centuries, known as the Halachah (see Chapter II.) or rule of right conduct, and finally embodied in the Talmud, was part of the Torah itself made explicit, the divine teaching so far as it related to such and such departments of conduct. And even if the Halachah were the rigid and oppressive system which it is often supposed to have been, but which those who devised it and lived under it did not feel it to be, it was not itself the "hedge about the Torah." The religious guides of the Jewish people, from the early Sopherim to the latest Rabbi whose words are incorporated in the Talmud, did make a "hedge about the Torah"; and did their work so well that, whatever else was torn from Israel in the course of cruel centuries, the Torah remained, and still remains, the peculiar treasure of the chosen people.

I have dwelt at this length upon the consideration of the work of Ezra, and of those teachers closely associated with him known as the Sopherim or Men of the Great Synagogue, because, when once that is clearly understood, all the subsequent developments are easy to follow. I have not yet mentioned Pharisaism, except here and there in passing. But, given such a principle as is contained in Ezra's conception of the religion of Torah, Pharisaism was certain to appear sooner or later, and the Talmud itself was the implied, though distant, result of the process by which that conception was to be worked out.

Devotion to Torah, and the duty of regulating life, whether individual or national, according to its precepts, were of the essence of the Judaism which took its character from Ezra. This was the principle; and those who adhered to it sought to apply it over the whole range of action, public as well as private. The Sopherim would have their opinion as to the way, for instance, in which the Temple ritual should be performed; but it is likely enough that the priests would keep the control of such matters in their own hands, so that the Sopherim would have their main influence as the teachers of the people in the ordinary walks of life. Through the Synagogue, of which I shall have more to say in the next chapter, the Sopherim came into close touch with the individual Jew in his private capacity, and acquired there an influence which was never afterwards shaken. In this way, the religion of Torah, on the lines of Ezra, was made the religion of the majority of the nation. And, while it was held with varying degrees of understanding and attachment, we may note that there were two institutions or usages which mark the points where the religion of Torah took deepest and strongest hold upon the national mind. These were the rite of circumcision and the observance of the Sabbath. I do not mean that circumcision had not been practised, nor the Sabbath observed, in times previous to Ezra, but that these became especially prominent after his time as the *sine qua non* of Judaism, essentials to be maintained at any cost. The institution of the Synagogue provided a means of developing the spiritual life of the people in a way that the Temple ritual hardly could and certainly did not do. And although, as long as the Temple stood, that was regarded as the most sacred shrine and most glorious embodiment, or rather culmination, of the national religion, yet the religion of Torah learned to do without the Temple, but it never dreamed of doing without the Synagogue. With the Synagogue were

associated the devotional outpourings of the Psalmists, and the earliest liturgy, also the regular reading of the Scriptures. These, together with exhortation or instruction, gave substance and meaning to the idea of public worship, which, in a form hitherto unknown in the ancient world, was in itself one of the most important of Jewish institutions. The study of Torah produced in course of time new practices which became traditional, or gave a new sanction to old ones; while the principles of exposition by which these results were produced—in other words, the teachings of the Sopherim—were accepted and recognised as legitimate by those for whose guidance they were given.

So far as the religion of Torah is concerned, the process of its development may be conceived to have gone on with no interruption, upon such general lines, during the centuries between Ezra and the Maccabees. When that period was reached, 167 B.C. and onwards, the main lines of Judaism were clearly defined, and the chief things known which were incumbent upon the Jew if he would be true to his religious profession. He knew not only what he should do, by way of service to God, but why he should do it. The ideal before him was the thought of that service, not as an irksome task imposed on him, but as a willing and glad devotion of himself and all his powers to God. That every individual Jew could or did rise to the height of that ideal, no one would maintain. In the nature of things the spiritual energy, which was mighty in Ezra, could not continue with unimpaired force through the centuries after he was gone. In fact, there is no one to compare with him in this respect until R. Akiba, at the end of the first Christian century. But it is far from true to say that the spiritual meaning of the religion of Torah, as above described, was lost sight of, or even greatly obscured, in the generations which succeeded Ezra. If that had been the case, there would have been no Maccabean revolt. For the tenacity of adhesion and the fierceness of resistance cannot be explained merely by blind loyalty to a tradition whose inner meaning was no longer understood and its spiritual power no longer felt. There must have been a real allegiance to the religion of Torah, in principle though not extending to minor details, on the part of the majority of the nation, a conscious acceptance of the essentials, though often without the zeal or perhaps the power to follow out those main principles to their conclusion. There would naturally be considerable difference in the degree of attachment to the religion of Torah, on the part of

different individuals or sections of the nation, varying from enthusiastic devotion to a careless, almost nominal allegiance, that could easily transfer itself to some other religion whose demands were less severe and whose worldly advantages were greater than those of Judaism.

For a considerable time after Ezra, the nation was, in regard to its religion, homogeneous in this sense, that there was not, unless in individuals here and there, any question of another religion than Judaism. While the Jews were under Persian rule, the Persian religion may have influenced the Jewish religion in some respects; but there was never any question of a secession from Judaism to the religion of Persia. Within the range of Judaism the worship of the God of Israel was the only worship; and while some might be zealous and others lukewarm, some might be more concerned with the pomp and circumstance of the Temple, and others with the more homely piety of the Synagogue, yet all alike owned the religion of Torah as their religion, and felt themselves united as brethren in spite of fraternal discords.

But when, after the fall of the Persian Empire (332 B.C.), the influence of Greek ideas and practices began to be felt, a serious danger arose which threatened the very existence of Judaism. Whether it was the Syrian or the Egyptian king who for the time held possession of Judea, the result was the same in giving a strong impetus to the adoption of Greek civilisation. Greeks settled in the chief towns in large numbers, either as officials of the government or for trade. Greek art and learning had their representatives. Greek builders erected temples and theaters to be the visible symbols of a foreign religion, and of practices alien to Jewish ideas of morality. The Greek met the Jew at every turn; and the Jew would not have been human if he had been wholly unaffected by that close association. The brilliance of Greek culture made it attractive both on its good and on its bad side, its exquisite sense of beauty and its shameless gaiety of vice. Its natural fascination was increased by the fact that it was actively promoted by the influence of the court. The road to royal favour and civil advancement lay through the adoption of Greek manners and customs, and even dress. A Greek sovereign might think it prudent to tolerate the peculiarities of his Jewish subjects; but he had no sympathy with them, and could not understand them. He would welcome every indication of a desire to replace

Jewish ideas and practices by Greek ones, and would use his influence accordingly.

During the hundred and sixty years from the fall of the Persian Empire to the revolt of the Maccabees, the virus of Hellenism was infecting the Jewish nation; perhaps for good, certainly for evil. Probably no class of society was wholly immune from it. Its effects were most conspicuous in the ranks of the wealthy and powerful, the nobles and the priestly aristocracy who came into closest relations with the court and depended most upon the royal favour. But Hellenism had its attractions for all, high or humble; its outward signs could be seen all over the land, inviting a comparison between the gaiety and freedom of Greek life and the moral restraints and sober seriousness of the Jewish.

What gradually resulted was, *not* a division between the upper classes and the lower, as if all the former went over to Hellenism while all the latter remained faithful to Judaism, but a decline towards Hellenism, on the part of a minority in which all classes were represented. Probably the number of those who went entirely over to Hellenism was only small, compared with the whole Jewish population. But there were many whose hold upon Judaism was more or less weakened; and there were only a few who remained unflinching in their loyalty to the ancestral faith. That this was really the case, is shown by the fact that a special name was applied to those who thus rigidly adhered to the principles and maintained to the fullest extent the practices of Judaism as the religion of Torah. If they had been the majority of the nation they would not have needed or received any special name. These faithful few were the Ḥasidim, the Assideans of the Books of Maccabees. Thus Hellenists and Ḥasidim represented the Extreme Left and the Extreme Right of the Jewish nation, with moderates of various shades in between. The name Ḥasid, which is a common word in Hebrew, indicates a type rather than a party.^[1] The use of the word in the Psalms, where most of the instances of its occurrence in the Old Testament are found, does not warrant us, other reasons apart, in assuming that there is a special reference in those passages to the men who became conspicuous under Judas Maccabæus.

The rebellion against Antiochus Epiphanes was, of course, in the main a religious revolt, and, as such, it had the support of all in the nation except

the avowed Hellenists. But there was this difference in the motive of the insurgents, that Mattathias and his sons, who started the rebellion, were fighting for political freedom as well as for their religion. The Ḥasidim only fought for their religion. It was dire necessity which turned them from passive resisters into active fighters. They joined Mattathias and his companions because only by fighting could the Torah now be defended, for whose sake hitherto they had been willing to suffer and die. Mattathias rebelled because the royal power was being used to undermine the national religion, and he wished to throw off the royal power. He would not have been content with permission to practise his religion undisturbed. He was as staunch, though not as strict, an adherent of the religion of Torah as any of the Ḥasidim; but he would have the Jews free to serve God, independent of any permission from a foreign ruler.

In the earlier stages of the war the political and the religious motives were too closely blended to be distinguished. But it is to be noted that the Ḥasidim were the first to desire peace (1 Macc. vii. 13). And later on, when the Maccabean princes reaped the fruits of the war in successful sovereignty, they were regarded with increasing ill-will by those to whom the religion of Torah was of supreme importance.

I cannot, of course, attempt to follow in detail the history of the Jewish people under the Maccabean princes. But the significance of the rebellion for my present purpose can be very soon explained.

The result upon the Jewish people generally was to renew its hold upon the religion of Torah. Hellenism for a time was greatly weakened. There was now at the head of the Jewish state a Jewish prince, able to hold his own against foreign powers. The religion of Torah was, nominally at least, the religion of all Jews, from the palace to the cottage; and it should be observed that the special name of the Ḥasidim dropped out of use.

But gradually a divergence appeared, not wholly unlike that which had led to the rebellion. The princes of the Maccabean house naturally looked for their supporters in the great families to whom belonged the chief positions of rank and wealth, especially those connected with the Temple. The religion of Torah was mixed up with politics to a degree which displeased those who did not belong to the governing class. There was, therefore, again

a movement towards a stricter interpretation of the Torah and a more thorough-going obedience to its requirements, on the part of a minority on the one side, to correspond with the movement towards what might be called "worldliness" on the part of a minority on the other side. These two extremes had names by which they were distinguished. Those who formed the governing class, the great families and the chief priests, were the Sadducees. Those who maintained the full strictness of the religion of Torah were the Pharisees. They were virtually the Ḥasidim over again, under another name. They were in a minority, when compared with the whole nation; but the sympathy of the people in general was with them as against the Sadducees.

The particular reason why they were called Pharisees (*Pherūshim*, separated), was that they formed themselves into separate societies pledged to observe certain rules in the matter of meat, drink, clothing, etc., according as these were clean or unclean, allowed or forbidden. They thereby "separated" themselves from such as were less strict, or who at least did not take their pledge as a guarantee of strictness. But it is clear that there was practically nothing new in what the Pharisees did or in the religion they held, except the mere fact of association in pledged companies. The religion which they thus set themselves to realise in its full extent was essentially the religion of Torah as Ezra had moulded it. Successive generations of Sopherim had worked out into fuller detail the implicit contents of the Torah, as changing circumstances called for further interpretation of the original precepts. But there was no breach of continuity between Ezra and the Pharisees, either in principle or even in the means by which that principle was worked out. For there were in every generation the teachers and expounders of the Torah, as there were always those who depended on the guidance of such teachers. The name of the Men of the Great Synagogue had passed out of use, as it was believed that the institution itself came to an end. But the Rabbinical tradition recorded the names of those who successively handed on the teaching in which the meaning of the Torah was unfolded, and its application to new conditions indicated. The line of this descent is through the Pharisees and not through the Sadducees. Not because the Sadducees did not care about the religion of Torah; but because the Pharisees, strange as it may sound, kept the religion of Torah as a living principle, capable of being adapted and needing to be

adapted to fresh developments of religious life, while the Sadducees held to the letter of the original scripture, and refused innovations. The practical bearing of this appears in the fact that the Sadducees kept in their own hands, as long as they could, not merely the governing authority, but the judicial power in criminal cases. And the hostility between Pharisees and Sadducees was expressed in a long struggle for the mastery. The Pharisees never obtained permanently the political mastery. But they did gain, for some of their representatives, a place in the Sanhedrin, the great assembly of the leading men of the nation. And, what was more, they did obtain a control over the Temple, to this extent that the ritual there was performed according to the requirements of the Pharisees, the Sadducean priests consenting to this as the condition on which they held their office. It is stated in the Mishnah (Joma iii. 5) that representatives of the Beth-Din, *i.e.* Pharisees, administered an oath to the High Priest on the day of atonement, saying to him: "'Sir, High Priest, we are the delegates of the Beth-Din, and thou art our delegate and the delegate of the Beth-Din, and we adjure thee, by Him whose name dwells on this house, that thou wilt not alter a thing of all that we have said to thee,' and he departs, weeping, and they depart, weeping." A singular touch, expressive, as it would seem, of mutual distrust.

The Pharisees also succeeded at last in wresting from the Sadducees the power of judicial decision in criminal cases; and the ancient calendar, known as Megillath Taanith, marks the 14th Tammuz (July) as a festival, because on that day the Sadducean penal code was abolished. This same calendar, which is a Pharisaic document, contains several other anti-Sadducean references.

The Pharisees, then, represent that element in the Jewish nation which was most zealous for the religion of Torah, and most thorough-going in the application of its principles. So long as the Sadducees existed, the name Pharisee also remained.

With the downfall of the Jewish state, after the war of A.D. 70, the Sadducees disappear from history. The Pharisees remained, as representing all that was left alive of Judaism; but the name was no longer needed, and seldom if ever used. The Jewish remnant were not indeed all Pharisees, in

the strict sense of the term; but they were on the whole in sympathy with them, as they always had been.

If I have clearly indicated the relations of the Pharisees and Sadducees to each other, and to the mass of the nation, it will be easy to indicate the place of two other classes of persons bearing well-known names. The Essenes stand apart from the main body of the Jewish people; they were ascetics and recluses, of more than Pharisaic strictness (for asceticism was not a characteristic feature of Pharisaism either in practice or theory), and they combined with the religion of Torah certain mystical doctrines of their own. Whatever influence they may have had upon other elements in Judaism, they had little if any upon Pharisaism.

There remains the class called "Am-ha-aretz," or "the people of the land"—the "people that knoweth not the law" (John vii. 49). This title denotes, not a definite division, but simply those amongst the people who in fact were least influenced by the Pharisees, and least drawn to them. Such would be not only the careless and indifferent, but also those who, for higher reasons, did not readily fall in with the Pharisaic system, or to whom religion as presented by them was not acceptable. It is these mainly who are referred to when it is said that Jesus saw the people "as sheep without a shepherd" (Mark vi. 34). And it is only likely that those would most gladly hear him who were least inclined to follow the Pharisees.

From this sketch of the composition of the Jewish nation, in the time of Christ and thereabouts, it will be seen that the main line of development is represented by Pharisaism. It comes down from the time of Ezra, as the religion of Torah, expounded and administered by approved teachers, known from the first as Sopherim. The names Ḥasidim and Pharisee denote its most zealous representatives at two different periods; but they imply no change of principle, or even of method. What change there was is seen in the growth of a body of teaching, the decisions and interpretations of successive exponents of Torah, handed on and repeated from memory, for the instruction of those who should come after. This is what is known as the Tradition of the Elders, referred to in Mark vii. 5 and elsewhere. And when I come to deal with the theory of Torah in the next chapter, I shall show how this Tradition of the Elders was a sign of the continued vitality of the religion of Torah, not the gradual strangling of it. At present I am only

concerned with the fact, not with the meaning of it. The Tradition of the Elders can be traced in the Mishnah up to the time of the early Sopherim, not far distant from Ezra; it is the thread which binds together the development, through Ḥasidim and Pharisaism, of the Jewish religion. And it marks the course of the main stream of Judaism far on through the centuries. The Essenes vanished. The Sadducees were swept away when the Temple was destroyed. It was the Pharisees who alone could or did weather that storm, and carry the divine treasure of the religion of Torah into safety. Already, in the time when Jesus was a boy, Hillel the Babylonian had applied his genius to the interpretation of Torah in ways which gave it a fresh power of ministry to spiritual wants. And when, seventy years later, the catastrophe came, the man was ready who should go forth from Jerusalem, and establish for the ancient religion a "temple not made with hands." Joḥanan ben Zaccai was that man. When he saw that the city was doomed, he went to the Emperor Vespasian, and made his submission to the force that could no longer be resisted (b. Gitt. 56^b). The Emperor asked what he should give him, though he sought no reward. "Give me Jabneh and its wise men"—Jabneh being a town on the coast, where already there were some of the leading Pharisaic teachers. The request was granted, and Joḥanan b. Zaccai gathered in Jabneh the remnants of the learning and wisdom of Judaism. There he and his colleagues repaired the shattered fabric of the religious life of their people, and adjusted it to the new conditions. The Temple with all that belonged to it was gone for ever. But the Synagogue and the College remained, as the home both of worship and study; and the religion of Torah probably gained rather than lost by being finally cut loose from association with the Temple cultus. The assembly at Jabneh took up the task of developing the religion of Torah, and carrying forward the Tradition of the Elders, where it had been interrupted by the war. The teachers to whose hands that task was now committed were henceforth known as the Wise; the names Sopherim and Pharisee were seldom used, but the essential features of their work remained unchanged, and it was carried on in the ancient spirit.

In the interval between the capture of Jerusalem in A.D. 70 and the almost greater disaster in A.D. 135, when the revolt of Bar Coch'ba was stamped out, the assembly of the Rabbis met from time to time in Jabneh, or Lydda; and even during the persecution which followed on the failure of the last

rebellion, when the Jewish teachers were hunted up and down, and Akiba, the greatest of them, was tortured to death, there were still left those who would carry on the tradition of their religion. These were young men who received ordination as Rabbis, when it meant death to be a Rabbi at all, if he should fall into the hands of the Romans. It is told (b. Sanh. 14^a) of R. Jehudah b. Baba, that he took six of his disciples into a secluded spot and there ordained them, and that he had hardly finished before he was discovered by the soldiers, and fell, stabbed with Roman spears. The six young men all survived to become the teachers of the next generation. They handed on what had been committed to them as a sacred trust, the religion of Torah, and the tradition in which its meaning and contents were set forth in growing fulness and clearness.

This takes us out of the period covered by the New Testament. But I add the few words necessary to round off the bare account I have given of the development of Judaism through the Pharisees.

The Tradition of the Elders, as I have said, increased in volume and complexity as each generation of teachers added something to it. The necessity, therefore, gradually made itself felt of arranging and systematising the great mass of traditional matter. This was attempted first by the R. Akiba just mentioned, then by R. Meir, one of the six young men ordained in the time of the persecution. But it was only carried to completion, after long years of labour, by R. Jehudah ha-Kadosh, commonly called "Rabbi," *par excellence*. He collected all that he could find of the decisions and opinions of earlier teachers, sorted them out under different heads, noted those which were universally admitted and those which were doubtful, and thus framed a code of law for the guidance of all Jews. This collection is the Mishnah; and the text as we have it now represents, in the main, the code of Rabbi. There are, of course, interpolations and additions to it. There is another great collection known as Tosephta, containing a good deal of the same material; it is nearly contemporary, but it has never had the same authority as the Mishnah. The date of the Mishnah can be put at about the year 210. Rabbi died in 219. The Mishnah became in its turn the subject of study in the Rabbinical schools, and two fresh lines of tradition begin from this point, each of them starting with a disciple of Rabbi. One of them is the line of development of the Mishnah in the Palestinian schools, of which the chief seat was Tiberias;

the other was the line of development of that same Mishnah in the Babylonian schools—Sura, Nehardea, Pumbeditha, and others. The result of each process was a mass of commentary on the Mishnah, and not merely commentary but accretions of every kind having any sort of connection with Judaism as a living religion. This development of the Mishnah is in each case called Gemara. And Mishnah plus Gemara is the Talmud. There is only one Mishnah, but there are two Gemaras, differently named according to the land of their origin. And it is usual to speak of the Palestinian Talmud and of the Babylonian Talmud respectively.

Neither of these two was ever completed. The Palestinian schools, at the end of the fourth century, had no one left who was capable of carrying on the work; and in Babylonia, though much more was done, a final completion was never reached. After the beginning of the sixth century nothing more was ever added to the Talmud; and even of what was in existence then, not all survives now.

In the Talmud is contained the main source for the knowledge of what Pharisaism meant; because it was made the storehouse in which all, or nearly all, that was held to be valuable in the Tradition of the Elders, the explicit religion of Torah, was stored up. There is a huge literature contemporary with the Talmud, to which the general name of Midrash is given; all of it is traditional, and all of it bears on the religion of Torah, in one way or another. This is the written deposit of Pharisaism, the mark which it has left upon the literature of the world. It is there, and not in the writings of those who did not understand its ideals or share its hopes, that its real meaning can alone be found. Those ideals and hopes first dawned in Jewish minds under the influence of Ezra. The Talmud is the witness to show how some of his countrymen, some of the bravest, some of the ablest, some of the most pious and saintly, and a host of unnamed faithful, were true to those ideals and clung to those hopes; and how, through good report and ill report, through shocks of disaster and the ruin of their state, ground down by persecution, or torn by faction, steadily facing enemies without and enemies within, they held on to the religion of Torah. They have not sought, and they certainly have not found, the praise of men for their steadfastness. For these are the Pharisees, and the world has for them only a contemptuous gibe. Who was it that said: "For every idle word that men shall speak, they shall give account thereof in the day of judgment"?

CHAPTER II

THE THEORY OF TORAH

In the preceding chapter I sketched the historical development of Pharisaism from its source in the work of Ezra to the time when it had found its literary expression in the Talmud and the Midrash. I said that from first to last what was developed was the religion of Torah. It is therefore essential to the understanding of Pharisaism that the reader should, first, obtain a clear conception of the meaning of Torah, and, second, that he should bear that conception always in mind in his further study of Pharisaism. It will be my task in the present chapter to show what Torah meant, and what form the religion of Torah actually, and perhaps necessarily, assumed. If I succeed, then the reader will understand how it was that Rabbinical devotion to Torah could express itself quite naturally in terms which to the unenlightened Gentile appear to be extravagant—as, for instance, when it is said that God studies Torah for three hours every day (b. A. Zar. 3^b).

There would be no particular difficulty in understanding what is meant by Torah, if it were not that it is commonly supposed that the word "Law" is the just equivalent of it. The Greek, alike of the Septuagint and of the New Testament, renders "Torah" by νόμος [Greek: nómos]; and while the translators of the New Testament rightly rendered νόμος [Greek: nómos] by "Law," they nevertheless perpetuated what was a misconception on the part of those who used the Greek word to represent "Torah." It is to avoid that misconception that I have already used, and shall continue to use, the word "Torah" untranslated, as a technical term whose full implication cannot be

expressed in any one English word. It is true that the word "torah" is simply and correctly translated by the word "teaching"; but, as used in the later Judaism, it denotes a particular kind of teaching, and also the sum-total of what was taught as well as the vehicle or medium by which it was given. It further denotes any particular portion of that teaching. In short, it is a word into which the Rabbis compressed more meaning than can be found in any other word in their language; and we shall more readily grasp that varied meaning if we keep to the word Torah, as being unspoiled by erroneous associations.

The original meaning, then, of the word Torah is simply "teaching," any kind of instruction given by any person to any other person; for instance, Prov. i. 8, "Forsake not the 'torah' of thy mother." More specifically, it was religious teaching, conceived as given either by God to Israel, or by man to his fellow-man. Thus, Isa. li. 7, "the people in whose heart is my Torah" (where the speaker is God); and, for human instruction, Deut. xvii. 11, "according to the tenor of the 'Torah' which they shall teach thee," "they" being the priests. This last passage gives the clue to the further developments of the word. It had been for ages the custom in Israel for the priests to give instruction to the people upon matters connected with religion, explanations of duty, decisions of disputes, intimations of the will of God. This was, of course, Torah; and it was Torah which was regarded as being given by God through human agency. The Torah which the Lord gave by the hand of Moses would not originally imply any code or book, but simply such ancient sayings, precepts or otherwise, as were traditionally ascribed to Moses as the great teacher of Israel in the days of old. The connection of Torah with Moses, though others might have given Torah as well as he, had this result, that gradually a body of traditional teaching was accumulated, ascribed to him and bearing his name; and the several attempts to collect and codify these are to be seen in the various strata of the Pentateuch. They are mostly in the form of precept and command, as was only likely, since they were intended for the guidance of conduct. But that was not why they were called Torah. If Moses had taught something that was not commandment at all, it would still have been Torah, because it was taught.

In this sense, Israel had never been without Torah; and the prophet no less than the priest owned that in it God had continually taught His people.

Prophecy itself was only a form of Torah, for the prophet spoke the word of the Lord.

Now, whatever else Ezra introduced that was new, it was not Torah. If he had religious teaching to give, as of course he had, he only followed in the train of the prophets and priests from Moses downwards. And when he offered Torah to the people, they knew what he was referring to. Nor did the novelty consist in the fact that Ezra made known to them a larger body of Torah than they had previously been acquainted with. It does not greatly matter, for the present purpose, whether the book which Ezra read to the people was the Priestly Code, or the whole Pentateuch substantially, though not finally, complete. For even if the earlier documents had not been as yet welded into one whole with the Priestly Code, they were nevertheless in existence, and were already owned as Torah of Moses.

What Ezra did was to lay a much greater emphasis upon the need of obedience to what was contained in the book of Torah (or the books) as being the duty of every Israelite. What was in fact the collected accretions of centuries, was regarded by Ezra, and by all Israel, as Torah from God communicated by Moses, and therefore entitled to precedence over any Torah imparted to anyone else. The book, or books, in which it was recorded contained all that God had chosen to reveal for the instruction of His people. The five books of Moses were the written form of the Torah. They were not the Torah itself. It is only for convenience that the Pentateuch is often called the Torah. The two are not identical. The Pentateuch differs from the Torah as the vessel differs from its contents, even though there be but one unique vessel in which those contents are preserved. Ezra, then, offered for the acceptance of Israel, in the book that he read to them, what he believed to be the full revelation which God had made. But he went beyond those who had preceded him, beyond even those who had carried through the reform of which the book of Deuteronomy is the manifesto, by reason of the stress which he laid upon personal and individual acceptance of it. Deuteronomy, no doubt, contained over and over again the demand, "Thou shalt observe to do" according to all these commandments, and it enforced the demand by the appalling catalogue of curses upon the disobedient which may be read in the 28th chapter. But Deuteronomy was written before the Exile, and Ezra lived after it. The priests had given Torah, and the prophets had proclaimed God's revelation

of His nature and of man's relation to Him and consequent duty. They had been pre-eminently preachers of righteousness. But yet, in spite of the zeal of the prophets and the teaching of the priests, the bitter lesson of the Exile had proved that Israel had not served his God as he ought to have done. It was Ezra's function to apply the lesson of the Exile and to direct the religious life of Israel into such lines that no similar disaster should again be experienced; or rather, that no such sin should again be committed as had led to that disaster. Ezekiel, indeed, had been the first to perceive the necessity of a change in the direction of Israel's life; but he had lived at a time too early for a real beginning to be made. Yet it can hardly be doubted that the seed, which Ezekiel sowed among the captives in Babylonia, bore fruit in the ideas which underlay the reformation of Ezra. When Ezra came forward with the book of the Torah, he did so not in any sense as an opponent of the prophets, or as making a breach between their ideas and his own. He came forward to enforce their teaching, to apply it, and to get from it a larger result of practical righteousness than it had produced in their time. It was just because the prophets had so splendidly revealed God to Israel, had proclaimed to him the full grandeur of his privilege, that Israel must now be taught to do his part as he had never done it before. The greater the privilege the greater the responsibility. So far from being at variance with the ideas of the prophets, Ezra was the one to complete them, or at least to put his people in the way of completing them. There is a difference of method between Ezra and the prophets; there is no difference of principle. And as the Pharisees and the later Rabbis did but carry out the method and the principle of Ezra, they stand in the same line with him as the legitimate successors and continuators of the prophets.^[2] It may be said with truth that of the later types of Judaism—Hellenism, Apocalyptic, and Rabbinism—the last, and only the last, carried on and handed down the inheritance which the prophets had left. What Hellenism and Apocalyptic had to give went to Christianity, so far as it survived at all.

The purpose of Ezra was to lay stress on the embodiment, in the practical life of the individual Jew, of the teaching of the prophets (including Moses) concerning God and Israel. The main point for Ezra was that God had taught certain things—knowledge of Himself, knowledge of His will. What had been taught must be learned and taken to heart, and, so far as it was of

the nature of precept, must be carried out in practice. It was not enough to *know*; the Israelite was required to *do* and to *be*.

The practical application of this idea needed the acceptance of it on the part of the people, and further, a definite undertaking to make certain changes in their manner of life. And, before all, it was necessary that they should, so far as possible, separate themselves from the "peoples of the lands" in whose midst they found themselves, on returning from the Exile. This is, of course, the meaning of the putting away of the foreign wives, and the forbidding of such marriages for the future. The general programme of the reform is set forth in Neh. x., which is nothing more than the logical corollary of the acceptance of Torah. Among the points there specified, besides the prohibition of intermarriage with foreigners, are the observance of the Sabbath, the payment of the tax for the service of the house of God, and the duty of bringing first-fruits and tithes. Of course these provisions do not cover the whole duty of the Jew, and they were not intended to do so. Their purpose was to set up the Jews as a closed corporation, distinct from the surrounding peoples, and to provide for the maintenance of the Jewish cultus. Within the limits thus drawn, this enclosure marked off from the Gentile world, the Jew was to live his whole life, and the Torah was to be his guide in doing so. The limits were drawn in order to make it possible for the Jew to live up to the Torah. The limits themselves are not part of the Torah; and hence it follows that a Jew could live with complete loyalty to the Torah, and yet be but little conscious of the limits within which he enjoyed his spiritual freedom and privileges. Unless occasion reminded him of the fact of separation between him and the Gentiles, he could give his whole mind to the immediate concerns of his religious life—meditation, prayer, and the doing of his duties towards God and man. His thought was not taken up with a painful study of precepts, but was free to range over the whole relation in which he stood towards God. The Torah was his guide to the *whole* meaning of that relation, not merely to the performance of specified duties. And therefore, when Ezra prevailed on the Jews to become a separate community, he was not condemning them to a life of barren legalism, cutting them off from a free communion with God; he was providing for them a means whereby they could enjoy that free communion, defended against the dangers which, in the past, had been so disastrous to the religious life of the people. It is, of course, true that in doing so he was

at the same time cutting the Jews off from free intercourse with their fellow-men of non-Jewish race, and thereby restricting their development as human beings. And the Jews ever since have paid a heavy price for that separation. But in Ezra's time free intercourse with non-Jewish peoples did not seem at all a desirable thing, if the Jewish people were to survive. It is indeed difficult to believe that they would have survived, if the policy of Ezra had not been carried out. And if they had not, what would have become of the Jewish religion? And how would the great spiritual treasure of the prophets (to say nothing of the Torah itself) have become available for those who, in a later age, were to depend so largely upon it? Whether the policy of separation is to be for ever kept up, is a question which the future must decide. But that Ezra saved the Jewish religion and the Jewish people is hardly open to dispute.

Ezra, then, provided for the Jews an enclosure, marked off from the Gentile world, within which to live their religious life; and he gave them the Torah, as being the full revelation which God had made through Moses, for their guide in the life they should thenceforth live there. Clearly, no one would enter that enclosure, or remain within it, unless he really and seriously meant to live on the lines of Torah. And that is why, from the time of Ezra, the importance of Torah becomes so marked, and insistence on it so emphatic; why, in short, from that time, the Torah dominates the whole field of religion for those who followed the lead of Ezra. They virtually declared that they would stand or fall by the Torah. For them, the Torah was the medium through which religion became real to them; as it were, the glass through which they viewed all the dealings of God with their own race in the past, and with mankind in general. This will be more fully seen when we come to what the Talmud has to say about Torah. But that is only the expansion in detail, as pious imagination dwelt upon the theme, of the idea which Ezra planted in the mind of his people, that of the supreme importance of Torah as the revelation which God had made, the perfect guide, the source of all that could be known or required to be known, by him who would "love God with all his heart, and with all his strength, and with all his might."

The Jew who followed the lead of Ezra was, as before, a member of the community of Israel; but he was, in a far greater degree than before, aware of his own responsibility for the right living of his life in relation to God,

the doing and the being of what was pleasing to Him. The Torah was given to Israel; but it was none the less addressed to each Jew. And that, not merely in regard to particular precepts but in regard to the religious teaching as a whole. It may be true that nothing in the Pentateuch rises to the height of spiritual grandeur attained by the great prophets. It may be true that their free inspiration denoted a power and fulness of religious life greater than could be developed by the Torah as a body of teaching, or even regarded as a final revelation. But however sublime the religion of the great prophets had been, the religion of the ordinary Israelite had by no means attained to the same degree of power and fulness. If it had done so, there would not have been the collapse of national religious life which brought about the Exile. The effect of making the Torah the guide of life, the seat of authority in religion, was to deepen the spiritual life of the ordinary Jew; it gave him a stronger sense of personal responsibility, and opened out to him regions of religious experience of which he had seldom if ever been aware. The effect of thus exalting the Torah was not, as it is so often said to have been, to cramp and harden the spiritual nature of the Jew, by confining it within definite limits and oppressing it by precise commands. I would not say that this never happened; because it is not wise to assert a universal negative. But it certainly was not the primary or the usual effect. The Torah made the religion of Israel personal and individual to a far greater degree than it had been before; and it did so by conveying to the individual Jew not merely the legal precept but the prophetic fervour, the joy and the inspiration of personal communion with God as well as the high privilege of serving Him. The introduction of the Torah was not the signal for a decline in the national religious life, but the beginning of a new and strenuous advance; and whereas, before, the prophets had towered high above the mass of the people, who had remained at a comparatively low level of spiritual attainment, henceforth there is a great development of the spiritual nature of the ordinary people, the individual Jew. There were no more prophets, because there was no further need of any prophets. Their work was done; and in respect of that part of their work where they had failed, Ezra and his followers succeeded. The prophets had declared the full meaning of the religion of Israel, its glorious hopes, its triumphant certainties, its boundless possibilities. The people had heard, but had too little heeded. Ezra, by means of the Torah, and expressly and intentionally by that means, drove all this home to the heart of the individual Jew, and so

wrought it into the very texture of his religious nature that it has remained there ever since. It is high time to put away altogether, as one of the exploded errors of history, the notion that Ezra, by the exaltation of the Torah to the supreme place in Jewish religion, set that religion upon the down-grade. I believe it to be nearer the truth to say that after Moses, and Isaiah (or perhaps Jeremiah), Ezra is the third greatest man in the Old Testament.

It can scarcely be too often repeated that the Torah, as Ezra understood it, meant divine teaching upon all and everything that concerned religion. It was not confined to commands, positive or negative, but included everything that bore upon religion at all. This is evident on the face of it; because the contents of the Pentateuch (which is the written embodiment of the Torah) include much else beside precept. As a Rabbi pointed out, long afterwards, if the Torah had been only precept, it would have been sufficient to begin it at Exod. xii. 2, where the first precept occurs. "And why was it written (Gen. i. 1), 'In the beginning, God created the heavens and the earth, etc.'? To show the power of His might" (R. Jitzhak, in Tanḥ 4^a). The meaning of which is that the Torah is a revelation of more than the divine will.

The view that the Torah, as recorded in the Pentateuch, is the supreme revelation which God made to Israel, and that it covers the whole extent of the religious life, theoretical as well as practical, is implied in the position which it held in Judaism from the time of Ezra onwards, and underlies all that the Talmud says about it. There is no point in the long line from Ezra to the closing of the Talmud, at which it can be said: "Here the conception of the Torah was narrowed into the meaning of mere legal precept." It was at no time thus narrowed. And if, as is often admitted, Judaism, after Ezra and before Christ, allowed of a considerable degree of spiritual attainment on the part of those who were under the Torah, there is no ground for denying the possibility of such spiritual attainment on the part of Jews in or after the time of Christ, because the conception of the Torah remained the same in essence. What change there was, between Ezra and the Pharisees and the later Rabbis in the Talmud, was in the opposite direction to that of restriction of its meaning. They realised far more than Ezra did, or could do, the fulness and richness of the Torah as a divine revelation; and while they took a delight in glorifying it on its imperative side, as embodying divine

commands, they never dreamed of saying that the Torah was precept and nothing more.

In his well-known book, *Die alt-synagogale Theologie*, p. 24, Weber says: "If we have to admit that this praise of Torah (in the Talmudic literature) is entirely in accord with similar praise of Torah in the Psalms, we must nevertheless not forget that here (*i.e.* in the Talmud) the Torah is praised as Law, while in Scripture the conception of Torah is wider and includes all revelation, alike of law and of salvation."

The opposition here alleged does not exist; and the statement that it does is the cardinal error of Weber's mischievous book. For the right understanding of Pharisaic Judaism, the fact that Weber is the usually accepted guide is well-nigh fatal. It will be observed, however, that Weber admits the wider conception of the Torah in the later books of the Old Testament, especially in the Psalms; and that is all that matters at present. It is of importance to realise that the spiritual life of Israel not merely ought to have done, but actually did increase and develop under the influence of that Torah which Ezra had exalted to the supreme place. There are two very important indications of the truth of this statement; one is the rise of the Synagogue, and the other is the growth and completion of the book of Psalms. It will be no digression, but an appeal to evidence directly bearing on the subject, to speak at this point of both these.

The origin of the Synagogue is to this extent unknown, that no precise date can be assigned at which it was first instituted. But it did not appear in Palestine before the time of Ezra, and it was already ancient and immemorial in the time of the Maccabees. It is possible, and even probable, that it arose amongst the captives in Babylonia. It is certain that it spread through the whole Jewish community in Palestine when it was introduced. The Synagogue, Beth-ha-keneseth, "meeting-house," was a place where Jews assembled for religious purposes. It is reasonable to suppose that what first led to the establishment of such places, by the captives in Babylonia, was the fact that they were cut off for an indefinite time from their native land, and the Temple of their God. It was not only that they were prevented by distance from "going up to the Temple to pray"; it was that the Temple itself was destroyed, and its services no longer performed. There was thus no national worship of God at all. Yet God was still there, to be worshipped.

Trust in Him had not died out from Jewish hearts when Jerusalem fell. What more simple and natural, for all that it was in fact an unheard-of innovation, than that here and there a company of brothers in exile should meet together, and pray to the God of their fathers? So far as I know, there had never been, in the world's history, any form of congregational worship till the Synagogue appeared. Till then, worship had usually been performed in some temple or local shrine, and consisted in the offering of some gift or sacrifice, usually through the medium of a priest, and accompanied no doubt by some prescribed prayer. This was done in the Temple in Jerusalem, while the Temple yet stood. And the Synagogue did not set out to do the same thing on a small scale, but to do something entirely different. The time came when the Temple service was restored, and the ancient sacrifices offered again with the fullest pomp of ritual. But the Synagogue did not on that account suspend its operations, or show the least sign of declining in popular favour.

The idea of the Synagogue was twofold; it was a place of worship, *i.e.* congregational worship, and it was a place of teaching, *i.e.* religious teaching. It has kept that twofold character ever since, or at all events kept it till long after the Talmudic period. For the Synagogue had come to stay, and it has continued down to the present day. Of all the institutions that man has ever devised, the one with the longest continuous history is the Synagogue. And that it answers to a real and permanent religious need is shown by the fact that the Christian religion took over both the idea and the form of the Synagogue, in organising its own meetings for worship, and has retained them ever since; except where sacrificial ideas, derived partly from the Temple worship and partly from pagan ritual, have interfered with and spoiled the simplicity of the Synagogue type of service. It is highly remarkable that the same elements which are familiar in Christian worship—hymn, prayer, Scripture reading, and sermon—are found in the earliest Synagogue services so far back as the records go. And the reason why they have been retained, practically unaltered, is surely this, that they have been found to answer their purpose so well that no change was felt to be needed. Whoever first devised the form of the Synagogue service came, no doubt unconsciously, upon one of the fundamentals of the spiritual nature of man, made one of the discoveries which determine the future development of the race for all time. The Synagogue perhaps grew up rather than was

intentionally created; and it was accepted because it so exactly met the needs of those who first made use of it. During some twenty-three centuries it has served the purpose of common worship, both in its Jewish and its Christian form; and when it is considered how enormous has been the influence of the practice of meeting for common worship, such as the Synagogue first provided and made possible, then it becomes highly significant that the Synagogue appeared in close connection with the labours of Ezra and the new emphasis laid on the Torah. Whether, on the supposition that the Synagogue arose on Babylonian soil, it owed its origin to the conception of Torah as Ezra understood it, we have no means of knowing. But it is certain that its rapid spread in Palestine took place when the idea of Torah was already made dominant. And the Synagogue was naturally adapted to embody that idea. As the Torah was the revelation which God had made to Israel, the study of it and the practical application of it were both associated with the "house of meeting." To study it was to ponder the meaning of the revelation. And to practise it was, amongst other things, to worship the God who had given it. The Synagogue was intended to develop through religious fellowship the whole nature of those who met there, spiritual and moral, and by no means only intellectual. And even if the Torah which they studied had been nothing but precepts, yet these included a personal devotion to the service of God which was practically unthinkable without worship of Him. It was as natural that those who met in the Synagogue should join in prayer together, as that they should read or hear the book of the Torah, and should edify one another by expounding its contents. That is what they did; and the Synagogue did not fail to become a most important factor in deepening and strengthening the spiritual life of the people at large.

Now if the effect of the exaltation of Torah, due to Ezra, had been, as it is usually said to have been, gradually to harden and cramp the spiritual freedom of the Jewish mind, then either the Synagogue would have ceased to minister in any way to spiritual needs, or else it would have represented a protest against the deadening influence of Torah. But in actual fact there has never been, at all events till quite recent years, any such opposition between the Synagogue and the religion of Torah. On the contrary, it was precisely the religion of Torah which the Synagogue, through all these centuries, has existed to promote; and it was the Synagogue, so inspired, which served as

the type and model of Christian worship. The Synagogue is one of the first-fruits of that Judaism which, under the lead of Ezra, took its stand upon the Torah.

Further evidence in the same direction, namely, that the tendency of the religion of Torah was not towards spiritual decline, is afforded by the book of Psalms. That evidence would be more cogent than it is, if it were possible to fix with certainty the date of every Psalm. That cannot be done; but the fact remains that the collection of the Psalms, and the use of that collection as a lyrical expression of devotion, belong to the time after, and not before, the age of Ezra. It is often said that the book of Psalms is the hymn-book of the second Temple; and I do not challenge the general correctness of that statement. But some, at all events, of the Psalms seem to be less adapted to the Temple service than to that of the Synagogue. I mean that those utterances of intensely personal devotion which make the Psalms so wonderful a treasure of spiritual experience, are much more in keeping with the simple worship of the Synagogue than with the stately and official celebrations of the Temple. It might indeed be said that some of the Psalms are too personal even for the congregational worship of the Synagogue, if we did not know, from common usage, that hymns of that character are constantly sung in Christian worship. There is hardly any one of the Psalms which could not have been quite well sung in the Synagogue; while there are many which have no obvious fitness for the service of the Temple. But, in any case, it was not until after Ezra had made Torah the dominant factor in Judaism that the book of Psalms was collected and arranged, and in part composed, as we have it now. It contains hymns of an older date, in some cases perhaps a much older date. And it is possible that some smaller collections had been made in times before Ezra. But there are several Psalms which quite clearly owe their origin to the idea of Torah as the supreme revelation, besides others which bear witness to the influence of that idea; while the collection of the whole is best explained as due to the need, first brought to the Jewish consciousness by the Synagogue, of some means of giving united expression to the thoughts and feelings of a worshipping multitude. Of course it is not here implied that the collection or production of the book of Psalms took place immediately after the time of Ezra. The collection may have only been completed as late as the first century B.C. But the point is that the whole was collected, and much of it

composed, under the influence of the religious ideas associated with Ezra and the Torah. And it should be observed that the later be the date assigned to the composition of some of the Psalms, and the final collection of the whole of them, the stronger is the evidence that the religion of Torah was not the unspiritual formalism that it is often supposed to have been.

I shall have more to say about the Psalms, as evidence for the meaning of the religion of Torah, in the last chapter, in which I shall deal with Pharisaism as a spiritual religion. For the present enough, perhaps, has been said to show that the Judaism to which Ezra gave its distinguishing character by raising the Torah to its supreme place there, was thereby enriched and not impoverished on its spiritual side; it did not sink but rise, it became not more shallow and poor, but more full and deep, with greater power than it ever had before as a determining factor in individual life.

It may be objected, at this point, "All this may be very true, in regard to the religion of Ezra, as conditioned by Torah; but does it hold good in regard to the religion of the Pharisees, of whom, in this chapter, nothing has as yet been said? Ezra may have been such as has been described; but it is the Pharisees who are commonly said to have been mere legalists in their ethics, and formalists in their worship." I am quite ready to meet that challenge; and it was for the purpose of preparing to meet it that I have been so careful to make clear the conception of Torah implied in the work of Ezra, and its effect upon the religion of those who followed his lead.

As has been said already, there was no divergence in principle between Ezra and the Pharisees. Both accepted with entire assent the conception of the Torah as the supreme revelation made by God to Israel; and they owned in like manner, with entire assent, the duty of conforming in thought, word, and deed to the divine teaching therein contained. In what, then, did the Pharisees differ from Ezra? In what directions was development possible from the idea of Torah as he conceived it? And in particular, what line of development was still open to the Pharisees when they first became a distinct element in the Jewish national life?

In the time between Ezra and the Maccabees that provision had been made of the Synagogue worship, to which reference has already been made; and within the lines of a liturgy whose simple beginnings are ascribed to the

Men of the Great Synagogue, and which was further enlarged by the piety of later generations, that piety continued to find expression in public worship. Private prayer never confined itself to stated forms; and private prayer was always an essential element in the religion of Torah. It must never be forgotten, that in all the developments of Pharisaism and Rabbinism on the lines of theology and the practical conduct of life, the spiritual and devotional side is always involved. The men who built up the huge fabric of Talmudic casuistry were men who prayed to their Father in Heaven (calling Him by that name), and who, in simplicity of heart, "worshipped him in spirit and in truth." If this is challenged, (though it would not be challenged by anyone who really knows the Rabbis), then I ask, were the great men who built up the equally huge fabric of Christian doctrinal theology men in whom the spiritual nature was atrophied? Let Augustine answer for his brethren among the Christians; and if his answer be allowed, (and no one who has read the *Confessions* will dispute it), then let it be allowed that R. Akiba, a double-dyed Pharisee if there ever was one, and a master of Halachah, may also have known "the deep things of God," and "walked in the light of His countenance."

The development of the religion of Torah from Ezra to the Pharisees, and on to the Talmud, took place along two main lines, it being understood that through all the spiritual and devotional side was ministered to. The two lines of development are indicated by two words, of which I have just mentioned one—Hālāchah and Hāggādah. To grasp the significance of these terms is essential for the right understanding of Pharisaism. I will not give a definition of them, just at this point, but will rather describe the two methods by which the Torah was interpreted, and for which these two names were chosen.

The Torah, as recorded in the Pentateuch, was set up by Ezra as the supreme revelation made by God to Israel. It was Teaching intended to be learned. Now one of the first things that must be learned by any man who would serve God is *How* he shall serve Him. What shall he refrain from doing? How shall he know, if he is in doubt, whether he ought to do *this* or *that*? And again, many things are done as being customary; there are usages, observances, ceremonial acts of which the origin is not known. Are these to be approved or condemned, when tried by the standard of the right service of God?

On the lines laid down by Ezra, and followed by the Pharisees and the Rabbis, the answer to questions such as these was to be sought in the Torah. Answers to some of them were found at once. In many passages, the words were explicit: "Thou shalt do so," or "Thou shalt not do so." In other passages, minute directions were given for the performance of certain acts. But cases would arise which were not expressly dealt with in the written Torah; and in such cases it became the duty of those who had most deeply studied it, to give a decision according to what they believed to be the intention of the Torah. They would infer from what it enjoined in a given set of circumstances, what it would enjoin in a somewhat different set of circumstances. This is what the early Sopherim did, and probably Ezra himself. And these decisions were on the one hand interpretations of the Torah, and on the other hand rules of conduct, to be applied as occasion might require. On both accounts they were carefully handed down, for the guidance and instruction of posterity. This is the Tradition of the Elders, and it extends from Ezra to the closing of the Talmud.

Now let us examine that tradition at some suitable point, say the beginning of our era, when Pharisaism was fully established. The Tradition of the Elders had become by that time a considerable body of decisions, originally given by way of interpreting the Torah so as to apply it in particular cases. These decisions were not written down, but preserved in memory. A Pharisee would say that all these were part of the Torah. They were not something added on to it, of merely human as opposed to divine authority. They were successive unfoldings of what had been hidden in the Torah from the beginning. The particular teacher who had given such and such an interpretation, thereby rendered explicit what had till then been implicit in the Torah. The Torah was not merely the written word of the Pentateuch, but the divine thought behind it. And to interpret the Torah was not to read something fresh *into* the written word, but to get something fresh *out* of it. If a Pharisee were asked, Where is the Torah to be found? he would answer: "The written word and the unwritten tradition together make up the Torah." And he would further say that the unwritten was more important than the written, because the unwritten unfolded what was concealed in the written, and extended its application. But it was all the Torah; and however far the process might be extended, however detailed the interpretation might come to be, it would still all be the Torah. For the Torah was in itself

inexhaustible, being the full revelation that God had made. And all the drawing forth and unfolding of its meaning was but the bringing into the consciousness of men what was and had been in the Torah from the beginning. This is the theory of Torah, as it was certainly held by the Pharisees, and embodied in the Talmud. Whether Ezra himself held it, there is no evidence to show, and I do not claim that he did. But it is clear that once the Torah is made supreme, this is one of the possible lines along which that idea could be developed. There are no doubt other lines; but the main characteristic of the Pharisees and of the Rabbis is that they followed this line, and no one can say that they did not do their work thoroughly.

What it amounts to is this, that the Torah was to be made, not merely in theory but in practice, a complete guide to life. The aim was to learn, from what God had revealed, His will in regard to every slightest action that a man might do. That could be learned from the Torah; and if it could be, it ought to be. No amount of study was too great, if, by that means, something more might be learned of how God willed that a man should live. Every fresh interpretation of the Torah, when once accepted as valid, was an extension of its meaning, or rather a transference of its meaning from the region of the unknown to the region of the known.

The result of this process was a detailed statement that such and such and such actions were to be done by anyone who would rightly serve God, because they were what God Himself had taught in the Torah, as being His will. This detailed rule of right conduct is what is denoted by the name *Halachah*.^[3]

Halachah is the most conspicuous element in Pharisaism, partly because it was the object of its authors' most close and continuous thought, and partly because its results were immediately visible in the actions which it prescribed. It was the Halachah which gave rise to the common opinion that Torah is the same as Law. It is the Halachah which has laid the Pharisees open to so much misrepresentation and obloquy. And, if there was one thing more than another that a Pharisee would extol as divine, it was the Halachah; because it was to him the express direction of God how rightly to serve Him.

Evidently the greatest care would be needed in the interpretation of the Torah, to draw from it the right conclusion. If the result—the Halachah—was to be accepted as the divine teaching, made explicit upon such and such a point, it could not be left to chance or caprice to determine the form in which it should be expressed. It was not open to any teacher to give his own interpretation upon some point and straightway to say, "This is the Halachah," *i.e.* this is the Torah made explicit upon this subject. What was to be regarded as Halachah was only determined after careful deliberation, guided by the recorded opinion of earlier teachers, where known, and also by recognised rules of interpretation. The end proposed in such discussion was either to define in minuter detail some general rule of conduct derived from the Torah, or else to connect some already existing usage with the Torah so as to show that it had divine sanction. The masters of Halachah were not engaged upon the construction *de novo* of a system of ethics or a system of law. They were engaged in adjusting to the standard of Torah all the actions of life, so that in every one of them the divine will might be carried out. And when it appeared that such and such was the real meaning of Torah upon a given point, the Halachah ascertained by valid methods, then they were not free to decide otherwise upon that point. Which is only to say, what everyone must say, that he is not entitled to go against the authority which he personally regards as supreme.

The Halachah covered part of the ground which is usually occupied in a nation's life by the civil and criminal law. And this is another reason for the common identification of Torah with Law. Law there must be for the regulations of social life, the performance of contracts, the prevention of crime, and the like. The Jews needed a civil and criminal law, as any civilised people needs it. And though in certain respects they were subject to the Roman law, (at all events in the time of the Pharisees and the Rabbis), yet they devised a system of their own, because they would have their law based on the Torah. The Roman government they obeyed from compulsion; to the Torah they gave the full allegiance of heart and will. The Halachah accordingly is, to a large extent, a system of civil and criminal law based upon, or derived from, the Torah, and resting for its sanction upon the divine revelation therein contained. And if the Halachah, in dealing with such subjects as must be dealt with in a code of civil and criminal law, goes into minute detail, makes subtle distinctions, draws very fine lines between

what is and what is not lawful, it only does what any adequate system of law is bound to do. And to say that the mass of detail and minute precept of the Halachah was, or must have been, oppressive to the ordinary Jew, is as true, or untrue, as to say that the ordinary Englishman is oppressed by the mass of detail and minute precept in the body of statute and common law by which his actions as a citizen are regulated, and which he is presumed to know. In the one case, as in the other, certain lines are defined by a recognised authority, for the regulation of action; but for any given person, it is seldom that he will be in a position to feel the constraint, or expressly to seek the permission, of the greater number of the laws under which he lives. If he is in that position, then the Englishman under the statute and common law, equally with the Pharisee under the Halachah, acknowledges a rule of conduct having authority over him, and not to be disobeyed with impunity. And the main difference is that, to the Jew, the authority of the Halachah was the authority of the Torah, and the Torah was the revelation of God. So that, to the Jew, the code of civil and criminal law was specifically sacred in a way that it is not to the Englishman.

But the Halachah, as the reader will wish to remind me, came very much more closely home to the Jew than a code of civil and criminal law could do. It was the rule of his private and domestic life, it defined his conduct both towards God and his fellow-man. Certainly it did. And the Pharisee would say, "Why not? Do I not need to serve God in everything I do, however small? And if the Torah can teach me exactly—yes, very exactly—what is most pleasing to Him, shall I not thankfully receive that teaching, and the more of it the better?" On this theory, it can easily be seen that there is no real distinction of great and small, important and trivial, in the things that are done in accordance with Halachah, because, in each case, what was done was regarded as a doing of God's will. In themselves, and apart from that, actions were trivial or important, great or small, and the Pharisees knew perfectly well that they were. But the Pharisee never regarded the mere doing of the action as sufficient; in all and every case there must be the purpose of serving God, the intention of pleasing Him. If he were assured that God had directed such and such a thing to be done, in a given case, then he would not say, "This is a trivial thing," or "This is a great thing"; but, "This is precisely what God would have me do at this moment and under these circumstances," and he felt a joy in doing it as exactly as he

could. All this is widely different from what Christians are accustomed to, in determining their actions; but my object is to make clear the point of view of the Pharisees, and to show that on the lines of their theory they were perfectly justified in those precise definitions of conduct, even in matters which on other lines would be considered trifling. However small might be the details upon which the Halachah was defined, it was still Torah that enjoined the doing of the action in this way and not in that way, though, on the face of it, there might seem to be no reason to do it in one way rather than another. And the authority of Halachah was the will of God. It is easy to pick out from the Mishnah instances of minute regulation upon points of no apparent importance—such, for instance, as the rules for dealing with an egg laid upon the Sabbath. If a Pharisee were challenged upon that, or any similar case, he would say: "The Torah, the divine revelation, extends over the whole of life; and its principles, when drawn out and applied to that particular case, yield the results stated in the Halachah, bearing thereon. The divine will is taught me in regard to that; and what concerns me is the doing of the divine will, and not the smallness of the occasion in regard to which I do it."

The duties enjoined in the Halachah were called "Mitzvōth," *i.e.* commandments. And the essence of a "mitzvah" was that it was a thing which God willed to have done. It was an occasion of service, a means offered to man by which he could in a given instance please God. Therefore the Pharisee delighted in being able to perform a "mitzvah"; and it never occurred to him that he was burdened by the weight or oppressed by the number of them. "The 'Mitzvōth,'" said a famous Rabbi, "were only given in order to purify Israel. The things commanded made no difference to God" (Rab, in Ber. R. § 44, p. 89^a). They were so many opportunities given, by the sheer kindness of God, for man to do his Maker's will. Why God should be pleased to direct that such things should be done just in that way and in no other, it was not for man to inquire. All that he had to do was to take the opportunity, and serve God in the manner which God enjoined. Merely to do the action, without the conscious assent of his will and the devotion of his heart, was no fulfilment of his duty; for what God desired was the harmony of the human soul with Himself in willing obedience, and not that, for instance, just 2000 cubits and no more should be the extent of a Sabbath day's walk.

R. Johanan b. Zaccai, a contemporary of Jesus, was once asked what was the reason for performing all the ritual of the sacrifices, and the other minutiae of the ceremonial law. He answered: "A corpse does not defile, and waters do not cleanse. But it is a decree of the King of kings. The Holy One, blessed be He, hath said, 'I have ordained my statute; I have decreed my decree. Man is not entitled to transgress my decree.' As it is written (Num. xix. 2), 'This is the decree of the Torah'" (Pesikta 40^b). That is a far-reaching saying, and gives the clue to the whole meaning of the Halachah, as the rule of right conduct deduced from the Torah, and applied by the Pharisees.

It is obvious that a theory like that lends itself to abuse, because it makes a severe demand for constant devotion on the part of the man who lives under it. Undoubtedly it could, and in some cases it did, lead to that mere formalism and hypocrisy which have been charged upon the Pharisees as a class. The Pharisees themselves were perfectly well aware of the danger, and that it was not always successfully averted. But most distinctly, such formalism and hypocrisy were only the perversion of Pharisaism and not inherent in it. And not only so, but for the Pharisees as a class, on their own showing in the Talmud, the Halachah, with its abundant "Mitzvōth," was felt to be a help and not a hindrance to him who would walk with God, a joy and not a burden.

The Pharisees, as was explained in the previous chapter, were those in their time who interpreted most strictly the Torah which in some degree all Jews recognised. It was they who worked out the Halachah, as it was they who carried out its principle into the minutest details of practice. On their theory of Torah, it was clearly their duty to be as precise as they were in their food and their dress, in the "tithing of mint, anise, and cumin," the wearing of their phylacteries just so and not otherwise, in their scrupulous regard to "clean" and "unclean," "lawful" and "forbidden," and the like. And it was only for the sake of being in a position to carry out more fully what they deemed to be the will of God, in all these and many other matters, that they separated themselves from those who were less careful, and formed themselves into groups, societies, companionships, as they called them (Ḥabūrōth). That separation is indicated by the name applied to them, Pherūshim, or Pharishaia in the common Aramaic speech. Their own name for themselves and each other was "Ḥaberim," "companions," as they were

"banded together for a full obedience" to what God had enjoined in the Torah.

It is easy to make Pharisaism appear ridiculous, a mere extravagance of punctilious formalism. But that is only possible to those who look at it from a point of view which is not that of its devoted adherents, or who judge it by a standard which they never recognised. Pharisaism is entitled to be judged according to what the Pharisees themselves meant by it, and its worth to be estimated by what they found in it, without comparison with other and widely different conceptions of the theory or practice of the service of God. I shall make no such comparisons, either now or later. My whole object is to present Pharisaism as I believe it really to have been to the Pharisees themselves, who, whatever else they were, were in deadly earnest about it all, and gave even to that Halachah, which more than anything else has brought scorn and ridicule upon them, the patient labour of at least six centuries.

I believe that, if the Pharisees had had nothing more than the Halachah, they would still have made a religion out of it. I mean, if they had developed from the Torah, which was to them the supreme revelation, only its Mitzvōth, they would still have been able to find in it some satisfaction for the spiritual wants of their souls. But they had much else, as will be shown in more detail in subsequent chapters. It was their task, or rather their absorbing delight, to elaborate the Halachah, to make it an ever more perfect exposition of the divine will in regard to the conduct at least of Israel; as it was their joy, in the obeying of those precepts, to "walk humbly with their God," as they certainly did. But it should be borne in mind that in addition to the Halachah, with its strenuous and salutary discipline of thought and action; there was the whole range of meditation upon divine things—speculation, imagination, inquiry into the mysteries of nature and human experience, devout wonder at the ways of God and the marvels of His world, all, by the light which He had given in His Torah. For great as the Halachah was, and divine and holy, the Torah was greater, for in it God had given all that He had to give. "Greater," said a Rabbi, "is one single word of Torah, than all the 'Mitzvōth' contained in it." And another: "All the world is not equivalent to one single word of Torah" (j. Peah. 15^d), meaning that the beholding of the perfect revelation of God is more than the realisation in action of a part of it. Again, extravagance, it will be said. Yet

only the extravagance of exalting in spoken word that which is owned as supreme in thought. The phrases may be to non-Jewish ears devoid of serious meaning; but in that way the Pharisees chose to express what in their hearts they owned as fully and perfectly divine, that Torah which to them was wisdom from God, the revelation of all truth, goodness, power, and love. It was to them the very expression of the mind and thought of God; and that is what they meant when they said that God looked upon the Torah when He created the world (Tanh. 2^b), or that He Himself studies the Torah every day. It is His self-communing made known to man.

All this, which covers the whole field that is occupied in other religions by doctrinal and speculative theology, was included in the Torah and formed part of the religion of those who owned it as supreme. And all this had its place in their thought along with the Halachah.

And at the heart of those same Pharisees there was the piety which sought and found God in the worship of the Synagogue and the home, which looked to Him with love and humble trust, and knew Him to be not far off but very near, no mere abstract power, no hard taskmaster, but the Heavenly Father.

These things I believe to be true of the Pharisees; not of every individual, just as one would not say of every Christian that the full glory of his religion was realised either *in* him or *by* him, but true as the full expression of what Pharisaism meant, and true in a larger measure as the experience of those who professed it.

Beneath all that outward guise of unfamiliar phrase and uncongenial method, so far removed from all that to Christians seems the natural expression of religion, there was nevertheless the communion of living souls with the living God; and however different was the way in which they felt called to walk, from that in which other men walk, in that way they steadfastly continued; and, knowing in their hearts that God was with them, they "trusted in Him and were not ashamed."

CHAPTER III

PHARISAISM AND JESUS

It is from the New Testament that the ordinary Christian reader gets his ideas about the Pharisees. There is mention in the Gospels of frequent encounters between Jesus and the Pharisees; and the Epistles of Paul contain much severe comment on the Pharisaic conception of religion. No one, who desires to understand what the Pharisees themselves meant by their religion, can afford to pass by, without careful examination, these records of unfavourable criticism; and he must enter upon such examination not by any means with the preconceived intention of confuting the critics or of agreeing with them, but simply for the purpose of getting to know why there was such criticism, and what truth lay on each side in the controversy. With this object, I shall devote one chapter to the study of the opposition between the Pharisees and Jesus, and another to that between Pharisaism and the teaching of Paul. Incidentally, it will be possible to find room for various points which bear upon what has been said in the foregoing chapters.

It will be admitted that to discuss the relation of the Pharisees to Jesus is to tread upon delicate ground; for, whatever Jesus was, the place which he holds in the thought and reverence of Christians is shared by no one else; and it is less easy to say the right thing when he is regarded as a party in a controversy than when he is contemplated as in himself supremely great. It is less easy, because the controversy was one in which sharp and bitter things were said on both sides; and to regret that they were said, and still more to suggest that they were said without sufficient warrant, is to cast

inevitable reflections on those who said them. It is easy to say that the Pharisees were wrong—that is only what is expected of them; it is another thing to say that Jesus was wrong, that even he did less than justice to his opponents, and, in his intercourse with them, showed upon occasion qualities which were extremely human but not obviously divine. I yield to no one in my reverence for Jesus; he is, to me, simply the greatest man who ever lived, in regard to his spiritual nature. Some may think that too little to say of him; others may think it too much. I do not stay to argue the point; I only wish to make clear, beyond any misunderstanding, my own position. What I have to do at present is to deal with the fact that between Jesus, being such as I have indicated, and the Pharisees, there was an opposition of thought and principle too great to be resolved into harmony; and I wish to study that opposition, so as to judge fairly—that is, without prejudice one way or the other—the real meaning of it. If, on the one side, the verdict is expressed in the phrase, "Scribes and Pharisees, hypocrites," on the other it is summed up in the assertion, to be found in the Talmud, "Jesus practised magic and led astray and deceived Israel" (b. Sanh. 107^b). To say offhand that one of those assertions is true and the other false is merely to beg the question. It is more to the purpose to understand how it came about that they were said. That such a statement should be made about Jesus is to Christians hard to endure. They feel it to be unjust and untrue. That such a statement should be made about the Pharisees is to Jews hard to endure. They feel it to be unjust and untrue. They are the weaker party, and they have the right to be heard.

In view of the sharp contrast expressed in the two sayings just referred to, it might seem that the Pharisees and Jesus had nothing in common. And indeed the final breach was inevitable and irreparable. Religion as the Pharisee conceived it could not come to terms with religion as Jesus conceived it. As to that I will say more presently. But it is well to bear in mind, and even to emphasise, the fact that there was nevertheless a considerable amount of common ground between them, much more than is usually supposed. With a great deal of what Jesus said about God, and about man's relation to Him, no Pharisee would feel disposed to quarrel, or, so far as the evidence goes, ever did quarrel. The discussions in the Gospels did not turn, for instance, on the question whether Jesus should or should not have referred to God as the Father in Heaven, or whether forgiveness was

God's sure answer to repentance. No Pharisee ever challenged him on either point, or on many another of the directly religious and ethical sayings which he uttered. A Pharisee could not so have challenged him without disowning his own religion. Modern Jewish historians not unnaturally lay much stress upon the similarity between the teaching of Jesus and that of the Rabbis, at all events the best of them; and that similarity cannot be denied, whatever may be the explanation of it. Moreover, it is not merely a similarity of phrase, though no doubt in some cases it is nothing more. That proverbial sayings should be used alike by Jesus and the Rabbis is not wonderful. Such were, for instance: "It is enough for a disciple to be as his master" (b. Ber. 58^b); "With what measure ye mete, it shall be measured to you again" (Sot. i. 7); "Sufficient unto the day is the evil thereof" (b. Ber. 9^b); "Physician, heal thyself" (Ber. R. xxiii. 4), which Jesus himself mentions as a familiar proverb (Luke iv. 23).

These were part of the common stock of daily speech, and are no evidence either for or against a similarity between the ideas of Jesus and those of the Pharisees. But when Jesus said, "Repent, for the Kingdom of Heaven is at hand," he was referring to what was already familiar to his hearers, and had been, long before John the Baptist had begun to deliver his message. And when the Sermon on the Mount was first spoken, it was not all strange and new to the hearers. The general character of the sayings there grouped together is thoroughly Jewish; so much so that one could hardly imagine a Greek saying them. There are differences, certainly, between the sayings contained in the Sermon on the Mount and the Rabbinical parallels to them; and for some of them no Rabbinical parallels can be found. But, take it altogether, the Sermon on the Mount would seem to a Pharisee to be very like what he believed already. Even the Lord's Prayer would not be wholly new. Certainly some of its phrases can be paralleled in the Rabbinical literature; though no less certainly there are others which cannot. For the prayer as a whole, there is no parallel in Jewish sources—a very significant fact. But "Our Father which art in Heaven" is Jewish; so also, "Hallowed be Thy name. Thy Kingdom come"; "Give us this day our daily bread"; "Forgive us our debts"; "Deliver us from the evil." I am not sure about "Lead us not into temptation." And if "Thy will be done" means the same in the Lord's Prayer as it meant when uttered in Gethsemane, there is no parallel to it in Jewish sources.

This carries us into the very heart of the religion of Jesus. And in regard to these fundamental beliefs there was no disagreement between him and the Pharisees. I am perfectly well aware that the Rabbinical parallels, even those most complete, are found in literature which is later than Jesus, and I shall rightly be challenged to show on what ground I hold that these later Jewish dicta represent the beliefs of the Pharisees in the time of Jesus. I do not agree with Jewish scholars who say that Jesus borrowed them all from the Rabbis of his time. A man of such independent thought as Jesus certainly was, would hardly need to go in search of such ideas, as not having them already himself. It is inconceivable that Jesus should never have thought of calling God "Our Father in Heaven" until Hillel or Shammai had instructed him to do so. The point scarcely needs to be laboured. I put on one side altogether the theory that Jesus was indebted to the Rabbis of his time for the beliefs, and the verbal forms of them, which he shared with the Pharisees.

But with no less decision must the theory be rejected according to which these various beliefs and phrases were borrowed from Jesus. If they had been, *i.e.* if Pharisees who heard Jesus say these things had adopted them as their own, and even to some extent made them current in their own religious teaching, it is perfectly certain they would never have been allowed into the Talmud. Suppose, for instance (which is what a great many people suppose), that Jesus had been the first to use the phrase, "Our Father which art in Heaven," so that to Jewish ears that had been entirely unknown until he used it. In that case, the origin of the term would have been perfectly well remembered; and the feeling against Jesus in Pharisaic circles was far too strong to allow, for a moment, the use of a phrase known to have been coined by "the Sinner of Israel." The earliest occurrence of the term in the Mishnah, so far as I know, is at the end of chapter ix. of the treatise Sotah; and there the person who uses it is R. Eliezer b. Horkenos. This particular Rabbi is very well known. He lived at the end of the first century of our era. He got into trouble on one occasion; and the reason of his trouble, according to his own admission, was that he had unwittingly praised something that was told him, and which he afterwards learned was a saying of Jesus. He was filled with horror at the thought that he could ever have approved anything which had emanated from that teacher. Now R. Eliezer himself was probably too young to have seen and heard Jesus; but

his old master, R. Johanan b. Zaccai, was a contemporary, and must have witnessed the tragedy in Jerusalem. If Jesus had invented the term, "Our Father in Heaven," that fact would be well within the knowledge of R. Eliezer, and he would have cut off his right hand sooner than have used the phrase. Instead of that, he used it with devout intention: "Who is there on whom to lean, except our Father who is in Heaven?" It was a phrase which expressed the ground of trust in God. And neither to himself nor to anyone else did it occur that he was using a phrase either recent or suspicious in its origin.^[4]

All this goes to show that there cannot have been any borrowing from Jesus on the part of those who recorded in the Talmud sayings similar to his, or who used phrases implying similar beliefs. It is just conceivable that slight and unimportant sayings of his might have been picked up and made current amongst the Rabbis. But that phrases so important and so numerous as those which are offered as parallels to the teaching of Jesus, should have been borrowed from him, is, to anyone who knows the Talmud at all, a sheer impossibility.

There remains, accordingly, this alternative, that such phrases represent what was familiar to and accepted by both Jesus and the Pharisees, as ground truths about which there was no dispute. Jesus did not explain, as he had no need to explain to his hearers, why he called God the Father in Heaven. He took it for granted that they knew whom he referred to and what he meant. And no Scribe ever asked him to explain his meaning. It is clear that, wherever it came from, the term "Father in Heaven," as applied to God, was not new in the time of Jesus. It was part of the common stock of religious ideas, a natural element in the Jewish religion of that time. When and how it first came into use I do not know. It is not found, in so many words, in the Old Testament or the Apocrypha, though there is a broad hint of it in Isa. lxiii. 16, "Surely Thou art our Father, etc." If it be (and who will deny that it is?) one of the great watchwords of spiritual religion, then observe that it can only have come into use in the time between the Maccabees and Jesus; and no other source for it can be deemed so probable as the Synagogue, the home of the religion of Torah.

And much the same argument applies to the rest of what can be shown to be similar in the religious ideas of Jesus and those of the Rabbis. They cannot

have been borrowed from Jesus. They were known in his time because he gave utterance to them, and was not challenged for doing so. They were known and devoutly believed by the Talmudic Pharisees; there is no indication of their being a novelty. They must therefore represent substantially what was held and believed by the Pharisees in and before the time of Jesus.

It may, of course, be argued that Jesus put a deeper meaning into the common terms than the Pharisees did. But this is extremely difficult to prove; and merely to say that he did is to beg the question. Who would venture to say that all Christians put precisely the same meaning upon the common terms which they employ, or that a given term will not mean to a deeply spiritual Christian much more than it would to a shallow and frivolous one?

I do not contend that all the Pharisees, or any of them, were the equals of Jesus in spiritual depth, just as I would not contend that all Christians, or any of them, were his equals in that respect. But there is certainly no warrant for saying that all Pharisees understood the common phrases of their religion in a low and narrow sense, as compared with the sense in which Jesus understood them. To say that "Our Father in Heaven" meant for the Pharisee only that God had chosen Israel to be His own people, and that the name Father "did not in the Jewish theology lead to a deeper insight into the nature of God as Love," is one of the flagrant misrepresentations with which Weber's book abounds (Weber, p. 150). There may have been Pharisees to whom the phrase meant nothing more; there certainly were Pharisees to whom it meant that God was near to each one of His children, in love and mercy and personal care. That the Pharisee thought of God only, or even mainly, as distant and inaccessible, or as a taskmaster whose service was hard, is a baseless fiction. Even, then, allowing that Jesus, by the depth and power of his own spiritual nature, did read into the common terms of Jewish religion a fuller meaning than had been previously found there, he nevertheless used those terms because they served to carry that meaning, as they stood and without alteration.

We have, then, reached this position, that both Jesus and the Pharisees shared in common a Judaism expressed in the terms of a spiritual Theism, developed in the Synagogue and the home, and learned there alike by the

Pharisees and by Jesus. It was certainly not the creation of the Scribes, *quâ* Scribes, so that Jesus, or anyone else, would need to have sat at the feet of some Gamaliel in order to learn it. It was the spiritual inheritance of the Jew, into which he entered by natural piety, and from which neither the simple and unlearned nor the Scribe versed in the subtleties of the Halachah was excluded. I shall have more to say about this in the concluding chapter.

Such, then, was the common ground which Jesus shared with the Pharisees. We have now to study the opposition between them, which finally drove them apart in irreconcilable antagonism. The true nature of that opposition, the cause and ground of it, did not appear at the outset. Indeed, it may be questioned whether either the Pharisees or even Jesus himself ever fully and consciously realised the inner meaning of it. That the Pharisees knew why they distrusted, feared, and finally helped to destroy Jesus, is true enough. And Jesus expressed, in the plainest terms, the ground on which he denounced the Pharisees. But whether on either side the real significance of the struggle was clearly seen, is to my mind doubtful. Jesus may have seen it. I do not think the Pharisees did, or ever have done, from that day to this. To bring out that meaning, or what seems to me to be that meaning, will be the point to which I shall lead up in the remainder of this chapter; and with that in view I shall survey the main incidents of the controversy as they are recorded in the Gospels.

The appearance of Jesus as the successor of John the Baptist, taking up his message and proclaiming it with a force of his own, was enough to draw immediate attention to Jesus, and to incline men to give him a favourable hearing. This is to put the matter from the point of view of the people in general, and the Pharisees in particular, who were in possession of a settled religion, and to whom Jesus was an unknown man who had to make his name. That he preached repentance, and proclaimed the near advent of the Kingdom of Heaven, would be only a reason for listening to him. No Pharisee, nor any other Jew, with the national history behind him, would question for a moment that God might at any time raise up some messenger to proclaim His will. What else had the prophets been, in the old days? And had not John the Baptist been much like one of them? That John, and after him Jesus, had called his hearers to repent, was no reason whatever for resenting his boldness, or for denying his right to speak. It was the natural thing for a prophet to do; as, in much later times, it is natural for a revivalist

to convict his hearers of sin, and lead them to the mercy seat. They do not resent being called sinners, and are only grateful for the glad tidings of the mercy which saves them. So with the Pharisees; there would be no disposition on their part to find fault with Jesus for coming forward as a preacher of repentance, let alone a herald of the Kingdom.

The point at which distrust of, and uneasiness about, Jesus first entered the minds of the Pharisees, is probably indicated by the saying that "he taught as one having authority, and not as their Scribes" (Matt. vii. 29).

To the conservatism which is commonly found in the adherents of a religion long established and settled in its ways, there was added in the case of the Pharisees a special veneration for the principle of traditional authority. If at first they merely noticed that Jesus was very independent, and wanting in the deference which was due to the sages and elders of his people, they could not fail before long to discover that this was something more than unconventional freedom of speech and manner. If he had kept to his preaching of repentance, and the announcement of the Kingdom of Heaven, that might pass; but he spoke of other things besides repentance, and put forward views of his own as to what the Kingdom implied. It would seem that he was assuming the position of a teacher of religion in general, since he touched upon subjects which were not specially connected with his mission. To the Pharisees he appeared as a sort of unregistered practitioner, if the comparison may be allowed. Much of what he said they could not but agree with; but how came he to say it? Some things they did not agree with, and what right had he to set up his own opinion against the teaching commonly received and held? So they began to ask, "Whence hath this man this wisdom?" and "by what authority doest thou these things?"^[5]

Christians are accustomed, and rightly, to regard it as one of the marks of the greatness of Jesus that he did speak out of his own mind and heart, as having his authority within himself. But I am trying to put the case as it presented itself to the Pharisees, looking at it from their own very different point of view. There was not amongst them any office exactly corresponding to the position of a clergyman or a minister. They were all laymen; and if the priests had special functions, that was only in connection with the ritual of the Temple, and not with the giving of religious instruction. After the Temple was destroyed, the priest was only

distinguished from the rest by certain privileges of precedence, and certain disabilities: he had no ministerial function as leader of a congregation. Neither in the time of Jesus nor after it were the Pharisees a priest-ridden community.

Of far greater importance than the priest was the Scribe: but the Scribe was only a layman. He was not consecrated to a sacred office, and to that extent set apart from the rest of his fellow-men: he was indeed chosen and appointed by those who were competent to do so, but, in regard to what he might or might not do, he was in just the same position as any Pharisee who was not a Scribe. What distinguished him from the rest of his brethren was that he made it his special business to study the Torah, both written and unwritten, and to qualify himself to be a teacher of it. His proficiency was recognised and vouched for, by those who were already accepted religious teachers, by some form of ordination. To become a Scribe was not so much to take orders as to take a degree, though that is not an exact parallel.

I have explained in the preceding chapter the way in which the Torah was regarded as the embodiment of the full and final revelation which God had made to Israel. It was the source of all knowledge, the supreme authority, the regulator of all action. It included within its range the whole duty of man, his entire relation to God and to his fellow-men. The written Torah was contained in the Pentateuch. The other canonical books of the Old Testament were to be read in the light afforded by the Torah, and to be valued for the help they gave in illustrating its meaning, making clear what had been left obscure in the Pentateuch. That there could be any contradiction between the secondary scriptures and the Pentateuch was in theory impossible. And when in the case of certain books, namely, Ezekiel, Ecclesiastes, and the Song of Songs, contradictions were alleged, the alternatives were to explain away the contradiction or to reject the books from the canon. The books were retained, by an exercise of dialectic subtlety which is graphically indicated in the statement that a certain Rabbi burnt the "midnight oil" to the extent of three hundred barrels, in his studies to reconcile the book of Ezekiel with the standard of the Torah (b. Shabb. 13^b).

The unwritten Torah was the explication of what was implicit in the written Torah, the unfolding into fuller detail or greater clearness of what was

barely suggested in the Scripture. Evidently, therefore, to know what was contained in the Torah, *i.e.* what God had revealed, it was needful to know the unwritten as well as the written Torah, the former even more perhaps than the latter. And this could only be done by learning and remembering what had already been taught and accepted as a valid interpretation by previous teachers. A Tradition of the Elders was a necessary result of a religion of Torah. If a Pharisee were offered some religious teaching or were invited to do some action as a religious duty, he would ask (supposing it was new to him), "Is this Torah?" And he would not be satisfied until he had been shown that it was. The proof would be, either that it had already been taught by such and such a recognised teacher, or that the instructor, *being himself a recognised teacher*, assured him that it was so. This was the constant, and even necessary, form in which instruction was given in the meaning of Torah. And it should be carefully observed (a point which is not usually understood) that this method of Tradition by no means excluded individual initiative or progressive development of thought on the part of those who handed on the Tradition. There was no finality in the Torah; the diligent and devout student of it was always discovering something new, and if he could show (as he usually could show) that his new truth was in the Torah, that was an addition to its known meaning, while yet the Torah remained unaltered in the infinite richness and fulness of its contents, the perfect and divine revelation. I have shown that progressive development was most marked along the line of the Halachah. But there was even more of free speculation, individual initiative of research into spiritual things, though there was less of methodical advance, along the line of the Haggadah, as will be explained more at length in the fifth chapter. But there also the method, or rather the form, of Tradition was the one mainly used, presumably as being that which gave greatest security for the validity of the results obtained. The Pharisees in the time of Jesus, no less than the Rabbis of the Talmud, were well able to think for themselves, and in fact did so, upon religious as upon other questions. And the reason why they uniformly employed the method of Tradition was not that they were hidebound slaves of custom, but that their religion was the religion of Torah. As the Torah was not a burden, so the Tradition of the Elders was not a constraint. Christians may, and usually do, think that the burden and the restraint must have been felt. But that is only because the religion of Christians is not a religion of Torah; and one who is accustomed to the conditions and

conceptions of the former, is not likely to appreciate, and seldom tries to understand, the conditions and conceptions of the latter. Equally, of course, one who has grown up in the habit of thought congenial to the religion of Torah does not easily appreciate and may seriously misunderstand the manifestations of religion, in thought and speech, where the Torah is not the controlling element.

When, therefore, the Pharisees became aware that Jesus was one who "taught as having authority, and not as their Scribes," they were confronted with a fact which they were not in a position to understand, to the meaning of which they had no clue, and which could only appear to them as a contradiction of their own principles. It would be extremely perplexing to them to know what to make of Jesus, and how to deal with him. What he said seemed to be good; but was it Torah? It might be; but how could they know that? Some of it, of course, they were familiar with—the common terms of the spiritual Judaism to which reference has already been made. But some things were new. Their own accepted teachers, the Scribes, had not taught these things, i.e. had not declared them to be Torah. Jesus was not a Scribe. He did not say, "This is Torah because I have learned it from so-and-so." And, not being a Scribe, he was not competent to declare it as from himself. How could they receive his teaching, without being unfaithful to what they already believed? And if they were unfaithful to that? It should be constantly remembered that the religion of Torah meant to the Pharisee the whole of religion, all that was possible of communion with God, and not merely of obedience to precept. Within its characteristic form there was room for all of that spiritual Theism which, as has been shown, the Pharisees had in common with Jesus. If he did not hold that spiritual Theism under the form of Torah, they did; and it was in its essence much the same for both. They did not know that the form of Torah, with its corollary of Tradition, was not necessary to the retention of the religion which brought them close to God in love and obedience, in joy and trust. And it seemed to them that they risked the loss of all that, if they tampered with the conception of Torah, or listened to one, however persuasive and however eloquent, who taught "not as their Scribes." If this was the point of view from which the Pharisees regarded Jesus, when they began to make closer acquaintance with him, then it is easy to understand how their feeling towards him would be something much deeper than mere petty jealousy or

the prejudice of stupid bigotry. No doubt there was some of that. Inability to understand can express itself in ways which are mean and contemptible, as is seen in religious polemic in every age. The Pharisees had no monopoly of ignorant spite. But what I contend is that the attitude of the Pharisees towards Jesus will bear a much higher interpretation than mere arrogant jealousy against an unauthorised intruder. It was a repugnance towards teaching which they could by no means bring within the frame of their religion, and they could not imagine any other frame for it; it was a shrinking fear of a teacher who, with holy and good words and deeds, seemed yet to be leading them away from the only ideal they could recognise. And leading not only them but also the people, who were less able to guard against the danger, and who, as they observed, "heard him gladly," and even "hung on his words listening." A religion so deeply wrought into the souls of the best part of the nation as the religion of Torah had been since the days of Ezra, so strongly held, so passionately loved, so marked in the individuality of its features, could not enable those who clung to it to unlearn the ways of their fathers, and to adapt its contents to a new and unfamiliar form. The religion of Torah, for all that it had much in common with the religion of Jesus, could never pass over into the form which he gave to his religion. And although Christians may say it was "blindness" on the part of the Pharisees, they are not justified in saying that it was also "hardness of heart," which made them shrink from Jesus.

The occasions upon which they came into conflict with him were probably numerous; but the following may fairly be taken as representative of the rest:—Healing on the Sabbath; the question of divorce; the argument about Corban. Along with the first may be included the defence of his disciples for plucking the ears of corn on the Sabbath. And as a supplement to all may be taken the long invective against the Pharisees in Matt. xxiii. Whether this list follows the chronological order I do not know, and for the purpose in hand it does not matter. The difference in principle is not affected by questions of date.

It will be noticed that I have not included the question of the Messiahship of Jesus. Of course the Pharisees, like everybody else in Israel at that time, speculated whether Jesus was "he that should come," or whether they were to "look for another." But they did not directly challenge him on that point, as they challenged him on the points I have already named. Their challenge

about the Messiahship was indirect. Their position would be that a man who set himself against the Torah could not be the Messiah. Conceivably the Messiah might in some respects supersede the Torah, but he could never oppose it. And when Jesus was driven to declare that in certain points the Torah did not represent divine truth, it was from that moment impossible that the Pharisees should recognise him as the Messiah, and inevitable that they should regard him as a dangerous heretic. This may explain why the Pharisees did not ask him, in so many words, whether he was the Messiah or not, and also did not offer objections to any supposed claim to that position made by him or on his behalf. The question was only put to him directly by the High Priest at the trial, and therefore not by the Pharisees at all. And it is scarcely likely to have been put then as a challenge to argument; it was much more an attempt to get evidence on which to convict him out of his own mouth. Jesus was condemned and executed on a more or less political charge, for which the question of Messiahship provided a useful basis; but he was really rejected, so far at all events as the Pharisees were concerned, because he undermined the authority of the Torah, and endangered the religion founded upon it.

That Jesus really did so is beyond dispute. His final position was one which could not be reconciled with recognition of Torah as the Pharisees regarded it. But it may well have been, and I think it was, the case that he was only gradually driven to this position, and that when he began his ministry he was not conscious of any discrepancy between what he was teaching and what the Torah implied. That is presumably what he meant when he said: "Think not that I came to destroy the Torah and the prophets; I came not to destroy but to fulfil" (Matt. v. 17). His quarrel, at that time, was not with the Torah itself, but with the Scribes and Pharisees, as being unsatisfactory exponents of it. "For I say unto you, That except your righteousness shall exceed the righteousness of the Scribes and Pharisees, ye shall in no wise enter the Kingdom of Heaven" (Matt. v. 17, 20).

There is here no opposition between the conception of Torah and that of life under the Kingdom of Heaven. Jesus also regarded the Torah, at this time at all events, as being the supreme and final revelation that God had given to Israel. To fulfil it was not merely to obey its precepts but to make one's whole life, in thought, word, and deed, respond to that divine influence. And Jesus maintained that the Pharisees did not go the right way to attain

that end. He himself came to fulfil the Torah, by making that complete response to its influence, and by showing how it could and ought to be made. Any notion of getting rid of it after having once and for all satisfied its claims, belongs to a circle of ideas of which it is safe to say that Jesus never dreamed.

But yet, if the explanation here offered be correct, it is evident that what he still supposed to be Torah, and the religion of Torah, was not so in fact. He had grown up with the conception of Torah, like any other devout Jew; and he did not at once become aware that what he conceived religion to be was something that could not be expressed in terms of Torah. The Pharisees perceived the discrepancy sooner than he did; and while he found another form for his religion, they adhered to the old form because that was what they knew, and they could not comprehend anything different. To them, what he was doing was not reconstruction or amplification or exaltation of the old religion, but destruction of it. And, so far as the conception of Torah was concerned, they were quite right. Torah and Jesus could not remain in harmony. The two were fundamentally incompatible. And the Pharisees, being determined to "abide in the things they had learned," viz. Torah, were necessarily turned into opponents of Jesus.

This cleavage showed itself only gradually; and what forced it on the consciousness, first of the Pharisees and then of Jesus himself, was shown in the several occasions of dispute, where appeal had to be made to first principles.

I take first the case of the cure of a sick man on the Sabbath, as it is recorded in Mark iii. 1-6: "And he entered again into the synagogue; and there was a man there which had his hand withered. And they watched him, whether he would heal him on the Sabbath day; that they might accuse him. And he saith unto the man that had his hand withered, Stand forth. And he saith unto them, Is it lawful on the Sabbath day to do good, or to do harm? to save a life, or to kill? But they held their peace. And when he had looked round about on them with anger, being grieved at the hardness of their hearts, he saith unto the man, Stretch forth thine hand. And he stretched it forth, and his hand was restored. And the Pharisees went out, and straightway with the Herodians took counsel against him, how they might destroy him." It is evident that the narrator of that story did not love the

Pharisees, and it would not be unreasonable to take a heavy discount off it on the ground of prejudice. But we may leave all that out of account. Jesus challenged the Pharisees to say whether, according to the Torah, he might or might not cure the man on the Sabbath. If he got no answer, it was certainly not because they had no answer to give. They would say, "Why do on the Sabbath what could be done on another day, if the doing of it would break the Sabbath? The Torah says that the Sabbath is to be kept holy; and this is done by refraining from certain kinds of action, in themselves perfectly right and proper. We believe that the right way of fulfilling the Torah—doing the will of God—is to do so-and-so. And we believe that in order to save life, when it is in danger, it is the will of God that we should break the Sabbath, in any way that may be necessary. But that we should not break it for any less urgent cause. Here is this man with a withered hand. He is in no immediate danger. Certainly it is a good thing to cure him. But why not have cured him before? And if his cure should stand over for a day, is that so great a harm to one who has been some time in that condition that the Sabbath must be made to give way to it?" That is the sort of answer that the Pharisees would make. Of course, the rejoinder is ready to hand, that to do good is right on any day, Sabbath or no Sabbath. But that is not the point. The challenge of Jesus was, "Is it *lawful*?" *i.e.* "Is it in accordance with Torah?" And the Pharisees were perfectly justified in holding that it was not in accordance with Torah. If Jesus interpreted Torah in a different sense, that was his affair; and they would not be the more disposed to agree with him if it be true that he "looked round about on them in anger." His action was in effect an attack on Torah, whatever his intention might be.^[6]

The question of Sabbath-breaking was raised in another form in the incident described in Mark ii. 23-28, and elsewhere. This is chiefly of importance because it is made the occasion for the declaration that "the Sabbath was made for man, not man for the Sabbath." The action of the disciples in plucking the ears of corn on the Sabbath was challenged by the Pharisees. Jesus defended it by an appeal to Scripture, the relevancy of which is not obvious, and by the declaration just quoted, which is only a valid defence if it means that the Sabbath can be put aside by man for his own convenience, however slight the occasion. The Pharisees would certainly agree to the declaration about the Sabbath (it is found, b. Joma 85^b), but they would not admit the interpretation which Jesus put upon it. They would say that the

Sabbath was a divine institution, intended for the benefit of man; and that, while for grave reason it might be sometimes right to break the Sabbath, yet that was not left to the caprice of anyone who chose to break it. If that was allowed, the blessing of the Sabbath would be gone and the divine intention frustrated. From the point of view of Torah, no other answer was possible. And Jesus, in his treatment of the Sabbath, by dispensing with the obligation of the hitherto customary observance of it, was disclosing the fact that he did not now look at the matter from the point of view of Torah.

How far he was conscious of this divergence, or rather, when he became aware of it, can hardly be determined. But in the controversy with regard to divorce the divergence became unmistakable. The controversy was strictly not about divorce in itself, but about the attitude of the Torah towards divorce. Jesus condemned divorce (Mark x. 2 fol.). Whether he allowed the one exception or not, his general condemnation of the practice is not open to question. But the Pharisees also condemned divorce. They could not abolish it, but they sought to restrict what had been the immemorial freedom of the husband to put away his wife at his pleasure. It is often urged against Hillel and Akiba that they allowed divorce for frivolous reasons, and Shammai is praised because he would not allow divorce except for unfaithfulness. Neither the blame nor the praise is justified or even called for. The only difference between Hillel and Shammai on the subject was whether the Torah allowed divorce for trivial reasons, or restricted it to the one grave reason. It was a question of interpretation of the authority recognised alike by Hillel and Shammai. It was not a question of the private opinion of either of them upon the ethical character of divorce. If Hillel and Akiba had seen their way to interpret the Torah in accordance with their own ethical judgment, they would certainly have done so. And, in fact, the Talmudic treatment of the subject is in the direction of making divorce difficult, and of giving protection, where possible, to the wife against the caprice of the husband. But in face of the fact that the Torah, the written Torah, expressly allowed divorce (Deut. xxiv. 1), not even Hillel and Akiba could establish the contrary view.

So far as the condemnation of divorce on its own account was concerned, the Pharisees would be in agreement with Jesus, though probably not to the extent of admitting no exception, supposing that Jesus himself went so far. The point of controversy was in regard to the Torah as bearing on the

subject. This is clear, because Jesus himself appealed to the Torah. He asked the Pharisees, "What did Moses command you?" And it appears that what he was thinking of was the passage, Gen. i. 27, "Male and female created he them." But the Pharisees quoted against him the express command, Deut. xxiv. 1, "Let him write a bill of divorce, etc." So that here there was Torah against Torah. The Pharisees would say, "We agree with you that divorce ought, so far as possible, to be restricted and avoided; but, nevertheless, we cannot condemn it outright, because the Torah, which is God's own teaching, expressly allows and even enjoins it. But you, who do condemn it outright, how do you reconcile that with Torah?" Jesus answered that the permission to divorce was a concession made to human imperfection, and that the real intention of God was expressed in the passage in Gen. i. 27. But that answer implied necessarily that the written Torah was, in this one case at all events, not divine and perfect, since it contradicted itself. And such an answer was fatal to a recognition of the supremacy of Torah, as the Pharisees understood it. To them, the fact that Jesus had, in this one instance, definitely repudiated the divine authority of Torah, would outweigh the fact that upon the subject of divorce itself they were to a large extent in agreement with him. The result of the controversy would be a deepened impression, alike on the Pharisees and on Jesus, that his standpoint was not that of Torah, and that his ground principle was irreconcilable with theirs.

Another phase of the opposition between Jesus and the Pharisees is shown by the incident described in Mark vii. 1-23, of which the catchword is "Corban." The Pharisees and Scribes ask Jesus "why his disciples did not follow the Tradition of the Elders, but ate their bread with unwashed hands." Jesus turned upon them and charged them with making void the word of God by their Tradition. "For Moses said, Honour thy father and thy mother; and, He that speaketh evil of either father or mother, let him die the death. But ye say, If a man shall say to his father or mother, That, wherewith thou mightest have been profited by me, is Corban, that is to say, Given to God, ye no longer suffer him to do aught for his father or his mother; making void the word of God by your Tradition; and many such like things ye do." Now, even if the charge brought against the Pharisees were true, that they would not allow a man to be released from a vow in order to honour his parents, they would not thereby be "making void the

word of God by their Tradition." On the contrary, they would be upholding it. For, while Exod. XX. 12 says, "Honour thy father and thy mother," Num. xxx. 2 says, "When a man voweth a vow unto the Lord, or sweareth with an oath to bind his soul with a bond, he shall not break his word, he shall do according to all that proceedeth out of his mouth." No provision is made for annulling vows, except those of a wife by her husband or her father under certain conditions. The practice of annulling vows generally was introduced by the Rabbis, and they admitted that it had no direct sanction in Scripture. If, therefore, in the case of a man who had made a vow to the detriment of his father and mother, they refused to release him, they would be upholding Scripture against their Tradition. True, Scripture would be opposed to Scripture; but the responsibility for that rested on Moses, not on them; and the practice of annulling vows would have the effect of removing that contradiction, and was perhaps so intended. However that may be, the charge against the Pharisees of making void the word of God by their Tradition would not be borne out in this instance, even if it were true that they refused to release a man from a vow of the kind described.

But the assertion that they did so refuse is contrary to the express statement of the Mishnah, which is the codified Tradition; and is moreover entirely at variance with the spirit of Rabbinical ethics in regard to respect to parents. The crucial passage is M. Nedar. ix. 1, and it runs thus: "R. Eliezer says, 'They open a way for a man on the ground of honour to his father and mother.' The Wise forbid. R. Zadok said, 'Before they open a way for him on the ground of honour to his father and mother, they should open it for him on the ground of honour to God. If this were so, there would be no vows.' The Wise agree with R. Eliezer, that in a matter which is between a man and his father and mother they open a way for him on the ground of honour to his father and mother." Two cases are here distinguished; in the first, if a man makes a vow of any kind, he is not to be released from it on the ground that it would bring reproach on his parents to have such a rash and foolish son. He must be made to keep his vow. But in the second case, if a man make a vow upon a matter between himself and his parents, i.e. one which, if he keep it, will occasion injury or loss to them, then he is to be released from it on the ground of honour to his parents. The commentators on the Mishnah all agree in this interpretation, and there is no doubt as to the intention of the Mishnah. Moreover, there is no indication

that there ever had been a different opinion, as if the statement now made in the Mishnah had taken the place of an earlier statement. There is no evidence that the Pharisees ever held or taught the doctrine attributed to them by Jesus, while it is contradicted in the most definite manner by the declarations of their own legal authorities.

The charge is all the more pointless because the Pharisees, whatever else they may have failed in, always showed the most devoted respect to parents. A more unfortunate ground of attack could hardly have been chosen than that which is taken in the Corban incident; and the Pharisees would not have had the slightest difficulty in repelling the charge brought against them. Whether the error involved in the account of the incident be due to the Evangelist or to Jesus himself, an error it remains. And it is not fair, on the strength of the New Testament text, however it came to be written, to hold the Pharisees guilty of denying that which they themselves expressly enjoin. That is the fact. How the misstatement^[7] came to be made, I do not know and will not speculate. Of course this does not in any way affect the truth of the principle enunciated by Jesus: "There is nothing from without the man which going into him can defile him, etc." That marks, in practical effect, though possibly not in theory, a complete breach with Pharisaism, since the Torah did, in the most explicit manner, distinguish between clean and unclean, and did teach that outward things caused defilement. The Pharisees held by the Torah; Jesus, at this point, threw it over. Yet the Pharisees could and did say that the defilement was not caused by the outward thing itself, but expressed the will of God that certain actions and contacts should be avoided. Why He had so willed, they did not know nor inquire; enough that He had so willed, and included it in the Torah which He had given. If it be said, "So much the worse for a religion and an ethic which are based on Torah," the question is taken down to first principles, and will be answered variously according to the view held of those first principles. I only observe that the religion of Torah was hampered by the fact that it applied a sublime theory to material some of which was originally quite independent of that theory and unworthy of it; and the Pharisees were unable to recognise that fact, while doing their best, and a very splendid best, to overcome a difficulty of whose nature they were not, and could not be, aware.

The opposition between Jesus and the Pharisees finds its most emphatic expression in the long speech contained in Matt. xxiii., the keynote of which is: "Woe unto you, Scribes and Pharisees, hypocrites!" It is sometimes argued that Jesus himself did not say all the hard things in that speech, but that they represent the hostility of the early Church towards the men who had destroyed her founder. That is possible; and certainly the Evangelists do not incline to a favourable view of the Pharisees on any occasion. But I do not feel free to evade the duty of dealing with that speech by availing myself of that argument. Moreover, I do not see anything to make it impossible, or even unlikely, that Jesus did say all those things. Having in effect broken with the religion of Torah, and being in the position of a man driven to bay, fighting, as the saying is, with his back against the wall, it is only human nature that he should so speak as to hit hard. And, if it were the case of any other man, who would take the words spoken under such conditions as expressing the calm and deliberate judgment of the speaker upon the persons addressed, or as weighty evidence of the truth of the statements made? I am not going to go through the various charges in order to estimate the truth or the exaggeration of them. I shall make no suggestions that perhaps the Pharisees in that time were very bad, though they were more respectable before, and, in a curious way, recovered their character afterwards. Nor will I admit that it was perhaps true of the rank and file, but that men like Hillel and Gamaliel and Joḥanan b. Zaccai were honourable exceptions. If it was true at all, it was most of all true of Hillel and Gamaliel and their compeers, because these represented Pharisaism in its perfection, and their religion was the religion of Torah in all its height and depth and length and breadth. Whatever could be truly said of Pharisaism, either good or evil, was true of the religion by which they lived.

I take all that sweeping denunciation as the final expression of irreconcilable opposition between Jesus and the religion of Torah. And I shall content myself with making a few observations upon the fact and the meaning of it. As for the term "hypocrites," the justice of the implied charge is not established by the fact that the charge is made. That hypocrisy is possible under the religion of Torah is undeniable; but there is certainly no necessary connection between the two. The Pharisees themselves were quite aware that there were hypocrites in their ranks.^[8] The retort would be justified that hypocrites have been found amongst professing Christians

also. But recrimination is not argument. The hypocrisy question is not really difficult to understand, if the explanation already given of the religion of Torah be borne in mind. The theory of that religion, when put into practice, necessarily involved the doing of many acts in a particular way. Even actions in themselves of little or no importance became important when the Torah directed a specific way of doing them. They were done as a fulfilment of the will of God upon that particular point; and His will was not fulfilled unless there was, on the part of the agent, the conscious intention of serving Him. The mere *opus operatum* was worthless. To the Pharisee, starting from Torah as his ground principle, the doing of a multitude of apparently trifling acts was the obvious way of putting religion into practice, and he rejoiced in doing them. But one who did not start from Torah as a ground principle would have no clue to the understanding of what the Pharisees did, or why they did it. If such a one took as his ground principle the immediate authority of conscience and his own direct intuition of God, and if he then judged the Pharisees by his standard and not by their own, then he would easily draw the conclusion that they were hypocrites, because he would see them treating as of great importance things which conscience would pay no attention to; and he would judge that men who could be satisfied to discharge the obligations of religion in such a way, must either be ignorant of what religion really is, or pretenders to a piety they did not possess. The religion of Torah lays itself open to the misconstruction which charges its adherents with hypocrisy. But, apart from particular instances where the charge could be established, the charge only shows how far those who make it are unable to comprehend the Pharisaic conception of religion. To urge that their conception of religion was defective is legitimate; to condemn them as hypocrites on the strength of a different conception of religion is not legitimate, no matter by whom it is done.

And this leads me to the conclusion of what I have to say about the opposition between Jesus and the Pharisees. The conflict was one between two fundamentally different conceptions of religion, viz. that in which the supreme authority was Torah, and that in which the supreme authority was the immediate intuition of God in the individual soul and conscience. The Pharisees stood for the one; Jesus stood for the other. The particular occasions of dispute, some of which have been noticed, mainly served to

bring out this fundamental opposition; at all events that is their chief importance.

The conflict was unequal, because it was one in which an Idea was matched against a Person. The idea of Torah was sublime, and deserved all the devoted loyalty that was given to its expression and defence. But it was an idea, mediated in the consciousness of those who held it. Jesus was a living soul, with the spiritual force of a tremendous personality; and against him the idea of Torah could not prevail. This was the real meaning of the fact that he taught "as one having authority, and not as their Scribes." This was the ground of his claim to forgive sins, a claim which the Pharisees could only interpret as blasphemy (Mark ii. 7). And this appears in all his relations with the Pharisees, as the force which opposed them, and which they could neither comprehend nor overpower. They could not at the same time retain the conception of Torah as the basis of their religion and admit the authority of Jesus. They saw no reason why they should abandon Torah; they could not therefore do other than reject Jesus. And when the verdict of the Pharisees is expressed in the saying of the Talmud, already quoted, "Jesus practised magic and deceived and led astray Israel," that contemptuous dismissal shows how completely they failed to realise that what had opposed them had been the strength of a great personality. And I do not think that on the Jewish side this ever has been realised from that day to this. If the Pharisees had realised it they would have met him with arguments quite different from those which they did use; possibly they would have refrained from controversy altogether. As it was, they remained within the circle of religious ideas which they knew, and continued to find in the Torah the satisfaction of their spiritual wants—a real satisfaction of real wants, such as men might feel who were not hypocrites and impostors, but earnest and devout, and chiefly concerned to do the will of their Father in Heaven, in what they believed to be the way He desired.

If there was on the part of the Pharisees a complete inability to comprehend the religious position of Jesus, there was also on his part an inability^[9] to comprehend the religious position of the Pharisees. If he had realised what Torah meant to the Pharisees, he might, and doubtless would, have desired to show them a "more excellent way," but he would not have taken the line which he did of denunciation and invective, since to do so would defeat his purpose.

This I believe to be the real truth about the inability of both the Pharisees and Jesus to understand each other, or, in other words, the impossibility of harmony between the religion of Torah and the religion of the individual soul, if I may so describe it. That incompatibility is fundamental. Christianity, in all its forms, is a religion founded on personality, one in which the central feature is a Person. And Judaism, at all events since the days of the Pharisees, is a religion in which the central feature is not a person, at all events not a human person, but the Torah. It is near the truth to say that what Christ is to the Christian, Torah is to the Jew. And alike to Christian and to Jew it is almost impossible to comprehend the religion of the other. Even Jesus could not do it. And if he could not do it, what wonder that his greatest disciple, Paul, in passing from the one conception of religion to the other, should have failed to carry with him into his new faith the remembrance of what the old faith had meant to him while he lived in it?

To the further consideration of this essential opposition between the religion of Torah and the Christian religion I shall proceed in the next chapter, when I shall deal with the criticism of Torah in the Epistles of Paul.

CHAPTER IV

PHARISAISM AND PAUL

If Christians usually get their ideas about the Pharisees from the Gospels, they learn their general conception of Judaism from the Epistles of Paul. And, when they find that the Judaism which he condemns is in fact the Judaism of the Pharisees, they combine their information, and rest content with the conclusion that alike in theory and practice the Pharisees were as far as they well could be from the Kingdom of Heaven. A verdict which claims the authority of both Jesus and Paul would seem, to Christians at least, to leave nothing more to be said, and to admit of no appeal. And in fact it has prevailed, and still prevails, in spite of all the efforts of the Jews to obtain even a hearing on the other side.

As, in the preceding chapter, I examined the relation of the Pharisees to Jesus, and tried to explain how it was that they came to stand to each other in such sharp antagonism, so in the present chapter I shall try to explain how it was that Paul came to represent the Pharisaic conception of religion in the way he did, and what grounds there are for saying that his representation does not correspond with the facts. Pharisaic Judaism is, or can be, perfectly well known; for it is written large in the Rabbinical literature, by men who were remarkably honest in setting down their faults as well as their virtues. It is there for anyone to study; and no one is entitled to say that the description of it given by Paul, or by anybody else, is accurate or not, until he has studied the thing itself. The fact that it can only be studied in books which are written in Hebrew and Aramaic (except so far as translated) does not exempt the student from the duty of reading them, if

he really means to learn what is true in the matter. If he does not, then what is his opinion worth?

The Christian will probably say in reply: "Did not Paul himself know all about it? Was he not born and bred a Jew? Was he not a 'Pharisee of the Pharisees'? Had he not been 'zealous beyond those of his own age in the Jews' religion'? Was he not 'as touching the law blameless'? Who could be a better and more reliable witness upon the question what the Jews' religion really was?" Yes. And did Paul not abandon the Jews' religion? Did he not write about it long years after he had been converted to a different religion? And is it not common knowledge that a convert seldom takes the same view of the religion he has left as is taken by those who remain in it? If Paul, while he was still a Pharisee, had written down his thoughts upon the worth and meaning of Pharisaism, that would be valuable evidence indeed; and it would be interesting to trace the process by which he then made his way to another form of religion. As it is, what he says about Judaism is no evidence of what he felt it to be while he was in it, or of what those felt it to be who remained in it. And if, as is the unquestionable fact, his representation of it differs very widely from theirs, then we are not entitled to draw the conclusion that his presentation is correct, whatever the other may have been (a point on which few trouble to inquire). We have rather to account, if we can, for the very peculiar form which his presentation of Pharisaism took. I might, indeed, have left Paul out altogether from this book; because, in strict truth, there is nothing to be learned directly from him upon the question what Pharisaism really was. But, indirectly, there is a great deal to be learned; because, whether his conception of Pharisaism be correct or not, it serves to show how it appeared to a very exceptional man, looking at it from a point of view which was no longer Jewish. And to understand and estimate the changed appearance due to that alteration of the point of view, is to get to the heart of the difference between Judaism and Christianity.

For the purpose of this inquiry I shall take the Epistles bearing the name of Paul, at all events the four great ones, as being really his. I have not yet been able to persuade myself that any collections of fragments, pieced together and interpolated, could be so combined as to give the impression of a single great personality behind them. Paul may not have been either always consistent or always logical; but how anyone can read those letters, with their eager hurry of argument, their passionate outpouring of devout

feeling, and still think that they are the composite patchwork of second-century nobodies, is to me a mystery. I shall therefore assume that what is written in those Epistles is what Paul wrote; that what he says about himself is true; and that what he says about Judaism, or anything else, is what he believed to be true when he wrote it.

The effect of what he wrote, at all events about Judaism, has been to inflict what Jews feel to be a cruel injustice on their religion. To Paul himself, I imagine, it can only have appeared to be the obvious and necessary statement of the result of his changed position in religion. He has left it on record that, through his conversion, he became a new man in Christ (2 Cor. v. 17). And one of the implications of that fact is that he should no longer be able accurately to reproduce in his mind what the "old man" had felt and thought and believed; he would retain only the distant memory of discarded things. If he wrote of the religion he had left, it would be, not of what once had been his, but of what he could only judge as an external thing, variously defective when seen in the light of his present religion.

Beyond the fact, then, that by his own account Paul had been before his conversion a zealous and consistent Pharisee, we do not know what his earlier opinion had been upon any subject whatever. He does not become known to us until after his conversion; and the writings from which we gain the knowledge of him were not composed till twenty years or more had elapsed since that event. Of his conversion he says very little; not enough to enable us to understand precisely what took place. It may well be, indeed, that he himself could never have stated in words, at any time, precisely what took place, or what, if anything, led up to the change. This much, however, is beyond question, that as a result of his conversion Christ became to him the central element in his religion. All his spiritual life depended on Christ. All his thought was conditioned by his idea of Christ. All the energy of soul which was his to give for the fulfilling of his ministry he ascribed to the immediate personal influence of Christ upon him. Christ was the all and everything of his religious life; and the lines upon which his subsequent career was laid out, so that he became the Apostle of the Gentiles, were marked out by his conception of the relation in which he believed himself to stand towards Christ. In some marvellous way, it seemed that Christ had entered and taken possession of him; with the result that he became the Paul whom we know.

There must have followed a process, whether short or long, by which he adjusted himself to his altered mental position, estimated the effect of the change upon his previous beliefs and ideas, and grasped the meaning of new and unfamiliar ones. For it goes without saying that his conversion widened the scope of his thought so as to bring many things within the range of his inward vision that previously had been unnoticed or not understood, as it also changed his estimate of what had been previously there. But of the details and the order of that process we know nothing. We cannot tell, for instance, whether it began with the settling of his attitude towards Judaism, or whether he was drawn first towards the idea of salvation for the Gentiles. We only know the results long after the process was completed, when he had shaped in thought a more or less consistent theory of divine providence, as shown in the history of the world.

The opening chapter of the Epistle to the Romans shows how profoundly he was impressed by the moral chaos of the Gentile world; but the fact is mentioned there only to give the explanation of it. For an explanation was needed. Such a state of humanity was in terrible contrast to the perfection which should have been found in those whom the all-holy God had made. Doubtless there were differences of better and worse between this man and that; but, judged by the standard of perfection, *i.e.* of complete harmony with God, all were alike immeasurably below what they ought to be. Not only the Gentiles, but the Jews also, came under this condemnation. Jews indeed were not guilty of the loathsome vices which made the Gentile life so horrible; but it was clear that, in regard to the standard of perfection which God desired in man, the Jews wholly failed to reach it. All the world over, through all the multitude of human beings, "there was none righteous, no not one" (Rom. iii. 10).

Yet the Gentiles, Paul argued, could have known, and even did know, something of God; but they disowned that knowledge, and "glorified him not as God, neither gave thanks; but became vain in their reasonings, and their senseless heart was darkened.... Wherefore God gave them up in the lusts of their hearts ... for that they exchanged the truth of God for a lie, and worshipped and served the creature rather than the Creator" (Rom. i. 21, 24-5).

And the Jews knew well the will of God, for to them He had revealed it through Moses and the prophets; with them He had made His covenant, and had chosen them out of all the nations of the earth, to be a peculiar people unto Himself. How was it that they too fell so far short of what was required of them? Must it not have been (so Paul reasoned) because the divine Law^[10] that was given them was the very means and occasion of sin? To fail in regard to one single precept was to break the harmony between man and God; and, when once that harmony was broken, there was nothing in the Law itself to restore it. By its multiplication of commandments, the Law offered so many occasions for the breaking of that harmony; and whereas it was "holy, and the commandment righteous and just and good," its ideal was one that no human effort could reach. Its effect was to multiply sin. Righteousness under the Law was impossible; meaning by righteousness the state of perfect harmony of man with God.

"But now," says Paul (Rom. iii. 21 fol.), "apart from the law a righteousness of God hath been manifested, being witnessed by the law and the prophets; even the righteousness of God through faith in Jesus Christ unto all them that believe; for there is no distinction; for all have sinned, and fall short of the glory of God; being justified freely by his grace through the redemption that is in Jesus Christ," etc.

Through faith in Jesus Christ there was offered to sinful man the means of attaining that righteousness—harmony with God—which had been vainly sought under the Law, or lost in the darkness of Gentile corruption. And this was evidently what God had willed from the beginning. Christ was the instrument, or the agent, by whom this divine purpose was to be fulfilled. And the meaning of what might seem to be the age-long delay of his coming was that God would "shut up all under sin, that he might have mercy upon all."^[11]

Christ performed his divinely appointed mission by his death on the Cross, and his subsequent resurrection; having borne and discharged the obligation of the unfulfilled Law, and thereby released all, whether Jews or Gentiles, from the bondage of sin. Righteousness was now attainable through faith in Christ; and I presume that Paul meant by righteousness, harmony with God, resulting from such an attitude on the part of the believer towards Christ as that in which Paul himself stood towards him, in other words, a complete

surrender of heart and will to Christ, so as to "put off the old man" and become "a new creature." Those who did this would thereby attain to perfect harmony with God, which is righteousness.

I do not stop to dwell upon the way in which Paul explained the fact that the offer of salvation was not universally accepted. For I do not forget that my task is not to expound the whole of Paul's theology, but to explain his view of Pharisaism. I leave out, therefore, all mention of election and reprobation, in order to come to the question how the Jews were dealt with in Paul's theory. For here he was confronted with the fact that the Jews had rejected Christ, and not only rejected him but killed him. In the most emphatic manner they had refused the means of grace which had been offered to them through him. They had, to that extent, frustrated the purpose of God in sending him. They, in common with the Gentiles, had been, as stated already, shut up under sin that God might have mercy on them. And they had spurned that mercy. How was that to be explained? "Did God then cast off his people?" Paul asked (Rom. xi. 1). Not so. "But a hardening in part hath befallen Israel, until the fulness of the Gentiles be come in" (Rom. xi. 25). All that God had willed towards Israel, and declared in the ancient Scriptures, still held good; but its fulfilment was delayed by the disobedience of Israel; and that disobedience was made to serve the purpose of God, in that by its means salvation should come to the Gentiles. The full development of this thought will be found in chapters ix. to xi. of the Epistle to the Romans, and need not be given here. It was Paul's way of getting over a formidable difficulty, namely, the obvious fact that the attitude of the Jews towards Christ was not at all what was to be expected, if his theory of the person and work of Christ were true. It must not be forgotten that the starting point of his theory was his own personal relation to Christ, as he felt it with an intense certainty which nothing could shake for a moment. That was his foundation of absolute truth; and that could not but be the clue by which he interpreted all that he beheld in the world, and read in the history of man. With his application of this clue to the case of the Gentiles I am not now concerned. But, in applying it to the case of the Jews, he was reasoning from premises which were not, and never have been, accepted by Jews. He represented the relation of man to God in terms of faith in, and communion through, Christ; so that, previous to the coming of Christ, both revelation and communion had been partial and defective.

The Jews represented the relation of man to God in terms of Torah, in the knowledge of divine truth therein contained, and in filial obedience to God whose precepts were recorded in it. They found, on the lines of Torah, the ground of faith in God and present communion with Him; and while they always hoped to learn more of the contents of revelation—to be shown "wonderful things out of the Torah,"—and while they aspired to a closer walk with God, they never felt that the Torah needed to be replaced by any other means of revelation and communion, as being itself only partial and defective. To say of the Torah, as Paul said, that it was a means by which God had prepared the way for Christ, implied that it had only a secondary value on its own account. Indeed, it was rather harmful than helpful, if the effect of its working was to "cause the trespass to abound," and that effect was in no way justified by the alleged intention, on the part of God, that "grace might abound more exceedingly." A Christian, brought up on Paul, may see no difficulty in believing that the holy and righteous God could or would act in such a way. But to a Jew, brought up on Torah, it was impossible so to believe, and he would repudiate the suggestion with indignation; partly by reason of his reverence for God, and partly by reason of his own experience of Torah, and of spiritual life under it. Paul's theory might be valid for himself, but it was not valid for the Jew; and, arguing from his premises, he only described an unreal Judaism, such as it doubtless ought to have been if his premises had been true, but such as, in fact and experience, it certainly was not.^[12] Paul, of course, was expounding Christianity; and he had no concern with Judaism, except to account to Christian readers for the very obvious difficulties which it placed in the way of his theory. His explanation of the meaning of Judaism is not a study of that form of religion on its own account, but the theoretical completion of his view of the work of Christ. If Christ came when he did, and if he fulfilled such and such a function in the drama of Providence, then the Judaism that was before him must have meant so and so, and must have been intended by God to produce such and such results. That seems to me to have been the real line of Paul's argument. And, as it started from his intense personal conviction of the inward presence of Christ, it is not wonderful that he should fail to see that the facts of Judaism did not at all correspond to his theory; or that he should assign to the Torah a function which, if put in practice, would have been fatal to the existence of Judaism long before Christ came. Paul argued on the religion of Torah from the

postulates of the religion of Christ. But Torah and Christ are incommensurable terms; and Paul's presentation of Pharisaic Judaism is, in consequence, at its best a distortion, at its worst a fiction.

I shall presently offer reasons in support of that judgment, which is not a hasty assertion but a deliberate opinion formed after years of comparing the Judaism of the Rabbis with Paul's version of it. Before, however, going on to this further part of my task, I will pause for a moment to consider the difference between Paul's attitude and that of Jesus towards the Pharisees and their religion. In the main it is this—that Paul condemned Pharisaism in theory, while Jesus condemned it in practice. Paul held that the whole system was radically defective, and remained so whatever relative excellence might be produced under it in the lives and characters of those who submitted to it. He condemned it, though he had himself, as he said, been "as touching the Torah, blameless." Jesus, on the other hand, charged the Pharisees with certain specific sins and vices, such as hypocrisy, pride, self-righteousness, etc. And he did not expressly denounce the systematic religion of Torah as such, although, as has been shown in the preceding chapter, he did on certain points reject the Torah. The Pharisees themselves were quite aware that the faults he denounced were not unknown amongst them. The Talmud bears honest witness to that fact, in the passage so often quoted (b. Sotah, 22^b), about the seven kinds of Pharisees.

The censure of Jesus admits of the possibility that some, at least, of the Pharisees were pious and good. And that Scribe, to whom Jesus said, "Thou art not far from the kingdom of God" (Mark xii. 34), did not cease to be a Pharisee by reason of the opinion he had expressed.

But Paul's condemnation of Pharisaism would include, not only that Scribe, but all of his nation in whom goodness and piety might be thought to have shown. And not only so, but these were by so much the more to be condemned in that they gave fullest expression to the principle of Torah. If the system was wrong, evidently those who most completely and consistently acted up to it were most deeply tainted with its error. Paul's universal negative challenges the contradiction of all the saints, martyrs, and heroes of Israel.

I go on now to support the statement made above that Paul's presentation of Judaism is at its best a distortion and at its worst a fiction; that, however regarded, it does not correspond with the facts. I shall have to show that the Torah was not such as Paul represented it to be, and that it did not have the effect which he ascribed to it, in the religious experience of those who lived under it. Also, that the Pharisee living under the Torah was not thereby debarred from such communion with God as Paul claimed for the believer in Christ; that, indeed, Pharisaism had nothing to learn in this respect from Christianity, at all events Paul's Christianity. What he offered to the Pharisees was either what they had already in a form which they preferred, or what they had not got and did not want. Upon these points I will proceed to enlarge during the remainder of this chapter.

That the Torah was not such as Paul represented it to be is a statement which is true, both positively and negatively. He ascribed to it a character which it did not possess, and he left out of his description features which it did possess, and which were essential to it. Paul always takes Torah in the sense of "precept," "mitzvah," νόμος [Greek: *nómos*], not necessarily separate injunctions, but a collective expression of command, for which the term Law is appropriate. The divine will imposed this on Israel as the moral ideal, and, in demanding obedience to it, set up a goal that could never be reached.

The more the divineness and holiness of the Law was recognised, the greater must be the sin of disobeying it, the deeper the despair resulting from such disobedience. Righteousness, the harmony of the human will with the divine, was only possible by fulfilling the whole Law; to fail in a single point was to break that harmony, and thus to become unrighteous. The Law, with its multitude of precepts, only served to increase the occasions of sin, and plunge the sinner in a deeper despair. This is, in brief, Paul's view of the Law. ^[13]

It is safe to say that no Jew before Paul ever thought of the Torah in that way, or ever felt the despair which, according to this theory, he should have felt. Certainly, or let me say probably, no Pharisee ever completely fulfilled all the "mitzvōth" of the Torah; but I have never come across any Pharisee who was overwhelmed with despair on that account. And, if it be said that this only shows the blindness and conceit of the Pharisees, the answer is

that even admitting that (which I do not admit), still the Torah did not in fact present itself to the mind of the Pharisee in the severe and threatening form which it wears in Paul's description of it. As, indeed, how should it?

It has already been shown, in the second chapter, that the meaning of Torah, as the Pharisee conceived it, was nothing less than the full revelation which God had made to Israel, partly by way of precept, partly by way of more general instruction in divine things. So far as the Torah was expressed in the form of precept, it offered so many occasions for serving God. Every "mitzvah" was an opportunity for doing some part of the divine will; and it was because God loved Israel that he had given these opportunities, whereby might be felt the joy of faithful service. The Pharisee laid the whole emphasis on doing as much as he could in that service; whereas, according to Paul, he ought to have laid the whole emphasis upon his own inability to do *all* that was required. He ought to have been burdened by guilt, and haunted by the despair of ever making his peace with the God whose commands he had failed to obey. Instead, he was full of joy that God had given him something that he could do for His sake, eager to do as much as he could; and though he failed or sinned, from time to time, he was "not utterly cast down," because he trusted that if he heartily repented God would forgive him, and take him back. The Torah was not a burden to the Pharisee, either by reason of the number or the difficulty of its precepts, or by the thought of the impossibility of completely satisfying its demands. And if there were ever a Pharisee in such a state of despair that he should cry, "O miserable man that I am! who shall deliver me from the body of this death?" he would think of the Torah not as the cause of his anguish, but as the hope of his deliverance. And it was the Torah itself which kept him from ever falling into such despair; for it was God's own word of help and guidance, the record of His endless mercy, the revelation of His love. Paul would never have ascribed to the Torah such power to cause despair, unless he had ceased to feel towards it as a Pharisee would feel; and he ceased to feel so, because, in his mind, the place once filled by Torah was now filled by Christ. For him there remained of Torah only the shrivelled and misshapen corpse, instead of the once glorious and living form. The one is held up to reproach in the Epistles of Paul; the other is the object of endless praise, of reverent wonder, almost adoring rapture, in the literature of the Pharisees.

But Paul's view of Torah is not completely described by saying that he ascribed to it a character which it did not possess and an influence which it did not exercise. He leaves out of account features which it did possess, and represents the religion founded upon it as lacking in elements which in fact were no less present there than in his own religion. As already shown, Paul represents Torah exclusively as precept, νόμος [Greek: *nómos*], whereas it comprised the whole revelation recorded in Scripture and rendered explicit by the valid interpretation of Scripture. It comprised, therefore, the knowledge of God Himself, of His providence and righteousness and fatherly love, also, of the way of communion with Him, the assurance of forgiveness to the penitent, "the means of grace and the hope of glory." All that belonged to his religion, the Pharisee found indicated in the Torah, somewhere; and it was his delight to learn what God taught him therein.

Now Paul's whole case rests upon the fact that there is no power in a commandment to help a man to fulfil it. The Law was, according to him, laid upon Israel with a demand for obedience, but with no power to ensure that obedience. The Law said, "Thou shalt"; but it gave no strength to the feeble will, however much it might shine with pitiless light upon the frightened conscience. Austere messenger of the will of God, it stood over its helpless slave, pointing indeed to heaven, but stretching forth no hand to lead him there. The Law being thus powerless to aid in the fulfilment of the divine command, there could be no righteousness under the Law, no harmony between the human will and the divine. Even if there ever had been such harmony, (and there had not been since the sin of Adam), there was no power in the Law to restore that harmony when it had once been broken. What the Law could not do, it was, according to Paul, reserved for Christ to do. Through faith in him came the power, not indeed to do what the sinner had failed to do, but to restore the broken harmony and reconcile man to God. That power was the direct influence of the living mind of Christ upon the human soul; and the effect of it was to set it free from bondage, so that it could of its own will turn to God. Paul here states, in terms of Christ, a profound truth, namely, that the human soul depends, for its power to will and desire the good, upon God; and that, without the means of communion with its divine source, the soul must languish and die. And Paul expounded this truth in terms of Christ, because in his own experience it was through Christ that the divine help had come to him; the

force of a living personality which had set free his soul was that of Christ. To him it seemed that such was the only way by which the longed-for deliverance could be effected. Now the Law was not a person, a living spirit, but a command, a written word. And even the Torah, in its wider meaning, was still only a body of knowledge, a revelation, a complex idea; it was not a living spirit, that could give of its own life to a human soul. How, then, could there be, under the conditions of Torah, that imparting and receiving of divine influence by which alone the soul could be enabled to will the good, or even to live at all? Such seems to me to be the reasoning underlying Paul's conception of the powerlessness of the Law to save, its failure to impart righteousness.

But the Pharisee to whom that argument might be addressed would not have the slightest difficulty in meeting it. He would say, "Certainly there must be that divine influence upon the soul, the power imparted by one living spirit to another; else the soul cannot live or do any good thing. Certainly, also, the Torah is not a living spirit; it is only a body of truth, a revelation, a complex idea, or, if you will, a set of commands. But, what then? We look for help not to the commandment, but to Him who gave the commandment; not to the Law, but to the Lawgiver; not to the Torah, but to the wise, holy, and loving God, of whom the Torah is the revelation. We learn, from the teaching which He has given to us, to go direct to Him, pray to Him, trust Him, love Him, find help and strength from Him. He is our Father in heaven, always ready to hear His children, to forgive them when they repent of their sins against Him, and to deliver them from evil."

This is what any Pharisee would reply to Paul's argument about the impotence of the Law to justify. The difference between the Pharisee and Paul upon this point is, in appearance, very great; but, in fact, is very small. Both are agreed that there must be the imparting of divine influence to the human soul. *With* that influence, the quickening of the life of the soul by the divine power and inward presence, the soul is enabled to will the good and to love God. *Without* that influence it would perish. The Pharisee held that the divine influence was imparted direct from God to the soul, without any intermediary. It was not the Torah that imparted it, but God Himself. The Torah was given to teach him; having no power or life in itself, it revealed to him the divine source of power and life, and to that source he went.

Paul held that the divine influence was imparted to the soul through Christ; and his point, that it could not come through the Law, is true, but wholly irrelevant; for no one ever said that it could. The implication that it could come *only* through Christ may be relevant, but is certainly not true; for all the experience of Jewish piety is witness against it. When Paul, on the basis of his own experience, set up his doctrine of the function of Christ, in the relations between God and man, he did what he had every right to do; and he has earned the gratitude of all who have found salvation through the faith in Christ which they have learned from him. But Paul was not entitled to ignore the experience (no less genuine than his own) of those whose conception of religion he condemned. If all that they deemed essential to religion, not merely the idea of Torah, but the direct influence of the living God, had been included and stated in Paul's presentation of Judaism, then the comparison between the Jewish and the Christian conception of religion would have been more fair and equal; and if it did not appear that there was any marked superiority of the one over the other, there would at least have been the evidence that God is sought and found in more ways than one.

Enough, perhaps, has been said by way of general argument to show that Paul's version of Judaism is incorrect and defective. But it will be well, at this point, to indicate more particularly the evidence upon which I have maintained that Pharisaism is not the barren formalism that it is usually supposed to have been, nor the merely preparatory foil to Christianity, which is all that Paul could see in it.

There is first of all the general fact of the existence of the Jewish people in unswerving loyalty to the Torah, and in the faith and practice of the religion founded upon it—an existence and a loyalty maintained through centuries of bitter persecution at the hands of Christians. It is simply impossible that such a result could have been produced, if the religion, by which its adherents lived and for which they died, had been a soulless hypocrisy, a pious sham, or a futile delusion. If such could have been the case, then what better guarantee is there for the truth and worth of the faith for which Christian saints and martyrs have died and heroes fought? A corrupt tree cannot bring forth good fruit. And if the fruit be good, then, in the one case as in the other, the tree must be good. No adverse opinion of the Judaism which has suffered and survived, and which, be it remembered, is the

Judaism of the Pharisees, can be justified in face of the witness of Israel to the faith once delivered to *its* saints.

There is further to be considered the fact that before the time of Paul, and indeed ever since, the Pharisees had for their spiritual nourishment the Scriptures of the Old Testament, including the prophecies and the Psalms. The study of these, and the constant use of them in the Synagogue, would have been uncongenial to men whose one concern was for hair-splitting casuistry, and would either have been discontinued or reduced to an unintelligent formality. It was neither. The Scriptures were the constant study of the Pharisee; and the worship of the Synagogue derived much of its power to minister to the needs of the worshippers, through its close dependence on the devotional outpourings of the Psalms, and the prayers which embodied the spirit of them. The Pharisee never for a moment thought that he was growing aloof from the Prophets and Psalmists of the older time; and while in the Torah, written and unwritten, he believed he had a fuller and more detailed knowledge of what God had revealed, it was still the revelation of the same God who had spoken to Abraham, who had shown His power by the Red Sea and on Sinai, who had inspired the Prophets and been praised in the Psalms. There may be legitimate regret that Israel cut itself off from all knowledge of and contact with the great literatures of Greece and Rome, and so missed the salutary influence of variety of thought. The Pharisees chose their own line deliberately in this matter; and when they saw what came of Hellenism, they might well feel that they had chosen rightly. But whether or not, if they did keep out the great Gentile literature—the "external books," as they called them,—they most certainly did "read, mark, learn, and inwardly digest" their own. And a religion that has absorbed into itself the ideas of the Hebrew Scriptures, a religion whose springs have been continually fed from that source, and whose ruling purpose was to serve and glorify the God revealed in those Scriptures, cannot have been, and assuredly was not, the hard and narrow formalism which its opponents have declared it to be.

These considerations have weight as evidence of what Pharisaism really was; and their weight has by no means been sufficiently taken into account; indeed, it has been ignored altogether in the commonly accepted estimates of the character of Pharisaism. Strong, however, as such general evidence is, I will further strengthen it by reference to the utterances of Pharisees themselves, taken from their own literature. And, out of many that I might choose, I will take such as bear more particularly upon the points raised in the strictures of Paul.

First, I will take the Pharisaic doctrine^[14] of repentance and restoration, because it is on this that the antagonism of Paul is most pronounced, and the injury done by his method of treatment most serious. There is not in the Rabbinical literature a strict and clearly defined theological doctrine of repentance and restoration; but there is a general belief that the way of repentance is always open, by which a sinner may come back to God, and that God will forgive that sinner simply because he has repented. I will illustrate this by a few quotations from Rabbinical, that is, Pharisaical works.

In the *Pesikta de R. Cahana* (p. 165^a ed. Buber) the following occurs:—"The Holy One, blessed be He, said to Jeremiah (the prophet), 'Go and say to Israel, Repent.' He went and said to Israel ('Repent'). They said to him, 'Master, how can we repent? With what face can we come before God? Have we not angered him? Have we not provoked him? Those mountains and hills upon which we have worshipped false gods, are they not still standing?' Jeremiah came before the Holy One, blessed be He, and told Him. He answered, 'Go and say to them, If ye come to me, is it not to your Father in Heaven that ye come? For I have been a father unto Israel, and Ephraim is my firstborn.'"

Again, in the same work (p. 163^b) R. Eleazar says: "It is the custom in the world that a man will insult his neighbour publicly, and afterwards seek to be reconciled to him. The other will say to him, 'Thou didst insult me publicly, and wouldst be reconciled between me and thee (*i.e.* privately). Go and bring those in whose presence thou didst insult me, and I will be reconciled to thee.' But the Holy One, blessed be He, doeth not so; but though a man stand and revile and blaspheme him in the open street, the

Holy One says to him, 'Repent between thee and me, and I will receive thee.'"

A story is told (b. A. Zar. 17^a) of a man who was a particularly gross sinner, and who in the midst of his sins was struck with terror and remorse when it was said to him "Eleazar b. Dordaia will not be received in repentance." His frantic efforts to persuade some intercessor to plead for mercy on him are described in a passage too long to quote; but I translate the conclusion, which runs thus:—"Then he said, The matter hangeth only upon me (*i.e.* I must seek mercy for myself). He laid his head between his knees and groaned with weeping, until his soul departed from him; and there came a voice from heaven saying, 'R. Eleazar b. Dordaia is summoned to the life of the world to come.'" The purpose of that story is simply to teach that even the vilest sinner can repent, and that, if he does, he will be forgiven. It should be observed that the Talmud means by a sinner one who does definitely wicked actions—a sinner morally, not theologically. It should also be observed that, in the above story, the idea of an intercessor, by whom God might be moved to pardon, is pointedly rejected. The sinner does not plead either the merits of the Fathers, as might have been expected, or the merits of Christ, as according to Paul he ought to have done, if his peace with God were to be made. That he was forgiven, and that anyone in like case would be forgiven upon repentance, is the emphatic declaration of Pharisaic belief.

The Rabbis were fond of moralising upon the case of Manasseh, the idolatrous king; and the following passage contains one of the lessons they drew from it (j. Sanh. 28^c). Manasseh, after he had been carried captive to Babylon and sat in prison there, said to himself: "'I remember how my father caused me to read in the house of assembly this verse (Deut. iv. 30), 'When thou art in tribulation, and all these things shall befall thee, in the latter days thou shalt return to the Lord thy God and shalt hearken to His voice. For the Lord thy God is a merciful God; He will not fail thee, nor destroy thee, nor forget the covenant He made with thy fathers.' Lo, I will say that, now. If God hear me, it is well; if not——.'" But the ministering angels desired to shut the windows of heaven, so that the prayer of Manasseh might not ascend to the Holy One, blessed be He. For they said before Him, 'Lord of the worlds, wilt thou receive in penitence a man who has set up an image in thy sanctuary?' He answered them, 'If I received not

him in penitence, lo, I bar the door against all penitents.' What, then, did the Holy One do? He made an opening beneath His throne of glory, and He heard his prayer. And this is what is written (2 Chron. xxxiii. 13), 'And he prayed unto Him, and He was entreated of him, and heard his supplication and brought him again to Jerusalem.'"

I have given these stories just as they stand, with their quaint and childish notions, because they reflect very clearly the fixed belief of their authors that man is not prevented from finding forgiveness and peace from God. He can always repent; and, if he does, God will always forgive him. That this belief makes possible a sort of easy presumption of forgiveness is a danger of whose reality the Pharisees were well aware; and they were careful to warn against it. But they never wavered in their belief that forgiveness did always follow on sincere repentance; and that no sinner need ever remain cut off from God by the barrier of his sin. The definite precepts of the Torah were divine commandments, certainly. But they did not make the Pharisee feel that if he disobeyed them there was no longer any hope for him, any possibility of ever finding his way back to the love of God. The passages I have quoted, and there are many others, and scores and hundreds of sayings about repentance which all teach the same lesson, are the utterance of Pharisees, of men who were steeped to the lips in Rabbinism, who gloried in the Torah, who delighted in the abundance of its precepts, and the consequent casuistry of the schools, and who felt in their hearts that love of God which they did their best to show forth by serving the Lord with gladness in the doing of His commandments.

However great be the difference between the Pharisee and the Christian in the form given to their respective conceptions of religion, the contents of their spiritual experience were to this extent alike, that for each there was, and is, the sense of personal relation to, and communion with, the Divine Being. For the Christian, at least for most Christians, the medium of that communion is Christ. For the Pharisee there is no medium; but there is, as the guide to show the way, and the light to shine upon it, the Torah. The Pharisee did not bring to his religious conceptions the penetrating power of analysis which has been applied by Christian theologians. There has never been a Pharisee who could have done what Paul or Augustine did in this respect, unless it was Maimonides. There will therefore not be found in

Pharisaic literature the subtle distinctions of justification, sanctification, prevenient grace, etc., which abound in the great Christian writers.

But, none the less, the main terms are found, and the spiritual realities thereby signified were known in Pharisaic experience. Grace was known. The Holy Spirit was known. Faith was known. These and other of "the deep things of God" were objects of real experience and devout contemplation. Pious fancy played round them, and represented them in parable and allegory; but they were seldom if ever made the subject of close philosophical examination, nor were they formulated in defined doctrines.

Much is said about the Holy Spirit in the Pharisaic literature, without any attempt to make all that is said consistent. But, behind all such utterances, there is the unwavering belief in the direct communion of God with man. The Holy Spirit was naturally most often referred to in the case of the prophets, in whom its manifestation was most conspicuous. But its influence is implied in the fact of prayer, and is nowhere denied in regard to men in general. "Whatever the righteous do, they do it by the Holy Spirit." That is the utterance of a Pharisee (Tanḥ. Vajehi, xiii. p. 110^a), and it is the key to the whole Pharisaic conception of the relation of man to God.

So, too, in regard to Faith, while the word does not appear so often on the pages of the Talmud as it does in the Epistles of Paul, the thing was an essential element in the religion of the Pharisees as it was in that of Paul. They never defined precisely what faith meant; it appears as a simple and unquestioning trust in God; and they thought about it after a simple fashion, without, however, being thereby shown to be wanting in it. "Great is faith," says a Midrash (Mechilta Beshall. ii. 6, 33^b). "For Israel believed in Him who spake and the world was; and as a reward for believing in the Lord, the Holy Spirit rested on them, and they uttered a song: as it is written, 'They believed on the Lord.... Then sang Moses, etc.'" (Exod. xiv. 31; xv. 1). "And so you find" (continues the Midrash) "that Abraham our father did not inherit this world and the world to come except by the merit of faith, because he believed in the Lord. As it is written, 'And Abraham believed in the Lord, and He counted it to him for righteousness'" (Gen. xv. 6). R. Nehemiah said, "Everyone who receives even one commandment in faith is worthy that the Holy Spirit should rest on him." So even the Pharisees could appeal to the same Abraham, whom Paul called as a witness against them;

and they did so with the most obvious sincerity, as having a perfect right to do so, and probably with complete ignorance that the Christian apostle had appealed to Abraham in support of his argument against their religion. And it was well done of the compiler of the Midrash to add the closing words of the passage I quoted; for I know of hardly any other saying which so illumines the inner side of Pharisaism as this, that "Every man who receives even one commandment in faith is worthy that the Holy Spirit should rest on him."

In all that I have said in the course of this chapter, I have had before me the purpose of showing what is true about the religion of the Pharisees upon those points which are affected by Paul's condemnation. True, Paul condemned it as a whole, as a system of thought and practice fundamentally and in principle contrary to what he regarded as the truth. But he only alleged certain features of Pharisaism as the sign and expression of its defect. He alleged its reliance upon the Law and its consequent non-reliance upon Christ. He drew certain conclusions from its alleged defects, and his conclusions have been accepted as valid ever since. I have therefore tried to show chiefly on these points what the Pharisees themselves thought and felt and believed; and have left out of notice other aspects of Pharisaism which were not challenged, and which might have been challenged with more reason than those which Paul actually chose. He might have made a strong case against the particularism of the Pharisees in comparison with the universalism of his own Gospel. For though it can be shown that the Pharisaic conception of religion did not exclude universalist ideas in regard to mankind in general, yet it can hardly be questioned that such ideas were but seldom touched upon and by no means conspicuous in the ordinary thought and debate of the Pharisees. Moreover, the Torah itself, which was to them so all important, was given only to Israel, and could serve only them as a means of salvation. If the Gentiles were to profit by it, they must do so in fellowship with Israel. And that made real universalism impossible, whatever might be the aspirations of this or that particular Rabbi. God offered the Torah, says the Midrash, to all the nations of the world; and all refused it except Israel. They had their chance, and rejected it. That is for Jews a not unnatural view, but it does not lead to universalism. Yet, if Paul had challenged Pharisaism on this its weakest side, instead of aiming his blows at an unreal creation of his own brain, he would not have been left

unanswered. The Pharisees would have replied, "True, we have not grasped the idea of universalism in any effective way. But what does your own universalism amount to? Only to this, that amongst the elect, those whom you say God chooses out to be saved, the distinction of Jew and Gentile does not count. But neither for you nor for us is there any question of his actually saving all men. There is no real universalism at all. And there is this between us, that you tell of the wrath of God poured out on all mankind except the elect; you tell of Christ who in some way is the means of saving those elect; you hold that life in this present world is only a temporary captivity in an evil state from which there will be a speedy release at the coming of Christ in glory. To us there is no Christ; for we need none, except the Messiah, who shall come when God shall please, and who will do otherwise than he of whom you speak. But we need none to save us from our Father in Heaven, and none to persuade Him to forgive when else He would turn away. And this present life, in this present world, is to us not a vale of tears or a captivity in an evil state. It is the scene of our service of God. And that Torah, of which you have said such hard things,—you who once gloried in Torah yourself, and must have known, though now you have forgotten, how it was once "the light of all your seeing,"—that Torah is to us the guide of life, that shows us how in the small deeds of every day we can, if we will, do that which is pleasing to God. Yes, we fail sometimes; and as your own master said, "even if we did all the 'mitzvōth,' we should still be but unprofitable servants, having done only that which was our duty to do." Still, we serve Him with heart and soul, the best we can; and we count it nothing to have done only the mere act prescribed, without the intention of pleasing Him. We look to Him as our help and our shield, our Father and Lord, our strength and our redeemer. And He does not turn away from us. Go you and worship Him as you will; and if the Torah no longer says aught to you of what once it said, then seek the revelation of God elsewhere, and hear his voice in other tones. As for us we will "abide in the things we have learned, knowing from whom we have learned them." And so long as we are faithful to the trust that God committed to Israel, when He made him a nation, and gave him the Torah and raised up the prophets, and sent psalmists and wise men to teach their brethren, so long "may the Lord God be with us as He was with our fathers."

It is the Pharisee who has kept the promise of Israel; and to these latest days he keeps it still.



CHAPTER V

SOME POINTS OF PHARISAIC THEOLOGY

In the second chapter it was pointed out that the development of the religion of Torah, in the centuries from Ezra to the Pharisees and on to the Talmud, took place along two main lines. These are indicated by the two words Halachah and Haggadah. Upon the meaning of the former I dwelt at some length; but, for the sake of clear and adequate treatment, it seemed better to defer the consideration of the latter. The thread then dropped I shall pick up now; for the answer to the question "What was the theology of the Pharisees?" is given in the Haggadah. This is true in more senses than one; for to understand what is meant by Haggadah is to understand the Pharisaic mode of approaching questions of doctrinal theology, while a comprehensive knowledge of all that they taught upon such questions could only be obtained by a survey of the whole mass of Haggadah contained in the Rabbinical literature. To accomplish anything like that would need a very large volume. Weber devoted a whole book to it; and he might well have written a second, to include all that he had left out of the first. It will meet the purpose of the present work to explain the way in which the Pharisees dealt with doctrinal theology, and to illustrate this by reference to some main heads of belief, choosing such as may serve to throw light on references in the New Testament to Pharisaic doctrines. I shall then be in a position to use the results obtained for an explanation, in the final chapter, of the remarkable difference in character and tone between the Pharisaic religious discourse and that of the New Testament teachers—a difference felt by all who are able to compare the two literatures.

For the purpose of the present inquiry I must again remind the reader that the religion of Torah, since the time of Ezra, was based upon the belief that God had made to Israel a full and final revelation, had given a body of teaching, for their guidance and enlightenment upon all matters in which the divine and the human came into contact. The vehicle of this revelation, the written record of it, was the Pentateuch, called therefore the Torah, *par excellence*. But all the other Scriptures were considered to be of divine authority, and only subsidiary to the Pentateuch, because they helped to make clear its meaning. Further, what was implicit in the divine revelation, written in the Pentateuch and amplified in the other Scriptures, was rendered explicit in the oral interpretation. And whereas the *litera scripta manebat*, unaltered in form and quantity, the oral interpretation continually increased in amount and in multiplicity of detail, as being an ever more full and exact exposition of the contents of the original revelation. To use a mathematical simile, the whole Torah might be compared to the sum of an infinite series, written in definite symbols, and made to express a more detailed concrete result by the progressive evaluation of its terms.

It is evident that for the religion of Torah the prime necessity was to know the meaning of the Scriptures in general and of the Pentateuch in particular. The oral Tradition started with the interpretation of Scripture; and never in its furthest flights of allegorical extravagance or daring imagination did it wholly forget or entirely disown its connection with the written word. The connection is not always easy to trace; but it is there, none the less. The Tradition of the Elders, wherever it be examined, and whatever be the subject of its pronouncements, is, from first to last, and from its highest to its lowest, the declaration that, when God gave the Torah to Israel, "this" and "this" and "this" is what he meant by it.

When Ezra and his successors made it their chief task to study and interpret the written Torah, what they looked for before everything else was direction for *doing* the divine will. The reasons why they took this line have already been explained, and need not be repeated (see above, Chapter II.). The effect was that in the body of tradition gradually formed, the element of precept was the most conspicuous and the most systematically developed. It was essential that the Jew, desiring to serve God, should know exactly what he was commanded to do, and what he was forbidden to do, and what was the right course to take in cases where no divine command or prohibition

had been explicitly given. The Halachah was the answer to these questions; being of the nature of a comprehensive rule of right conduct, and intended to cover every possible occasion on which a decision was called for. The results, obtained by proper methods of interpretation, and recognised as valid by competent authority, were clear and definite, and could only be disputed by showing that in fact the real intention of Scripture was otherwise. Hence it was possible to elaborate a consistent system of Halachah, and eventually to codify it all. ^[15]

But the interpreters of Scripture found more in its pages than precept; the Torah taught other things besides directions for doing the divine will. It contained instruction about God Himself, about Israel's relation to Him, about the creation and divine providence as shown in past history, about human virtues and vices, and the divine approval or disapproval of them, and so on. It was the task of the interpreters to set forth this teaching, as well as the positive or negative precepts. It is probable that the early Sopherim described their work of interpretation as a whole by the word Haggadah; or, rather, that they used the cognate verb "higgid" to indicate that the Scripture "declared" so and so. But when they began to develop the special line of Halachah, the meaning of what had been the more general term was restricted so as to denote all the remainder that was not Halachah. This is, in practice, what Haggadah does mean, namely, interpretation of Scripture in all other directions except that of precept. ^[16] As a technical term, indeed, the actual word Haggadah may be no earlier than the first, or even the second, century of our era; but that method or process of interpretation which it was used to describe was in practice long before.

Haggadah, then, covers the whole field of scriptural interpretation except so far as it relates to precept; and this is why the contents of the Haggadah are so much more diversified than those of the Halachah. One might truly say that the Haggadah is the Pharisaic comment upon life as a whole in the light of Scripture, the element of duty being reserved for special treatment.

If the Scripture could give even a hint upon any aspect of human nature, upon any phase of human experience, upon any attribute of God, upon any mystery of His providence, then the unfolding of the true meaning of that hint is Haggadah.

It will be clear, from what has been said, that all the subjects usually included under the term doctrinal theology would find their place under the head of Haggadah. Such are the doctrine of God, His existence and attributes; the doctrine of sin and restoration; the doctrine of revelation; the doctrine of "the last things," etc. And it is quite true that whatever the Pharisees taught upon those subjects is found in the Haggadah and not in the Halachah. But there will not be found a consistent system of doctrine upon these or any other subjects; there will not be found a detailed scheme of heads of belief. There will be found the utterances of individual teachers, sometimes diverging widely from the opinions of other teachers upon the same subject. There will be found, not indeed a complete and unrestricted license to any man to say and teach and believe what he liked, but a liberty to differ where each had what seemed to him good warrant for his belief. *Uniformity of religious belief was never required by the Pharisees*; and the most that was done in that direction was to recognise that there were certain limits beyond which a Jew could not go and still remain within the Jewish communion. Thus, even if he claimed to prove from Scripture that there were other gods than the One, he would cease to be acknowledged as a Jew. Or, if he said that the Torah was not from Heaven, *i.e.* was not a divine revelation, he would in like manner be regarded as no longer a Jew. But (to put it generally), if he loyally accepted the axioms and postulates of Judaism, then he was free to draw his own conclusions from them in regard to what he believed. The Rabbis never drew up a doctrinal creed; and when Maimonides did so, in the twelfth century of our era, he did what was felt by many to be uncongenial to the spirit of Judaism.

This absence of a system of doctrinal theology is a feature of Pharisaism which is most important for the right understanding of it; and Christian scholars have gone far astray through not being aware of this essential fact. Weber proclaims his error in the very title of his book, *A "System" of Ancient Palestinian Synagogue Theology*. There is much to be learned from Weber's book, and much that is extremely valuable to those who know how to use it; but, none the less, the whole conception of Pharisaic theology expounded in that book is fundamentally wrong, because Weber calls that a system which never was a system, and never set out to be. Christian doctrinal theology is capable of being presented as a system; and has, in fact, been so represented by almost every denomination of Christians.

Weber presumably had such a system on Lutheran lines. He took for granted that there must have been a system on Pharisaic lines; in other words, that the doctrines of Pharisaic belief were developed from fundamental principles with such logic as was admissible, and were consistent with each other. He therefore took the general scheme of his own Christian theology, and set down under its several heads what he could find of Rabbinical doctrine upon each point. He must have been perplexed by the want of agreement amongst his authorities, but he got over that by regarding the more prominent doctrine as the rule, and the other as the exception; the former was a part of the system, the latter was an aberration. Christian scholars are pathetically grateful to Weber for having given them an orderly and methodical arrangement of the medley of Pharisaic doctrine; certainly he has done so; but with as much success and as much truth as if he had described a tropical jungle, believing it to be a nursery-garden. Many people have seen a nursery-garden. Few have seen a jungle. It is easy and natural and highly convenient to identify the unfamiliar with the familiar; but the jungle remains a jungle, when all is said and done.

The meaning of which is this, that the Rabbis adjusted their beliefs to the Torah; they believed whatever they found there, or could deduce from its plain statements and obscure hints, or could shelter under its sanction. It never troubled them that what they found in the Torah was not always mutually consistent. One teacher drew forth *this* lesson, and another drew forth *that*, and a third something different. But what then? Only that the Torah contained these various lessons; and why should not they all be learned? For had not God given them all? What he said had many meanings, and was not exhausted by one interpretation.^[17] Even if contradictory conclusions were drawn, they were not on that account any the less divine truth. It was said (j. Ber. 3^b), in regard to the controversy between the school of Hillel and the school of Shammai, "The words of each are the words of the living God." And that applies to the whole field of the Haggadah. If the results of interpretation were arrived at by legitimate methods, and declared by competent teachers, then they were received as valid. Not indeed that anyone was required to believe what was stated in them. That was not the intention of the teacher. Haggadah was above all things meant for edification; it presented religion under a great variety of aspects, and by means of an extraordinary wealth of illustrations drawn

from the whole field of knowledge and experience. To learn this was good, by reason of the variety; the religious thought of the learner was enriched, his moral nature benefited, and his spirit continually refreshed by the contemplation of the everchanging aspects of divine truth. Uniformity would have made that impossible; to have required it would have been fatal; and to suppose that it was required is to miss the point of Haggadah, which is what Christian scholars usually do.

If a Jew were told by some teacher a piece of Haggadah, he would be impressed by the wisdom or the beauty of the thought contained in it, or perhaps would admire the skill which drew it forth from some obscure hint of Scripture; but he would never say to himself, "I must straightway believe this; if I do not, I shall be in error, and in peril of my soul." He would more likely say, "Blessed art thou, Abraham our father, from whom has sprung such a teacher for Israel." And observe that Haggadah is still Torah. It is an exposition and application of what is implicit in the divine revelation, drawn forth and made articulate. Yet, even so, there is no demand made for the acceptance, as an article of belief, of each Haggadic exposition. The Jew, and notably the Pharisee, knew what faith was, as well as the Christian did; but he did not make it the regulator of his attitude towards that which was taught him as the contents of revelation.

I have said that Haggadah is interpretation of Scripture in all directions except that of precept. And that is true; but the term "interpretation" must be taken in a very wide sense. A connection of some kind there always is between Scripture and Haggadah; but it is sometimes extremely slight. For the Haggadic interpreter performed his task in two ways: either he developed what he believed to be the real teaching of Scripture upon this or that point; or he sought to find in Scripture a sanction for truths which he already believed. And not merely for definite truths, but for anything which might tend to edification,—ethical principles, mystical speculations, meditations on providence and the wonders of creation, the imaginings of pious fantasy, and even the play of daring wit. There was nothing that could not find a place in the Haggadah, if it could be linked on to some text or word or letter of Scripture. The methods employed were, from the point of view of strict exegesis, often wildly extravagant. No freak of allegory, of word-play, of fantastic juggling with letters and syllables, is without illustration in the Haggadah. And the men who employed such methods

knew well that what they were setting forth was not the plain literal meaning of Scripture. What they saw, with their inward vision, was the divine truth, holiness, justice, beauty, goodness, love; they read it in their own experience, and traced it in nature and history and man. They looked to see it all mirrored in Scripture; for there was the divine revelation, and there all that they believed to be divine must be. Some of it could be plainly seen; for, in essentials, the Haggadic teaching upon ethics and piety kept to the main lines of the Scriptures. What could not be plainly seen was inferred to be there; and no hint was too slight to indicate its presence. We say that this means reading into the text what is not there. And doubtless that is the case. But the Haggadist did not so understand what he did. If he was conscious of ideas, thoughts, beliefs, which he felt to be variously good, then, since Scripture was for him the only vehicle of divine revelation, somewhere in Scripture must be indicated all that various good. And any method was justified by which it could be brought forth and made clear. That I take to be the theory of the Haggadah, the explanation which a Haggadist would give of the reason for his peculiar treatment of Scripture. Haggadah, like Halachah, is a natural, perhaps even a necessary, development of a religion of Torah. Both are integral parts of Torah; and a thorough understanding of the nature and function of each is necessary for the understanding of the whole. Halachah and Haggadah, together with the personal spiritual life of the individual, cover the whole field of the religious consciousness of the Pharisee. For it is entirely wrong to say that the Pharisee was wholly taken up with the Halachah, the discipline of direct precept. No Pharisee that ever lived confined his thoughts and aspirations, his beliefs and hopes, within the range of Halachah, nor could have done if he had tried. He guided his conduct by the Halachah certainly, because he believed that by following it he was doing the will of God exactly as it ought to be done. But the Halachah did not teach him, and did not profess to teach him, how he should think about God, nor did it seek to regulate his own private communion with his Father in heaven. For this last he sought no other teacher except the promptings of his own soul and the answer of God to his prayers. And for the knowledge of God's nature and His works in providence and human history, he gladly learned from any wise and gifted teacher who could tell him anything, or in any way help him to think wisely, to worship devoutly, to live worthily. I shall have more to say about this in the concluding chapter. I only mention it here, because it was

necessary to show the place which the Haggadah occupied in the religious thought of the Pharisee, and how it did for him what in other religions is done by a scheme of doctrinal theology. For the present I keep to the subject of the Haggadah itself, and proceed to inquire what can be learned from it as to the main heads of Pharisaic belief, especially in the period covered by the New Testament. It is mainly for the sake of this inquiry that I have given the foregoing explanation of the nature and intention of Haggadah.

The inquiry is by no means an easy one. For, while it is only necessary to open a volume of the Talmud, or of one of the great Midrashim, to find on almost every page some Haggadic utterance, often indeed a great mass of Haggadah, it is wholly unwarranted to say "this" and "this" is what the Pharisees believed. It may be; and, of course, if it were not in some way acceptable to Pharisaic minds, according to their canons of judgment, it would not be found in their books. But the Haggadah does not carry its meaning on the surface, nor yield it to the hearer or reader who has only a passing glance for it or a careless ear. And thus, what really represents the truth believed, or the good discerned, the element to which the mind assented, and which it gratefully received, is not expressed in the verbal form of the Haggadah, nor in its statements,—extravagant and even impossible as they sometimes are. There was no idea of taking those statements as they stand, as if they were to be accepted as true, and believed as divine revelations. When it is said by a Haggadist that since the creation God has been occupied in making marriages (Ber. R., p. 133^c § 68. 4), that does not represent as it stands what any Pharisee, or the Haggadist himself, really believed about God. As George Eliot truly says of that particular Haggadah, "The levity of the saying lies in the mind of him who hears it"; and, as she might have added, puts a frivolous meaning on it. The Haggadah is full of such things; but the Haggadah is not on that account frivolous or absurd. And when the unwary Christian produces specimens of Haggadah, and says, "See what those Rabbis believed and taught," the foolishness which he illustrates is not that of the Rabbis. To get at the real meaning and serious purpose of Haggadic teaching is one of the difficulties in the inquiry into what the Pharisees believed. In itself it is not a great difficulty, but it needs to be recognised.

A further difficulty is presented by the question, how far can the utterance of some individual teacher be taken to represent a generally accepted belief,

seeing that there was no requirement of uniformity of belief? To that question a decisive answer is scarcely ever possible, except within wide limits of probability. If a doctrine can be formulated upon some topic of theology, it will represent a *de facto* consensus of belief, rather than the conscious acceptance of the teaching of any authority; and those who held the belief might still prefer a different statement of it. Everywhere caution is necessary in drawing forth from the Haggadah its real meaning, and in forming conclusions as to the generality of its acceptance.

A still further difficulty, and one which is of especial importance for the purpose of this book, is that of using, for comparison with the teaching of the New Testament, Haggadah often of much later date. Of the enormous mass of Haggadah contained in the Rabbinical literature, only a small proportion is contemporary with the Gospels, and very little indeed contemporary with Jesus. One of the most famous Haggadists was R. Joshua b. Levi, in the middle of the third century of our era. If we find that he teaches some doctrine, are we entitled to use his words as evidence that such doctrine was believed by Pharisees in the time of Jesus and the Apostles? If not, then, of course, the appeal to the Talmud and Midrash, in illustration of Pharisaism in the New Testament period, is futile. Here, again, caution is necessary; but, with caution, the answer is that the later literature may rightly be used as evidence of earlier beliefs and ideas. We have already met the same question in reference to the Halachah (see above, Chapter II.). And the answer there was that the *principle* of Halachah was accepted, and the development of that principle was begun long before the time of Christ. What changed continuously through the centuries was the body and form of ascertained Halachah, determined by the gradual expansion into greater detail of its precepts, and their application to a greater variety of cases. The Halachah, as codified in the Mishnah, is much more extensive than the Halachah as it was known to the Pharisees in the time of Jesus. But the intention of it is the same for the earlier period as for the later. Wherefore it is legitimate to use the Talmud to illustrate the principle of Halachah as accepted in the New Testament period, as also for the periods before and after; but it would not be safe to infer that some particular definition, propounded by Akiba or Judah the Holy, was already regarded as Halachah, and taken for a rule of conduct by the contemporaries of Hillel and Shammai. Now, with regard to the Haggadah, the case is

somewhat different, because, as has been already explained, no uniformity of belief was required, while uniformity of practice was required. But, allowing for that difference, what was said about the use of the later literature in regard to the Halachah applies also to its use in regard to the Haggadah. For here, also, there is an element which does not change, or not to any great extent, over a period which includes that of the New Testament and a considerable time before and after. That element is the general Pharisaic belief about God, Israel, and the world, about man's relation to God and to his fellow-men, about virtues, vices, the nature of sin, the function of prayer, and so on. What the Haggadah did was to teach this, illustrate it in all manner of ways, and present it in every possible aspect, but not in any great degree to modify it. Indeed, I think hardly to modify it at all. There is, in Pharisaism, no such progressive development of doctrine as there is in Christianity. Of course there could not be, in the nature of things, a Pharisaic Christology. But there was no progressive doctrine of a Messiah, nor of the Torah, nor of the resurrection of the dead, nor, I think, of any of the main subjects of belief. There were general ideas commonly held upon these subjects, beliefs upon which there was substantial agreement, and no thought of challenge. And the Haggadah was the means by which this general body of belief was continually illustrated and illumined, so that it might have ever renewed power to refresh the soul. Just as the Halachah was the detailed application of Torah to conduct, on its practical side, as the doing of the divine will, so the Haggadah was the detailed application of Torah to the spiritual life generally, so that the light which God had given might be shed over the "things which are eternal."

I proceed to sketch out what I take to be the general beliefs of the Pharisees which form the background, or the substratum, of the Haggadah, so far as I have been able to make it out. Afterwards I will give some Haggadic illustrations upon particular points. I purposely do not attempt a systematic arrangement, because the Pharisees themselves did not.

The object of worship is God—one, and undivided. He is the Creator of the world and of everything in it; and no other being shared with Him in that work. He does what He will; but His will is always just. His providence supplies the wants of His creatures. He is good, kind, and merciful.

It is the duty of man to obey Him. He has made known His will; He rewards those who fulfil His command, and punishes those who disobey. He has made all the human race; but Israel stands in a special relation to Him, because only Israel is bound to Him by a covenant. The Torah was offered to the other nations, but they would not have it. They are therefore outside the range of God's favour. They can only come within it by learning from Israel the Torah. There are, nevertheless, good men amongst the other nations.

It is the privilege of Israel to have been found worthy to receive the Torah, and his highest aim is to fulfil it, not only by doing what it sets before him as the divine will, but by taking to heart all that it teaches him concerning sacred things.

The Pharisee believed himself to be under the immediate care of God. Nothing happens to him except by the divine permission. God sees, and knows all that he does and all that he is going to do. Nevertheless, his will is free. He is not compelled either to obey or to disobey. If he obeys, God is pleased with him. If he disobeys, God is angry with him. Reward will follow in the former case, punishment in the latter. If he has sinned, repentance will make his peace with God. Forgiveness is never refused to the penitent. He can always pray to God, and God will always hear him.

It is his duty to be kind towards his fellow-men, "especially towards them which are of the household of the faith"—namely, Israel. He must not wrong anyone, whether Jew or Gentile. He must especially do acts of charity towards the poor and the suffering. He must not live an idle life; and in all that he does he must serve God.

Although at present he has much to endure, yet there will be in the future a better time, when the Messiah shall come and set up the kingdom of God upon earth. Then Israel will be freed from the oppression of the Gentiles, and will enjoy peace and prosperity and the fulness of the blessing of God. When that shall be, no one knows. God will send the Messiah when it pleases Him to do so. But the sins of Israel hinder his coming.

When life on earth is over, there is a life beyond the grave. For the righteous there is Heaven, where they will be rewarded; and for the wicked there is Hell, where they will be punished. The righteous in Heaven will live for

ever. The wicked in Hell will be destroyed and made an end of. There will be no chance to repent after death.

Man is under the protection of angels, and liable to temptation and harm from evil spirits. There are many such, and there is a prince over them. The angels are God's messengers. Each man has in himself two opposing impulses or tendencies; one towards good and the other towards evil. It is his duty to control the evil impulse and strengthen the good one. God will help him to obey the good, and will not prevent him from yielding to the bad. To keep his mind fixed on the Torah, and filled with its teaching, is his protection against sin and his incitement to right living. He is glad that the Torah gives him so many precepts to fulfil, because it thereby constantly reminds him of God, and provides opportunities for serving Him. The Torah is the centre and circumference of all his thoughts and beliefs about religion. In it God has revealed everything that He has revealed at all. It is the greatest gift He could make, and He has bestowed it all on Israel, and kept nothing back.

Such, in bare outline, and purposely stripped of all details, I believe to have been the contents of the religious consciousness of the Pharisees in general, the beliefs and ideas common to them all. In different periods, according to circumstances, there would be variety in the emphasis laid upon particular points.

For instance there might be, as there certainly was, more than one period when the group of beliefs centring on the Messiah rose into exceptional prominence, and were held with more than usual fervour. And, again, the destruction of the Temple in A.D. 70, and the final overthrow of the Jewish national polity in A.D. 135, had a profound influence upon Pharisaic belief, by laying additional stress on faithfulness to the divine will, and by causing deeper reflection upon the mystery of that will as shown in the suffering of Israel. The Pharisees deplored, with sincerest grief, the loss of the Temple and the cessation of its services. But they were well able to learn the lesson of a worship and a religious life, for which such external means were needless. And they did learn it with wonderful rapidity.

So, too, for individuals according to temperament, some elements of the general belief would have more importance than others; and there would be,

further, a great variation in the strength of conviction with which the beliefs were held, as also in the character of those who held them. It is clear that such a general conception of religion could open a way for the faults of pride and hypocrisy, charged against the Pharisees, as it also could open the way for the virtues of humble piety and sincere devotion. It probably did the one. It certainly did the other. There were good, bad, and indifferent Pharisees, as there are good, bad, and indifferent Christians. And all that I am concerned with at present is the general Pharisaic consensus of belief, thought, and feeling upon divine things.

If I have described it correctly, then it represents the underlying meaning of the Haggadah; and whatever is contained in the Haggadah is intended to illustrate, or enforce, or make prominent, some aspect of those beliefs. It matters nothing that there is endless variety, and frequent contradiction, in what the Haggadists say, *i.e.* in the form in which they clothe their thoughts; nor that they make statements which are extravagant, or impossible, or absurd, or grotesque, or even occasionally, in appearance at least, irreverent. What really was in their mind was the underlying religious truth or ethical principle which they sought to illumine. That was their serious intention; and it is not a denial of this if it be admitted that, like all interpreters who use the method of allegory, they occasionally let their fancy run riot, and indulged in freaks of exposition whose connection with religion is not obvious.^[18] Trivialities of that kind, however, may be left out of account.

It will be of more use to take some of the points of the foregoing sketch of Pharisaic belief, and examine them in greater detail. And the first shall be the doctrine of God, and more particularly certain aspects of the doctrine of God.

Between the Pharisees and the New Testament teachers there was no dispute as to the sole sovereignty of God, or that He was the Creator and upholder of all things. But it is well to lay stress upon the Pharisaic belief in the nearness of God and the directness of access to Him; also to make clear the fact that emphatic resistance was offered by the Pharisees to any idea of a plurality of divine persons. They would own no being who could be regarded either as in some sense a second God, or as a mediator between God and man.

That the Pharisees commonly thought of God as a cold abstraction, a distant and inaccessible Power, is by Christian scholars frequently but quite erroneously asserted. Of course, it was never denied that God was the Almighty, the Lord of all worlds, supreme over everything. Indeed, that was affirmed over and over again, and is one of the axioms of Pharisaic belief. But, whatever other Jews may have done, under the influence of Hellenism, the Pharisees never doubted for a moment that God Himself, the one supreme God, was actually near to every one of His people; "near, in every kind of nearness," as it was said (j. Ber. 13^a). That is the really effective belief of the Pharisees, as can be seen on well-nigh every page of the Talmud and the Midrash. How it was to be reconciled, if it needed to be reconciled, with the belief in the abstract infinity of God, was a question which the Pharisees never troubled to answer, even if they were aware of it. There was no Jewish philosophy of religion till long after the closing of the Talmud. And the Pharisees most certainly did not logically develop their conception of God from their idea of the Torah. Whether, even if they had done so, they would have arrived at the barren abstraction, which Weber declares to have been the Pharisaic idea of God (Weber, *System*, etc., p. 149), is open to question. But they never allowed any theoretical reasoning which would prevent them from owning the love and goodness of God, or which would place an impassable gulf between Him and His creatures. The following piece of Haggadah illustrates this point: "It is said (Exod. xx. 1), 'And God spake all these words.' He doeth the whole at once (*i.e.* in one action). He kills and He makes alive, in one action. He wounds and He heals, in one action. The woman in travail, those that go down to the sea, travellers in deserts, captives in prison, east and west, north and south, He hears them all, in one act (of hearing)" (Shem. R. p. 50^b). And a few lines further on it is stated that He spoke all the ten commandments in one act (of speaking). There is here no attempt to explain *how* God, being Almighty, can take particular notice of persons; there is the unquestioning belief *that* He does so. He may be high in Heaven, but no suffering creature of His suffers unseen or unheard. "A bird perishes not, without Heaven" (*i.e.* except by the will of God); so said a great Pharisee, in words that have a striking likeness to a saying of Jesus on the same subject (j. Sheb. 38^d, and cp. Matt. x. 29). A story is told (Debar. R. 102^a) of a certain Jew who was on board a ship, where all the other passengers were Gentiles. The ship touched at an island, "and the sailors said to the Jew, 'Take money and go

ashore, and buy something for us.' He said, 'I am not at home here; how shall I know where to go?' They said, 'A Jew is at home everywhere. For whithersoever thou goest, thy God goeth with thee.'" (The reference is to Deut. iv. 7, "What great nation hath a God who is so nigh to them.")

The nearness of God is especially emphasised in relation to prayer. He hears all who pray to Him, and it is He himself who hears and to whom prayer should alone be offered. "Every man," says the Talmud, "has a 'patronus' (a 'friend at court'). If there comes trouble upon him, he does not go direct to his patron, but goes and stands at his door, and calls to the servant or to a son of the house, and he tells the patron 'So and so is standing at the door of thy court.' Perhaps the patron has him admitted. Perhaps he leaves him alone. But the Holy One, blessed be He, is not so. If trouble comes on a man (God says), 'Let him pray, not to Michael and not to Gabriel, but to me, and I will answer him at once.' And this is that which is written (Joel ii. 32), 'Everyone that calleth on the name of the Lord shall be delivered'" (j. Ber. 13^a). Here we have not only the declaration of belief in direct access to God Himself through prayer, but also the repudiation of any mediator. Michael and Gabriel may be servants of God, but they do not come between God and man to keep them apart or to serve as the necessary medium of intercourse. They were never, in Pharisaic theology, allowed any place which might seem to impair the divine Unity. The idea of a second God was steadfastly resisted; and no personification of divine attributes, or exaltation of archangels, was ever carried so far as to imply a plurality of persons in the Deity. As against the doctrine of the Logos, and the Christian exaltation of Christ, the Pharisees maintained the strict unity of God. Neither the Memra of the Targums, nor the Shechinah of the Talmud and the Midrash, however personified for Haggadic purposes, was regarded as being in any sense a personality co-existent with God Himself. The Holy Spirit was either God, or the influence of God, but not a personality distinguishable from Him. Metatron comes the nearest to the conception of a second God; but, whatever the later Cabbalists may have made of Metatron, the Pharisees of the Talmud expressly rejected the notion that he was a second God. It is told (b. Hag. 15^a) that the famous Elisha b. Abujah, the nearest approach to a Jewish heretic, went up into Heaven (Paradise), and there saw "Metatron, to whom was given power to sit and write down the merits of Israel." (Elisha) said: "It is taught that on high there is no sitting, no strife,

no parting, and no joining. Can there be, Heaven forbid, two powers? (*i.e.* two Gods). They brought out Metatron, and gave him sixty lashes of fire." The commentator on this passage explains that Metatron was treated in that manner in order to show that he was not superior to the other angels in kind, and that he was subservient to God, not on any sort of equality with Him. Metatron, as I have elsewhere maintained, [\[19\]](#) is the Rabbinical reply to the Gnostic and Christian doctrines which seemed to threaten the divine Unity. It was perhaps with reference to Christian doctrine that the Rabbis laid stress on the belief that God has no Son. Commenting on Exod. xx. 2: "R. Abahu said: 'A parable of a king of flesh and blood; he reigns and has a father or a brother. The Holy One, blessed be He, saith, "I am not so"; (but (Isa. xlv. 6) "I am the first," I have no father; "and I am the last," I have no son; "and beside me there is no God," I have no brother"' (Shem. R. 51^b). Abahu lived in the third century of our era; and most of the Haggadic expositions of the unity of God, on the lines indicated, are later than the New Testament period. But, as they were only developed in opposition to Christian teaching, it is not likely that in the time of Jesus or the Apostles the Pharisees were divided or uncertain upon a point which had scarcely as yet been challenged. Jesus himself never challenged it, so far as the Synoptic Gospels are evidence; and, upon a belief so fundamental in Pharisaic Judaism, it is not to be supposed that he was more consistent than the Pharisees themselves. The challenge came not from Jesus but from Paul, even though Paul may not have intended, or been conscious of, any infraction of the unity of God in his teaching about Christ. The Pharisees took the alarm from him; and, in opposition to his Christology, and the later Johannine doctrine, taught with especial emphasis the undivided sole supremacy of God. And they had no more difficulty than Jesus had in believing that the one God was both sovereign Lord and heavenly Father, as in fact they called Him.

So much for the Pharisaic conception of God. We will now consider another set of beliefs of theirs upon which a comparison with New Testament teaching is possible and instructive—the Pharisaic ideas about Retribution, reward and punishment, merit. There is no consistent Pharisaic doctrine upon the subject, but rather a comment upon the facts of human experience from different points of view. That man's will is free is one of the axioms of Pharisaism. It was stated by R. Akiba, "Everything is foreseen, and freedom

is given, and the world is judged, and all is according to the amount of work" (M. Aboth. iii. 15). Man is therefore a moral agent, cognisant of the distinction between right and wrong, capable of acting upon that distinction, and liable to be judged accordingly. "All is in the hand of Heaven except the fear of Heaven," said another teacher (b. Ber. 33^b). If, then, man serves God, he does so not on compulsion. He is therefore subject to the approval or disapproval of God for what he does. Experience, interpreting life, discerns evident tokens of such approval and disapproval; and Scripture clearly teaches that God distinguishes between the righteous and the sinner in His treatment of them. Whatever form His approval or disapproval may take, they are His certain judgment on human actions, to be looked for as the consequence of doing those actions.

The Pharisees, like other moralists, expressed this by saying that God rewarded the good and punished the bad. And they used that principle as a clue to the meaning of providence, as shown in human suffering and happiness. They pondered on the problem why suffering should be inflicted on the apparently innocent? and why the obviously sinful seemed often to prosper? And they suggested various partial solutions of the problem, but wisely left it an open question. It might be that there was no suffering without previous sin, or it might be that suffering was sometimes the chastisement imposed on the righteous through the love of God, as it is said: "Whom the Lord loveth He chasteneth." It might be that material prosperity and adversity were the signs by which the divine approval and disapproval were shown, the reward or the punishment for human actions; or it might be that these were manifested only inwardly, in the soul and not in the outward lot. All these different views find varied expression in the utterance of Pharisaic teachers, and there is no attempt to set up one as true to the exclusion of the rest. And when the Pharisee spoke of reward and punishment, he meant to indicate his belief that in some way it went well with the man who did good, and ill with the man who did wrong, and both by the divine appointment.

In the Gospels, Jesus also speaks of reward, as every reader knows; and many readers have winced when they read:—"Pray to thy Father, ... and thy Father shall *reward* thee." "Great is your *reward* in Heaven." "If you do good to them that do good, what *reward* have ye?" Phrases like these have an unpleasant sound, wherever they occur, because of the notions

commonly attached to the term reward. No one supposes that Jesus, in using that term, was appealing to low motives of self-interest; and I believe that he meant exactly what I have given as the Pharisaic meaning, namely, that there was a divinely appointed difference between the condition of the good and that of the bad, as a consequence of their actions. It is at least not justifiable to say that Jesus must have meant what he said, according to its best interpretation, and that the Pharisees must have meant what they said, according to its worst interpretation. Jesus was one, and the Pharisees were many; and while he remained ever on the highest plane of spiritual wisdom, the Pharisees represented different degrees of that wisdom. Some might, and occasionally did, interpret divine reward and punishment in terms of material welfare, while others saw more deeply into the spiritual meaning of those terms. But it is not true that the material interpretation represents the general belief of the Pharisees, while the spiritual interpretation is the exception. The truth is that they would not reject any interpretation which might throw some light upon the problem; and they cared nothing that different interpretations contradicted one another.

So far, there is no essential difference, that I can see, between the Pharisaic teaching and that of the Gospels, or the New Testament generally, about reward and punishment. The difference that does exist is due to the fact that Pharisaism was the religion of Torah. For here the divine approval or disapproval was necessarily associated in an especial degree with the "Mitzvōth," the precepts which expressed the will of God for the conduct of man. To say that there is a reward for doing a "Mitzvah" is no more out of keeping with true piety than to say there is a reward for praying to the Father which seeth in secret. In each case it only means that the act of devotion to God, whatever form it take, is acceptable to Him, and His blessing is given to the doer of it. Now, the Mitzvōth were clearly-defined, specific acts; and the Pharisee, as has been already pointed out in a previous chapter, regarded them not as irksome constraints, but as welcome opportunities for serving God. The more Mitzvōth he could meet with the better. If, by doing them, he could thereby please God, what more could he wish for? Certainly he looked for reward; but the joy of service and the blessing of God was the reward he looked for. That is the real mind of the Pharisee in regard to reward. And if some Pharisees interpreted the blessing of God in a material sense, to be shown in outward prosperity, while others

interpreted it in a spiritual sense, that is only a difference of temperament as between particular Pharisees. What the reward should be, in what way God would show His approval and give His blessing, was as God should please. The Pharisee served Him with gladness and zeal; and only hoped (as Christians also have been invited to hope) that God might say to him: "Well done, good and faithful servant, enter thou into the joy of thy Lord."

It was a Pharisee who said, "The reward of one Mitzvah is the opportunity to fulfil another" (Aboth. iv. 5); and perhaps no words could better indicate the Pharisaic view of reward in the service of God. The service is everything; the reward is God's way of showing that the service is acceptable. Moreover, the reward, if it were expected to be anything more than the present consciousness of divine approval, was not looked for in this world, but would be part of the bliss of the world to come. "Thou wilt find," said a Rabbi, "no single Mitzvah in the Torah, to which a reward is attached, which does not depend on the raising of the dead. 'Honour thy father and mother, that thou mayest prolong thy days,' and 'that it may be well with thee.'... 'That thou mayest prolong thy days' in a world which is endless, and 'that it may be well with thee' in a world which is wholly good" (b. Hull. 142^a). And again it is taught, "What is that which is written (Deut. iv. 7) 'which I command thee to do them this day?'" To do them *this day*, and not *to-morrow*. To *do them* this day, and not to *receive the reward* this day" (b. Kidd. 39^b); and on the same page is the express statement, "Reward for a Mitzvah in this world there is none." Of the nature of the reward this is said: "The world to come is neither eating nor drinking, nor increasing and multiplying, nor giving and receiving, nor jealousy, nor hatred, nor strife; but the righteous sit with crowns on their heads, and enjoy the light of the Shechinah" (b. Ber. 17^a).

Such ideas were in the minds of the Pharisees when they spoke of the reward for doing the will of God; ideas not hardened into a formal doctrine, and perhaps by some only dimly apprehended, but yet indicating a vision of divine things not very unlike what has floated before the gaze of Christian souls. But while the Pharisees thus delighted to muse on the reward, they were emphatic in teaching that the "Mitzvah" was not to be done for the sake of the reward, as if to obtain thereby some payment of what was due. The distinction is somewhat fine, especially as the reward hoped for was spiritual bliss and not material advantage. But the Pharisees drew the

distinction, nevertheless. Thus it is said, in reference to Ps. i. 2, "His delight is in the law of the Lord." R. Eliezer says, "Who delighteth greatly in his commandments." "In his commandments (Mitzvōth), but not in the reward of the Mitzvōth" (b. A.Z. 19^a). The sole reason allowable for doing a Mitzvah is the hope of pleasing God thereby. And then follows the well-known saying of the ancient Antigonos of Socho: "Be not like servants who serve their master for a reward." These are only a few instances out of many to show that the Pharisee was not actuated by motives of the kind which are usually ascribed to him in his performance of the things commanded him. If to an ideal so lofty and so austere, the Pharisee sometimes failed to rise, and said what was not worthy of it, there is no cause for wonder, since the same may be observed amongst Christians, and is merely due to individual human nature. But the Pharisaic conception of religion in general, and of this phrase of it in particular, is entitled to be judged by the best to which it looked up, and not to be condemned for its occasional failure to apprehend that best.

Finally, what about merit? The Pharisees were never afraid to talk about merit; but what they said must be taken in the light of what has already been stated. They had no fixed doctrine of merit; and there certainly never was a general Pharisaic belief in a system of bargaining with God as between debtor and creditor on business lines. This or that teacher may have used the terms of such transactions by way of illustration; but they do not represent the general mind of the Pharisees upon the subject. The Pharisees certainly believed that to perform many Mitzvōth was better than to perform one; and they not unnaturally concluded that there could be no more reasonable criterion for a judgment of character than the use which a man had made of the opportunities afforded by the Mitzvōth for serving God. Mitzvōth, being specific commands, could be counted up; and the degree of goodness shown in doing them, or of badness in not doing them, could be thought of quantitatively, instead of qualitatively. This is not, for obvious reasons, the best way of treating the matter; and the Pharisees have, in consequence, come in for a great deal of rebuke and contempt for having degraded the relation of man to God, when all that they did was to use an unfortunate metaphor in order to express a real distinction. It was perhaps mainly through the use of this metaphor, this quantitative description of goodness, that they laid themselves open to the charge of boastful self-righteousness;

and no doubt they were occasionally to blame in that respect. Because a Pharisee was able to observe, in a quite dispassionate way, the fact that he had performed so many "Mitzvōth." It would have been better for him not to have learned that method of self-examination. But, nevertheless, it is true, though only those who know the Pharisees can be expected to believe it, that genuine humility could and often did go along with that candid estimate of good performed.

This accumulation of goodness, through the performance of "Mitzvōth," is what the Pharisees meant by merit, "Zachuth." And though they were not in the least ashamed of it, nor saw why they should be, they were careful to keep the idea of merit within limits. Like the reward hoped for, the merit acquired was not a motive, but an accessory. They believed, certainly, that merit counted for much with God. As has been said, they believed that He judged men according to whether the goodness of their deeds or the badness was the greater; in other words, by the amount of merit which they possessed. But they did not presume to set up a claim against Him; and while they pleaded merit before Him, they were taught that it was not their own merit they should plead, but that of others. "He who pleads the merit of others is answered for his own; and he who pleads the merit of himself is answered for that of others" (b. Ber. 10^b). Very often it was the merit of the Fathers, Abraham, Isaac, and Jacob, to whose influence with God great effect was ascribed. Yet what is all this but the idea of intercession, of the good on behalf of the less good? And as between Pharisaic and Christian ideas on the subject, the difference is more in the form than the substance. Even the appeal to the merits of the Fathers was discouraged by many Pharisees, on the ground that it tended to shift responsibility for a man's own conduct on to someone else. They never for long forgot that, nor wavered in their trust that God was a just and loving God, into whose hands they need not fear to commit themselves. With simplicity of heart, rather than with profound philosophical acumen, they mused on their experience of life in the light of Scripture and in the thought of service of God; and if they did not get much further than the conviction that it is well with the righteous and not well with the sinner, that God knows all and will deal justly with all, that some of His ways are plain to be seen, and others past finding out, and that the whole duty of man is to fear God and keep His commandments; and that the highest joy is to serve Him with gladness, and

in doing justly, and loving mercy to walk humbly with Him,—who will say that they are very far wrong?

This was the practical purpose of the Pharisees, the aim of their serious intention, and, in no inconsiderable degree, the measure of their achievement.

I have dwelt upon these two aspects of Pharisaic theology as being of most importance for my main purpose in this book. To include all that could be said would defeat that purpose by wearying the reader. I have therefore left unnoticed such topics as the belief in the Messiah and the group of ideas connected with Eschatology; and I have done so in order to concentrate attention upon what is of fundamental importance, namely, the point of view from which the Pharisees looked upon religious belief and the truths apprehended in it, the special character imposed upon their general conception of things divine, by the form of Torah in which all their religious thought was cast. What has been learned in regard to the two theological topics dealt with in this chapter can be applied to others; and, in any case, the general mind of the Pharisees has, I hope, been made easier to understand.

If it has, then I trust to be able to carry the reader with me in what I shall say in the concluding chapter of Pharisaism as a spiritual religion.

CHAPTER VI

PHARISAISM AS A SPIRITUAL RELIGION

In this concluding chapter I shall make an attempt to indicate what Pharisaism was on its spiritual side, as the expression of the Pharisee's personal feeling towards God; or, if I may put it in colloquial terms, what the Pharisee "felt like" as a religious and moral being. I shall try to show the meaning of the peculiar type of character formed under the influence of the religion of Torah, both as regards its excellencies and its deficiencies. I say its deficiencies, for my aim throughout this book has been not to extol the Pharisees as if they had no faults, but to present, as clearly and strongly as I could, what they meant by their religion and what it meant to them. To say that they held to it with sincere loyalty, and that they found in it entire satisfaction, is not to say that it had no limitations, so that there could not be a more excellent way. But it is to say that Pharisaism was a genuine religion, so far as it went, able to satisfy the real wants of living souls. And how far it went, and where it stopped short, is a question upon which the adherent of another form of faith may have a decided opinion, and yet may be entirely mistaken. The Christian may be able, and I hope that the reader will have been able, to recognise that Pharisaism was a genuine religion. But the peculiar form in which that religion was expressed makes it exceedingly difficult for the Christian to recognise in Pharisaism what is familiar to him in his own religion; and, in consequence, he is extremely likely to misjudge and depreciate what to the Pharisee was right and good. My task in this chapter is very far from easy; and I am by no means confident that in performing it I could satisfy a Pharisee that I have done full justice to his case.

The subject is somewhat intangible, being indeed the inner consciousness of the Pharisee in regard to religion. I shall deal with it under three heads: first, the devotional literature available; second, the influence of the conception of Torah as a factor in the formation of religious character; and, third, the result of that influence.

The devotional literature properly so called of the Pharisees, at all events within the period covered by the Talmud, is not extensive. I mean by devotional literature, writings in the form of hymns and prayers. Of hymns there are, in this period, so far as I know, none; of prayers there are a few; some of them included in the liturgy of the Synagogue, and others being individual private prayers. This very meagre list may, however, be extended; certainly in one direction, and I believe also in another. Some of the Psalms ought to be included as being lyrical expressions of the religion of Torah, whether the writers were technically Pharisees or not. And, in the other direction, the liturgy of the Synagogue is the precipitate of Jewish piety through many centuries, and shows better than anything else how much of deep spiritual fervour was engendered by the religion of Torah. I shall make use of the Psalms, or some of them. But of the Synagogue liturgy I shall use only such parts as fall within the period covered by the Talmud. Because my concern is with the Pharisees of the early centuries, not with those of the Middle Ages. And, though I believe it to be the case, I could not prove that a Pharisee of the first century of our era would feel that his thoughts about religion found due expression in the hymns of Jehudah ha-Levi and Ibn Gebirol. Personally, I believe he would; but the fact remains that the Pharisees in the Talmudic period composed no hymns, and that fact must be allowed for whatever it is worth. The reappearance of devotional poetry must correspond, one would think, to some change in the spiritual atmosphere. But, in regard to the use of the Psalms, there need be no such hesitation. Some of the Psalms are unmistakably due to the influence of the conception of Torah in determining the form of religion; and the whole Book of Psalms was used by the Pharisees in the Synagogue service, and for their own study. This latter fact does not prove very much, because the whole of the Old Testament was also used and studied; and no one would contend that the Old Testament is throughout an utterance of Pharisaism. Still, it should be remembered that the Canon of the Old Testament was fixed by Scribes and Pharisees; and that the book of Psalms

was finally completed, and in part composed, for use in the Synagogue and the Temple, as the lyrical expression of the religion of Torah.

I shall therefore make such use of the Psalms as will help my purpose, and will supplement the study of them by an examination of the few Pharisaic prayers to be found in the Talmud and the early liturgy. Something was said about the Psalms in the second chapter, and I shall not repeat it. Here I would go into more detail upon particular points.

On looking through the Book of Psalms, it is seen at once that there are some which proclaim themselves unmistakably as Torah Psalms. Notably, Ps. cxix. and the second part of Ps. xix. It is quite inconceivable that these should have been written before Ezra had instituted the religion of Torah. Ps. i., also, the general introduction to the whole collection when finally completed, evidently moves within the circle of ideas associated with Torah. Occasional phrases in other Psalms may also reveal the same fact, even though the particular Psalm, as a whole, may not be specially devoted to the thought of Torah. Thus, in Ps. xxv. 10, the reference to "covenants" and testimonies, and in Ps. xviii. 22, "statutes and judgments." Indications like these, however, cannot be safely relied on; because, as stated in the second chapter, there was Torah before Ezra, and such phrases as those just quoted occur in Deuteronomy. The Psalms in which phrases are found, such as "Torah," "covenant," "testimony," "statute," "judgment," "precept," and the like, may be interpreted in various ways, and not necessarily in terms of the specific religion of Torah due to Ezra. But there is no need to draw any hard and fast line between those which are and those which are not Torah Psalms; for the religious frame of mind peculiar to the Torah Psalmist can be studied in detail in Ps. cxix. That is a Pharisee Psalm, beyond any question. I do not mean that the writer can be shown to have been a Pharisee in the technical sense, a member of a pledged company of separatists.^[20] Very likely he was; but whether he were so or not, he looked upon the Torah exactly as the Pharisees did, as the supreme and perfect revelation of God.

Ps. cxix., as everyone knows, is made up of groups containing eight verses, each beginning with one of the twenty-two letters of the Hebrew alphabet. There are thus one hundred and seventy-six verses in all. From an artistic point of view, the structure of the Psalm is stiff and mechanical; the divine

name is introduced twenty-two times, corresponding to the twenty-two groups of verses. The changes are rung upon a series of ten words—Torah, statute, righteousness, precept, judgment, way, ordinance, word, saying, and faithfulness—the number corresponding, perhaps, to the ten commandments given on Sinai. With one exception, v. 122, every verse contains one or other of the ten words in the list just given. The result is a certain monotony, and the Psalm is not amongst those most generally admired and loved by the ordinary reader. Whether there is any progression of thought is open to question; it would not, apparently, make very much difference if the verses were rearranged according to another pattern. But once we get past the barrier of artificial method there is thought and feeling in abundance. The one object of thought is the Torah; and the feeling is devout wonder in regard to it, and adoration of God who gave it. The ten words are only so many aspects of Torah, and serve mainly to give variety to the thought of the divine revelation.

The Psalmist meditates upon the Torah, thus variously indicated, from two points of view: first, that of its divine excellence and the goodness of God in revealing it; and, second, that of his own endeavour to fulfil the precepts contained in it. In reference to the first head, it is clear that the Psalmist was filled with delight, gratitude, and praise. The Torah and all connected with it inspired him with joy. There is not the faintest trace of any feeling of oppression, as if he were burdened by the precepts; and, for what is not precept but simply instruction, he received it with devout rapture, as being a precious gift which God had been pleased to bestow. That God had given that revelation was to the Psalmist the greatest of all his blessings. There is in the Psalm but little reference to the past history of Israel, as showing the divine providence. The Psalmist was deeply conscious of God in the immediate present, and of his own close relation to Him. Of course, the Torah, so far as it was a written record, included the history of all the divine dealings with Israel, down to the time of Moses; but it was not this aspect of religion which chiefly appealed to the Psalmist. The providential mercy of God served to give fuller and richer meaning to the thought of Him as the object of worship. The following phrases will serve to indicate the Psalmist's attitude towards God:—v. 7, "I will give thanks unto Thee with uprightness of heart." v. 12, "Blessed be Thou, O Lord; teach me Thy statutes." v. 18, "Open Thou mine eyes, that I may behold wondrous things

out of Thy Torah." v. 41, "Let Thy loving kindness come unto me, O Lord; Thy salvation, according to Thy promise." v. 49, "Remember Thy word unto Thy servant; for Thou hast caused me to hope." v. 57, "Thou art my portion, O Lord." v. 64, "The earth is full of Thy mercy, O Lord." v. 68, "Thou art good and doest good." v. 75, "I know, O Lord, that Thy judgments are righteousness, and that in faithfulness Thou hast afflicted me. Let Thy loving kindness be for my comfort, according to Thy promise unto Thy servant. Let Thy tender mercies come unto me, that I may live." v. 90, "Thou hast established the earth and it abideth. They stand this day, obedient to Thine ordinances; for all beings are Thy servants." v. 132, "Turn Thou unto me, and have mercy on me; as Thou usest to do unto those that love Thy name." And v. 176, "I am like a lost sheep; seek Thy servant." These are only a few of the characteristic phrases of the Psalmist. He evidently feels towards God reverence, trust, and hope; and, no less evidently, does not feel that God is far off and unapproachable, an abstraction rather than a living presence. God was, for the Psalmist, the creator of the world; but He was also the guide and protector of those that know Him and keep His commandments. And it was the privilege of such that they should have been allowed to know Him, and hold communion with Him. The Torah was the means by which that privilege was made available to Israel; and the "precepts," "ordinances," etc., were the particular occasions on and through which that privilege might be realised and enjoyed, and the devout worshipper might come into communion with God. The Psalmist never lost sight of the purpose of the precepts, in the mere doing of what they enjoined. For him the doctrine of the *opus operatum* would have been a frivolous and mischievous perversion of the truth; in modern phrase, a "soul-destroying heresy." There is nothing of the taskmaster in the Psalmist's conception of God; he does not indeed call Him the Father in Heaven, but that term would more truly express his thought than any phrase of bondage and compulsion. And we can see how naturally the term Father in Heaven would take its place in the language of devotion, when once it had occurred to someone so to use it.

The Psalmist's conception of God, though it is mostly defined in relation to Torah, does not contradict in any way that which is set forth or implied in the rest of the Psalms, or in the highest teaching of the prophets. Compare Ps. ciii., by common consent one of the noblest utterances of pure spiritual

theism that the Old Testament contains:—"But the mercy of the Lord is from everlasting to everlasting upon them that fear Him, and His righteousness unto children's children; unto such as keep His covenant, and to those that remember His precepts to do them." In Ps. ciii., the changeless mercy and love of God are especially dwelt on—His forbearance towards human frailty; while in Ps. cxix. the main thought is of God as having given Torah, divine teaching. But neither Psalmist excludes what the other chiefly dwells upon. The Psalmist in Ps. cxix. cannot be said to have narrowed the conception of God. He was in accord with all that the prophets and the other Psalmists had believed of the greatness and goodness of God. What this Psalmist did was to utter his praise of God, so conceived, from the point of view of the means of grace which He had given, the conditions which He had appointed for personal knowledge and service of Himself. Unless this be understood, Ps. cxix. is wholly misjudged; and the fact that it appeals less than almost any other Psalm to the reader, at all events the Christian reader, is due to unfamiliarity with the Psalmist's point of view. Once that is found, the whole Psalm shines from end to end with pure devotion and fervent, genuine piety.

Second, as to the Psalmist's feeling in regard to his own efforts to fulfil the precepts, and to live in accordance with the Torah. As these were to him the means of realising his personal relation to God, and of entering into communion with Him, he was not in despair when he failed in obedience. He prayed for forgiveness, believing that, if he repented, God would forgive him. When he broke a precept, he sinned and knew that he sinned; but he was not conscious of having thereby set up an insurmountable barrier between himself and God. A barrier certainly; but one which penitence on his part and forgiveness on that of God both could and did remove. All the ideas about bondage under the Law, to which Christians have been accustomed, rest upon a conception of the meaning and purpose of the Torah which Jews have never held, at least those who remained Jews. The writer of Ps. cxix. never held it.

This Psalm is marked by careful, sometimes almost painful, introspection. The Psalmist is continually dwelling upon the precepts as they affect himself, his love for them, his desire to keep them, his delight in them, his longing to learn them, and to be more perfectly in accord with them, his fear lest he should wander from the way of them. Indeed, the whole Psalm

is made up of such meditation, in forms varied but continually repeated. Which goes to show that a Psalm written under the immediate influence of the idea of Torah could scarcely fail to be introspective. And this Psalm is an illustration, on a fairly large scale, of the fact that the change effected by the work of Ezra, in turning the religion of Israel into the channel of Torah, tended to make that religion far more personal and individual than it had been before.

The value of Ps. cxix., as evidence for the spiritual meaning of Pharisaism, is this, that it shows what was possible under the religion of Torah, by way of piety and devotion. The Pharisees held precisely such ideas about the Torah as are expressed in this Psalm; and I know of no ground for saying that they were without the piety and devotion with which the Psalmist quickened those ideas.

As has already been said, the Talmudic literature does not contain any hymns by Pharisees; at least, I have never met with any. Perhaps the Pharisees felt that the Psalms gave them all that they needed; perhaps they lacked the gift of sacred poetry. But though there are no hymns in the Talmud and the Midrash, there are prayers, both public and private; and these will throw some light upon the spiritual side of Pharisaism. The earliest prayers of all are those which form the opening and the close of the so-called Eighteen Benedictions, the "Shemoneh Esreh." These are ascribed, in the Rabbinical tradition, to the Men of the Great Synagogue; and though so great an age cannot be proved for them, it is certain that they are very old. They are the earliest existing portions of the liturgy used in the Synagogue; and though they are somewhat bare in their unadorned simplicity, they serve to show something of the religious spirit of the men who were making "a hedge about the Torah," and they indicate that there was something else in that operation besides waning faith and waxing formalism. I quote one or two of them:—"Blessed art Thou, O Lord our God and the God of our fathers, the God of Abraham, of Isaac, and of Jacob. God most high, creator of Heaven and earth, our shield and the shield of our fathers."... "We give thanks to Thee, O Lord, our God, for all the benefits, the favours, which Thou hast shown to us. Blessed art Thou, to whom it is good to give thanks. Bestow Thy peace upon Israel, Thy people, and bless us all as one. Blessed art Thou, O Lord, who makest peace." These prayers, as they are found in the liturgy now, are very much longer; I

have given what are believed to be the oldest parts of the three which I have quoted out of the eighteen. If there is not much warmth in these prayers, as there certainly is not, neither is there any of the vainglory and self-righteousness which are supposed to be characteristic of the Pharisees. And it should be borne in mind that there can be no great difference in date between these prayers and Ps. cxix.

However, I will come down to a time when the Pharisees, if they ever became such as the New Testament represents them, must have long acquired that character. Here is a prayer which dates from the second century of our era, and is part of the liturgy still in daily use:—"Lord of the worlds! not trusting in our righteousness, do we cast our entreaties down before Thee, but trusting in Thine abundant mercies. Who are we? What is our life? What is our virtue? What is our righteousness? What is our deliverance? What is our strength? What is our might? What shall we say before Thee, O Lord God and the God of our fathers? Are not all the mighty as nothing before Thee? and the men of name as though they had never been? And the wise are without knowledge, and the understanding as those who are without discernment. For the multitude of their deeds is nothing, and the days of their life are a breath before Thee" (b. Joma. 87^b, mentioned by R. Joḥanan). Christians usually get their notion of what a Pharisee's prayer was like from Luke xviii. 11, 12; and I do not deny that Pharisees may sometimes have prayed after that manner. Nevertheless, what I have just recited is more true to the real spirit of Pharisaism than the prayer in the Parable. And even to that there is another side. A well-known prayer, still used in the liturgy, runs thus:—"Blessed art Thou, O Lord, our God, King of the world, that Thou hast not made me a Gentile ... a slave ... a woman." Much scorn has been poured out upon those who have offered that prayer, as if it were nothing but the utterance of arrogant vainglory. But, however it may sound to Gentiles, what the Jews meant, and mean, by it is this, that God is thanked for having given in the Torah the opportunity of serving Him, in the "Mitzvōth," which were not enjoined upon Gentiles, slaves, or women. It is not self-righteousness which is expressed in that prayer, but the acknowledgment of special obligation, a higher calling, in no way inconsistent with humility and reverence. The prayer in the Parable was doubtless intended by its author to represent Pharisaic piety in an

unfavourable light; but the example I have just given is enough to show that a Pharisee would put a different interpretation upon it.

Here is another prayer from the second century (b. Ber. 16^b), and still in use:—"May it be pleasing in Thy sight, O Lord my God and the God of my fathers, that Thou wilt deliver me this day and every day from the shameless and from shamelessness, from the evil man, from the evil companion, from the evil neighbour, from evil chance, and from Satan the destroyer; from stern judgment and from the implacable adversary, whether he be a son of the covenant or no." This is merely a fragment of prayer, as indeed the others are which I have quoted. It is only a variation on the theme "Deliver us from evil," the evil being specified in concrete forms. And, since it has been incorporated in the liturgy, it was presumably intended for public use, and was not the private utterance of its author, who was R. Jehudah, the compiler of the Mishnah. This distinction is important, because it is often charged against the Pharisees that they reduced prayer, like so much else, to a mere mechanical routine; that they regulated, down to the minutest detail, the words and even the posture and the gestures of the worshipper; and that they left nothing to the spontaneous volition of the soul that would seek God. Certainly there are many such regulations in the Talmud, both as regards what should be said and how it should be said. But these all refer to the public worship of the congregation, and not to the private prayer of the individual. Moreover, they are indications of the process by which the liturgy was compiled, its contents determined, and the manner of its use appointed. The worshipper, using the liturgy, was concerned only with the finally completed order, and not with the stages of its preparation. When the Book of Common Prayer was compiled, there were discussions as to what should be included in it and what left out; whether this phrase or that was to be preferred; whether at such a point the congregation should stand or kneel; whether the minister should face the congregation or not; and so on.

Presumably, votes were taken, and resolutions passed upon hundreds of such points. Are these regulations a restriction upon worship? Does the worshipper know, or take any interest in knowing, the details of the process by which the liturgy was produced? He accepts the final result; and finds in it a help to his worship, unconscious of the fact that perhaps every line has been canvassed by a committee and settled after debate. Much the same

might be said of the preparation of any liturgy; and what is found in the Talmud, which offends the piety of the Christian, is only the same kind of preparatory work as that necessary in the case of any liturgy. If the Pharisees were extremely careful, as they certainly were, in deciding what should go into their liturgy, and how it should be used, why are they more to be blamed than those who directed, "Here the minister shall say" so and so? The Pharisees produced a liturgy which, gradually enlarged, has lasted down to the present day; and though a case may be made out for its revision, still it has served, for many more centuries than the Book of Common Prayer can claim, as the expression of the united worship of Israel.

But, while public prayer was thus carefully regulated, there was never any restriction, imposed or thought of, upon private prayer. It is expressly said (M. Aboth. ii. 13), "When thou prayest, make not thy prayer a fixed form, but a prayer for mercy and an entreaty before God." I do not think that this refers to public prayer; but, even if it does, it would still show that the Pharisees were careful to keep the spiritual intention of prayer, while using the prescribed form. But I believe the reference is to private prayer; and it is certain that this was left to the spontaneous freedom of the worshipper himself. Prayer was always an essential element in the religious life of the Pharisee; not because it was required of him, but because it was the natural instinct of his soul. "Would that a man could pray all day," said R. Johanan (j. Ber. 2^a). Pharisees knew what it was to withdraw to their inner chamber, and "pray to their Father which seeth in secret." And it was not a Pharisee who added:—"Thy Father, which seeth in secret, shall *recompense thee*."

Of such entirely private prayers there is no written record. But several prayers are mentioned in the Talmud as having been composed for their own use by famous Rabbis. Here are some of them as they are found together (j. Ber. 7^d):—"May it be Thy will, O Lord my God and the God of my fathers, that Thou wilt not put hatred of us into the heart of any man, nor hatred of any man in our hearts; and that Thou wilt not put jealousy against us into the heart of any man, nor jealousy of any man into our hearts. And may Thy Torah be our employment all the days of our life; and may our words be entreaty before Thee." To which was added by another Rabbi: "And unite our heart to fear Thy name; and keep us far from all that Thou

hatest, and bring us near to all that Thou lovest, and do with us righteousness for Thy name's sake."

The disciples of R. Jannai used to say this (on rising from sleep):—"Blessed art Thou, O Lord, who quickenest the dead. Lord, I have sinned against Thee; may it be Thy will, O Lord my God, that Thou wouldst give me a good heart, a good portion, a good disposition, a good understanding, a good name, a good eye, a good hope, a good soul, a humble soul, and a contrite spirit. May Thy name not be profaned among us; and make us not a byword in the mouth of the people; may our latter end be not to be cut off, nor our hope the giving up of the ghost. Make us not to depend on human gifts, and give us not our sustenance by the hand of men; for their comfort is small and the shame they inflict is great. And grant our lot to be in Thy Torah, with those who do Thy will. Build Thy house, Thy temple. Thy city, and Thy sanctuary, speedily, in our days."

R. Hija b. Abba used to pray:—"May it be Thy will, O Lord our God and the God of our fathers, that Thou wouldst put it into our hearts to offer sincere repentance before Thee, that we may not be ashamed before our fathers in the world to come."

R. Tanḥum b. Iscolastiki used to pray:—"May it be Thy will, O Lord my God and the God of my fathers, that Thou wilt break and take away the yoke of the evil inclination from our hearts. For Thou didst create us to do Thy will, and we are bound to do Thy will. Thou desirest, and we desire it. And what hinders us? The leaven in the dough. It is revealed and known before Thee, that there is no strength in us to withstand it. But may it please Thee, O Lord my God and the God of my fathers, that Thou wilt cause it to pass away from us, and that Thou wilt subdue it; and we will make Thy will our will, with a perfect heart." R. Joḥanan used to pray:—"May it be pleasing unto Thee, O Lord my God and the God of my fathers, that Thou wilt cause love, goodwill, peace, and friendship to dwell in our habitations; that Thou wilt grant us a happy end and the fulfilling of our hope; that Thou wilt fill our borders with disciples, and that we may rejoice in our portion in Paradise. Make us to acquire a good heart and a good friend; and may we awake to find what our hearts have longed for, and may there come in Thy presence rest unto our soul."

I have translated these prayers as nearly literally as our language would allow, so that the reader may have them as far as possible in their original form. There is nothing very sublime about them, none of the eloquence of fervent rapture. But neither is there any of the vainglorious boasting supposed to be characteristic of the Pharisees. They are sincere, simple, and earnest, so far as they go, petitions for the granting of things necessary for the soul as well as for the body. They may fairly be taken as representative of Pharisaic piety, in the absence of what is not within our reach, namely, the devotional language of the Pharisee's prayer to God in the solitude of his own chamber.

The illustrations which have been given from the scanty remains of the literature of piety left by the Pharisees will have been sufficient to show a very considerable difference of tone, character, spirit, between what was produced under the religion of Torah and what is found in the New Testament. And the impression so created is confirmed by the other citations I have made, in the course of this book, from the Pharisaic literature. To one who is accustomed to the New Testament, there is a certain flatness about the Rabbinical literature, a want of the sublime, and still more of the beauty of holiness, the fervour of faith, the personal consecration which marks the New Testament. There is nothing in all the Rabbinical literature at all like the rapt utterance in 1 Cor. xiii. That belongs unmistakably to the new dispensation, and not to the old. The same may be said of much else in the New Testament. If I may so express it, there is a different "feel" about it, quite unlike what there is about any Rabbinical writing. As to the fact of this, I imagine there can be no dispute; but it is well worth the trouble to try and get at the meaning of it. For it cannot be dismissed at once as being due to the spiritual deadness of the Pharisees, the result of engrained hypocrisy and self-righteousness. I trust that enough has been said in previous chapters to show that the Pharisees were sincere and in earnest about their religion, however strange to Christians be the forms in which they expressed their ideas. The very strangeness of those forms may well prevent Christians from recognising the meaning and worth of the ideas expressed in them, since Christians could not use those forms for their own religious ideas.

The question is not whether the Christian or the Pharisaic conception is the better; because, both for Christian and for Pharisee alike, that is a foregone

conclusion. The question is rather, why did the conception of Torah, which from the time of Ezra was the controlling factor in the development of Pharisaism, produce that particular type of piety and religious character generally, of which so many illustrations have been given? In what way did the influence of that conception make itself felt upon those who devotedly accepted it and shaped their lives in accordance with it? Here I get to the second main head of the present chapter.

The Torah, which, it will be remembered, includes both the written word and the unwritten interpretation embodied in the Tradition, was regarded as containing the full and final revelation which God had made. It was a body of divine truth, partly explicit, partly implicit, according as its contents had or had not been drawn forth and clothed in words. But it was truth, to be apprehended and learned, to be received in the mind by the understanding before it could be made the guide of conduct or could minister in any way to spiritual wants. The reader will remember that all the terms used in connection with the appropriation of the contents of Torah are variations on the theme of teaching and learning. "Talmud," "Mishnah," "Midrash," all express these ideas, and Torah itself is divine teaching. The significance of this is that the religion of Torah had its deepest root in the intellectual, rather than in the moral or spiritual, region of the mind. The moral and the spiritual were by no means neglected or unprovided for; very far from that. But, if I may so put it, they came in under the intellectual. The moral sense of the Pharisee was strong, and his piety genuine, but the exercise of both was conditioned by the contents of the Torah, duly interpreted. He must be put in possession of certain knowledge, in order to act either morally or devoutly. For him, the "seat of authority in religion," and also in morals, was the Torah; and, while it is quite true that to a large extent he made the Torah the exponent of his own moral and religious conceptions, reading into it or finding there a great deal which does not appear on the surface, it is also true that he regarded it as an external authority to which he must submit. He had no difficulty in doing this, since he believed the Torah to be the full and final revelation of God. It was all good and holy and divine; and there could be no surer guide for him in all that he had to do and all that he could think and believe in respect of his relation to God. The function of conscience was, for the Pharisee, not to pass moral judgments independent of, still less contrary to, the Torah, but to co-operate with it, and to confirm

its authority. Conscience would be, in him, clear upon the distinction between right and wrong; but *what* was right and *what* was wrong would be decided by the authority of Torah, not by the immediate intuition of conscience and reason. And I think that a Pharisee would be quite unable to understand how any action could be right which was not in accordance with Torah.^[21] Certainly it could not be right for him.

So, too, in regard to his relation to God and his worship of Him, the thoughts and feelings of the Pharisee, the sincere and devout utterance of his spiritual being, would flow, naturally and with no sense of compulsion, in the channels provided by the Torah, in such forms of belief and such expressions of aspiration as were in harmony therewith. I lay stress on the phrase "naturally, and with no sense of compulsion"; because it is very difficult for the Christian, whose supreme authority is not the Torah, to realise the position of the Pharisee in this matter, and to understand that he did not feel himself to be under constraint. Of course, wherever there is authority, there is that which on occasion will constrain; and the Christian is, to that extent, no less under constraint than the Pharisee. But it is not an oppressive burden, though it may be a hard duty, to submit to an authority which is owned to be supreme. And the Pharisee, regarding the Torah as the supreme authority, since it was the expression of the will and mind of God, did not feel himself oppressed by the duty of submitting to it. He would entirely agree with what was said, in a very different connection (John viii. 32):—"Ye shall know the truth, and the truth shall make you free." He claimed that he *did* know the truth; it was given him in the Torah, from God Himself; and in making his life and thought and action conform thereto, he found his true freedom. "None is free," says the Talmud, "save he who is employed in the study of Torah" (M. Aboth. vi. 2). Whether the range of freedom is not wider when its limits are prescribed by direct allegiance to a person instead of to a mental conception like that of Torah is another question altogether, and one upon which the Pharisee and the Christian will have each his own opinion. And while it must not be forgotten that the Pharisee also owed allegiance to a person, felt himself to be in immediate relation to God, looked up to Him and prayed to Him, yet he would expect to find the intimations of the divine will in the Torah, and not in his own intuitions. It is not that the Pharisee was without the essentials of a spiritual experience, real faith in God, real communion with Him, real devotion to

His service; for these he certainly had. It was that these were realised by him only when expressed in terms of Torah. Whatever could be so expressed took its place at once as part of his religious or moral consciousness. Whatever could not be so expressed remained outside, or, at best, held no prominent position in his thought.

The principle here laid down will be sufficient, I believe, to explain the chief characteristic differences between the Pharisaic and the Christian type of mind, disregarding, of course, individual variations. It has been pointed out, in a previous chapter (p. 171), that Christianity in all its forms centres upon a person, namely, Christ; and that Judaism in all its forms, and Pharisaism most of all, centres upon an idea, namely Torah, and will recognise no person as the object of its devotion, save only God Himself. This is not a proud resistance to the appeal of a great personality; it is simply a natural and necessary result of making the Torah the central feature of religious thought. There cannot be two centres, two authorities both regarded as supreme. If the Torah be raised to the highest place, as the expression of the divine will and the medium of the divine revelation, then there can be no other to divide the allegiance. And not only so, but the demand, or the appeal, to recognise such a one can only appear as an infringement of the sovereign rights of the Torah. A Pharisee might admit that it was conceivable that God should have chosen some other means than that of Torah as the medium of His revelation. He could not admit that God actually had done so, without surrendering the Torah altogether. And this is the ground on which I said, in the third chapter, that the opposition between Pharisaism and the religion of Jesus was fundamental and irreconcilable. Not, indeed, that the religion of Jesus himself centred on a person, as the religion of Paul and all later Christians did; but that Jesus himself was that person; and his personality could by no means be expressed in terms of Torah.

It is evident that devotion to a Person will produce a type of mind very different from that produced by devotion to an Idea; and the difference will be this, that the seat of moral authority and the source of spiritual inspiration will be transferred from the Torah without to the heart, conscience, and reason within. With the result, of course, of imparting to these a freshness and vigour which they had not, and could not have, before. Certainly, heart, conscience, and reason were by no means inactive

when applied to Torah; but responsibility for what they did rested on Torah and not on themselves. They followed, gladly and willingly, the lead which God had given in the Torah; but they followed a lead. But in devotion to a person, heart, conscience, and reason, so to speak, act from themselves, and the responsibility rests upon them. And the note of the character so formed is not obedience, but consecration of self. And this, I believe, is the reason why there is such a marked difference of tone and spirit between the New Testament and the Rabbinical literature. The former is the result of the quickening power of a newly awakened devotion to a person, while the latter is the result of steadfast and most faithful devotion to an idea. Nor is that all. The devotion to a person leads to a different form of expression, as the experience to be clothed in words is different. The New Testament contains abundance of moral and religious teaching, as the Talmud also does; but the New Testament puts it in the form of direct appeal to the Christian to do and be so and so, that he may be a disciple of Christ, and well pleasing unto God. The Talmud puts it in the form of maxims of conduct, or lessons drawn from Scripture, to be accepted and acted on because they are portions of Torah, divine truth and wisdom offered to man, for his good, but not making any direct appeal to him. And whereas, in the New Testament, the spiritual fervour of the teacher could utter itself in the glowing rapture of Paul, in the Talmud the spiritual fervour of the teacher (sometimes not less than that of Paul) was spent upon the study of Torah: in the one case God was sought and found through the person of a revealer; in the other, he was sought and found through the medium of a body of knowledge. The watchword of the New Testament is Love. The watchword of the Talmud is Wisdom. And each can claim, as its ideal, the highest and fullest and noblest meaning of its own watchword.

I pass to the consideration of another effect produced by the conception of Torah as the controlling factor in Pharisaic religion. Within the lines of Torah there was room for a highly developed spiritual life, a pure morality, a devout piety. Also, for warm sympathy and generous kindness, and in general for the virtues which make human nature lovable.

All these were present, in varying degree, as truly as they are present in Christians. But how about those who stood without the pale of the Torah? What did the Pharisee consider to be his relation to them? In practice, of course, this would depend largely on the individual Pharisee; and no doubt

examples might be found of every degree of exclusiveness, from tolerant regret for those who were deprived of the unspeakable blessing of the divine revelation down to the arrogant contempt which said (John vii. 49), "This people that knoweth not the Torah is accursed." But I shall deal only with the theory, not with the practice, of the application of the Torah to "them that are without." It was said above, that what could not be expressed in terms of Torah either remained outside the religious consciousness of the Pharisee, or, if admitted, held no prominent place there. It goes therefore without saying, that Israel's possession of Torah must influence its attitude towards the rest of mankind. The Pharisees were by no means blind to the fact that among the Gentiles there were "those who feared God and worked righteousness"; but, if the Torah was the final and complete divine revelation, there could not be an equality, still less a real feeling of brotherhood, between those who did and those who did not accept the Torah as the guide of their lives. And this would remain true, even though there were, as there was in the best minds among the Pharisees, a real concern for the Gentile, and a desire that he too might share in the blessing vouchsafed to Israel. The Pharisee by no means rejected the visions of the prophets as, that "the earth shall be full of the knowledge of the Lord, as the waters cover the sea." But how could that be realised unless the Gentiles came in by the way of Torah, and united themselves with Israel? It was concern for the Gentiles, amongst other motives, which prompted the assertion, to be found often in the Midrash, that when God gave the Torah, He offered it to all the nations of the world. They all, except Israel, rejected it; but at least they had their chance. It was no arbitrary decree of God which deprived them of it. His will was to do them good, if they would have it; and presumably they might yet have it, if they would. In such ways the Pharisee looked out across the barrier which separated him from the Gentile, not without the hope and the desire that "all men might be saved," but unable to see how that could be brought about, except by the coming of the Gentile within the lines of the Torah. To obliterate those lines was necessarily, to the Pharisee, unthinkable. It would be to renounce the very blessing for the sake of which they desired that the Gentiles should come in. And, even if there were no Gentiles, the Torah was still the very life and soul of Israel; to part with it would be death; a fact to which Israel has borne witness through the centuries. In the nature of things, the religion of Torah as held by the Pharisees could not free itself from Particularism; and though it could and

did cherish a vision of Universalism, the vision was for the far future, and only floated fitfully before the gaze of the Pharisee. It hardly counted amongst those present realities of his religion of which he was most conscious, and to which he gave his chief thought.

I have tried to indicate what I believe to have been the effects of the conception of Torah as the controlling factor in the religion of the Pharisees, having, so far as I am aware, no other purpose than to get at the real truth about them; in other words, to do them justice. That I have not refrained from pointing out the deficiencies as well as the excellences of their form of religion will show that my object has not been to offer a mere panegyric upon them; they deserve better than that. I shall attempt, in conclusion, to describe the kind of mind and character produced by the influence of the ruling conception of Torah, the Pharisaic ideal aimed at, and more or less realised in practice. Individual Pharisees, of course, would present many and marked variations from the type, just as is the case among Christians; and I take no account of them, except to say that whatever may be true in the matter of the common charges of hypocrisy, pride, self-righteousness, and the like, is due to individual defection from the ideal, and is not an inherent quality in it.

For the basis of such a description of the Pharisaic ideal, I take a remarkable passage now included in the Mishnah, in the treatise called the Pirké Aboth, or Sayings of the Fathers (M. Aboth. vi. 6). The whole chapter, which is later than the rest of the book, is called "The Acquisition of Torah." This is the passage:—"Greater is Torah than Priesthood or Kingship. For Kingship is acquired by thirty stages (*i.e.* there are thirty qualities necessary to the ideal King), and Priesthood is acquired by twenty-four; but Torah is acquired by forty-eight things. And these are they:—Study, the listening ear, ordered speech, the discerning heart, dread, fear, meekness, cheerfulness, purity, attendance on the Wise, discussion with associates, argument with disciples, sedateness; Scripture, Mishnah; having little business, little intercourse [with the world], little luxury, little sleep, little conversation, little merriment, forbearance, a good heart, faith in the Wise, the acceptance of chastisements, [He is one that] acknowledges God, that rejoices in his lot, that makes a fence for his words, that claims not goodness for himself, that is loved, that loves God, that loves mankind, that loves deeds of charity, that loves uprightness, that loves reproofs, that shuns honour [*i.e.* when

offered to himself], that puffs not up his heart with his learning, that is not insolent in his teaching, that bears the yoke along with his companion, that judges him favourably, that establishes him upon truth, that establishes him on peace, that settles his heart in his study, that asks and answers, that hears and adds thereto, that learns in order to teach, and that learns in order to do, that makes his teacher wise, that makes sure what he hears, that repeats a word in the name of him who said it." The remainder of the passage has no bearing on the general subject, being only a note upon the last clause. The author is unknown. The list, which includes fifty-one qualifications instead of the forty-eight announced at the beginning, varies slightly in different editions; but it may be taken as representing substantially the ideal character developed by and under the religion of Torah. It may usefully be compared with the enumeration of Christian virtues in Rom. xii.; and, if that comparison is made, there will be noticed that difference of tone and spirit to which I have already alluded. But it will also appear, from such comparison, that there is no contrast as between black and white, hypocrite and holy. The Pharisaic ideal may seem to be drawn in terms of more level prose than the Christian ideal as set forth by Paul, and, moreover, to be one more capable of being attained, in actual life. There is an element of sober matter-of-fact in Judaism, and especially in Pharisaic Judaism, which may not be sublime, but has great value, nevertheless, in the practical conduct of life, even the religious life. Some of the items included in the Pharisaic list may seem to be of but little importance, such as those having immediate reference to the study of Torah—argument with disciples, attendance on the wise, and the repeating a saying in the name of him who said it. These, and similar items, have to be judged, of course, by the standard of the supreme worth of the Torah. What that meant to the Pharisee, how much more than the mere study of a book, I do not now need to repeat, after all that has been said in previous chapters. But many of the items indicate the great and substantial virtues and graces which belong to the higher human nature alike of the Pharisee and of the Christian. They include love to God, love towards all mankind (let it be noted especially, that love is not restricted to Israel alone), sympathy, kindness, forbearance, purity, meekness, cheerfulness, contentment, patience under trial, and that which a great Rabbi once said excelled all other qualifications for the perfect life—a good heart. A man who should strive after such an ideal of character and conduct would follow no unworthy quest; and, however different be the form in

which he expresses his religious ideas from the form familiar to Christians, there is no fundamental difference between them in the desire to seek God and serve Him with the noblest powers that He has given to the human soul. It is not *quâ* man, but *quâ* Pharisee that the adherent of the religion of Torah is sundered from the Christian. There was in him the same human nature, capable of high development in its relation both to God and to man. And the conception of Torah was for the Pharisee the agent in that development; while for the Christian the controlling factor is personal relation to Christ. I am not concerned to judge between these two. I am concerned only to maintain that the development of human nature through the agency of Torah did in fact take place, and did produce very great and noble results.

Pharisaism in history has had a hard fate. For there has seldom been for Christians the opportunity to know what Pharisaism really meant, and perhaps still more seldom the desire to use that opportunity. It has served as a foil to Christianity, the way for such use being prepared by the New Testament. Its supposed blemishes have been held up to view, in order that the excellences of the Christian religion might shine the more brightly by comparison. If learned men like Lightfoot, Wagenseil, and especially Eisenmenger, explored the Rabbinical literature well-nigh from end to end, it was mainly for the purpose of reviling what they found there. And, in our own day, though there is no longer to be found amongst Talmudic scholars the scurrilous rancour of an Eisenmenger, there is still the inveterate habit of regarding Rabbinical Judaism as a means of exalting Christianity; there is nearly always the criticism of Judaism from the Christian point of view, and judgment given upon premises which it never recognised. There is scarcely any attempt to learn what it really meant to those who held it as their religion, who lived by it, and who died by it, and have done for two thousand years.

Is, then, the Christian religion so weak that it must be advocated by blackening the character of its oldest rival? And if it should appear, as I trust in some degree it has appeared, that the religion of Torah as held by the Pharisees was a real expression of spiritual experience, the inspiration of holy living and holy dying, is the spiritual power of Christianity in any degree made less? Why should the one begrudge to the other whatever is good in it? Especially when the one has grown great and has become the religion of many nations, while the other has remained as the inheritance of

a lonely people? Why should not the Christian be glad to own that the Jew, even the Pharisee, knew more of the deep things of God than he had supposed, and after a way which was not the Christian way, yet loved the Lord his God with heart and soul and strength and mind,—yes, and his neighbour as himself? The time is surely come when Pharisaism should be recognised as a religion entitled to be judged on its own merits and by its own standards; a religion widely different indeed from Christianity in its methods and its forms of expression, but yet a living faith, capable of ministering to the real wants of human souls; a religion *sui generis*, but none the less to be acknowledged as one among the many expressions of divine revelation on the one hand and of human seeking after God on the other? It is in the hope of helping towards such a sympathetic and unprejudiced recognition of the intrinsic worth of Pharisaism that I have written this book. What I have written is scanty indeed, in view of the greatness of the subject; but it may yet have been enough to give some idea of what Pharisaism meant to the Pharisee, and to show that the Saints and Sages of Israel, those more particularly who are included amongst the Scribes and Pharisees, were not what they have commonly been called and usually thought to have been. Saints and Sages they were, who served God faithfully, and found in the Torah His full and perfect word. And to me, though not walking in their way, nor sharing in all their beliefs, yet drawn to them across the ages, they have been the companions and friends of many a year.

FOOTNOTES:

[1] A close parallel to the term Ḥasid, as denoting a type rather than a party, is afforded by the term Saint in the language of the extreme Puritans in the time of Cromwell.

[2] This claim is made in the Talmud, b. B.B. 12^a, where it is said that prophecy was taken from the prophets and given to the Wise, *i.e.* the Rabbis, and that it has not been taken from them.

[3] The meaning of the other term mentioned above, namely, *Haggadah*, will be explained hereafter. See Chapter V.

[4] To this may be added the fact that certain phrases, apparently harmless, were forbidden to be used in the Synagogue, because they were in some way heretical (M. Meg. iv. 9). Christianity is not directly mentioned, but there is good reason to suppose that Christianity is intended.

[5] I only quote these questions as being what must have been asked at a very early stage of the public career of Jesus: I offer no opinion as to the chronology of the incidents in the Gospels in connection with which those questions are introduced.

[6] The action of Jesus in casting out devils was not in itself a ground of controversy with the Pharisees, since they did the same; and moreover neither side questioned the genuineness of the exorcisms of the other. But it appears from Mark iii. 22-30 that the Pharisees alleged that Jesus performed his cures by the help of Beelzebub the prince of the devils; and Jesus denounced them as guilty of the sin against the Holy Spirit, for their malicious slander in ascribing to diabolic agency what was due to power from God. Then follows the famous declaration: "Whosoever shall blaspheme against the Holy Spirit hath never forgiveness, but is guilty of an eternal sin" (Mark iii. 29). This is the foundation for the doctrine of the unpardonable sin, in Christian theology. It rests entirely on a misunderstanding of the phrase, "hath never forgiveness," a misunderstanding already apparent in Matt. xii. 32, where it is said that such a one "shall not be forgiven either in this world or in that which is to come." The phrase in Mark, "hath never forgiveness," is the key to the real meaning of the saying of Jesus. The Christian reader, finding the phrase only in this one passage, naturally supposes that it is very exceptional and carries some tremendous meaning. But,

in fact, it is a Jewish idiom applicable in ordinary circumstances. In the Talmud, j. B. Kama 6^C, is a passage dealing with injuries and affronts from one man to another. A Rabbi suggests a method of reconciliation; upon which another Rabbi comments: "This will do where it is not a case of slander; but if he has put forth a bad name against his fellow-man, *he hath not forgiveness for ever*." There is here no question of a sin which God will not pardon, but of an affront which man will not, or does not, pardon. It is only a way of saying that slander is one of the hardest of all offences to forgive. The Rabbi who said this never dreamed of an unpardonable sin as Christians have imagined it. The unvarying doctrine in Pharisaic theology on the subject of forgiveness is that God always forgives those who repent when they repent (see on forgiveness in Chapter IV.). The term rendered "for ever" is used in the Talmud in connections which preclude all idea of theological meaning. Thus, j. M. Kat. 83^d, of the rent garments of the mourner, "They do not sew the pieces together *for ever*." The declaration of Jesus accordingly is not the intimation that there is a sin which God will never forgive, but the denunciation of malicious slander by a justly indignant man. The phrase, "is guilty of an eternal sin," is only an expansion of "hath never forgiveness." It is worth noting in this connection that the references to Jesus in the Talmud do not include a charge that he was possessed by a devil or made use of the help of the prince of the devils. See my *Christianity in Talmud and Midrash*, where all the Rabbinical passages relating to Jesus are collected and commented on.

[7] "Corban" does not mean "Given to God," at least it does not mean that the thing in respect of which the vow was made was dedicated to sacred use. "Corban" is merely a formula prefacing a vow. A man would say, "Corban! if you shall enter my house!" meaning, "I vow that you shall not enter it."

[8] See the often-quoted passage describing the seven classes of Pharisees, b. Sotah 22^b.

[9] I have been asked how I can reconcile this alleged inability on the part of Jesus to understand the Pharisees with the power he showed elsewhere of reading the character and comprehending the thoughts of those with whom he came into contact. My answer is that I do not admit John ii. 25 as true of the historical Jesus; and that, while I do not deny that he had deep insight into human character and thought, such insight depends on sympathy. That there was finally a complete absence of sympathy between Jesus and the Pharisees is plainly to be seen, and admits of no dispute. And, that being so, I submit even he did not escape the effects of that limitation, in making him unable to comprehend the position of the Pharisees. The inability was on both sides, and for the same reason.

[10] I use in quotations from Paul the word Law instead of Torah, because Paul spoke of Νόμος [Greek: Nómos]. The fact that he did so is characteristic of his whole conception of Judaism. If the Greek language did not provide an equivalent of the word Torah (any more than the English language does), the fact still remains that an equivalent is needed, or the argument becomes for want of it invalid.

[11] The theory, of course, is conditioned by the fact of Christ's coming when he did. It is an attempt to interpret a historical fact in terms of world-history and eternal wisdom.

[12] I have been asked if it were not possible that there might be some section or school of the Pharisees to whom Paul's strictures might apply? Even if there were any evidence of such a school, that would not alter the fact that Paul himself draws no such distinction, but condemns the whole theoretical position of which the Halachah is the expression. A Pharisee who should repudiate the Halachah would be a contradiction in terms. My object is to set forth, as truly as I can, what Pharisaism was, on its own showing; and I am under no obligation to find a means whereby the strictures of Paul might be made to appear more relevant and valid than I have admitted them to be.

[13] The words ascribed to Jesus, John vii. 19, "Did not Moses give you the law, and yet none of you doeth the law?" are clearly dependent on the Pauline conception of the Torah. They are quite out of keeping with the attitude of Jesus as set forth in the Synoptic Gospels. And even Paul himself never went so far as to say, "None of you doeth the law." He only said in effect, "None of you keepeth the whole law." That the Gospel of John represents a stage in the development of anti-Jewish feeling later than that of Paul is further shown by the statement in John xii. 42, "Nevertheless, even of the rulers many believed on him; but because of the Pharisees they did not confess it, lest they should be put out of the synagogue." The policy of detecting secret adherents of Jesus and casting them forth from the synagogue was not adopted till A.D. 80, or thereabouts. See my *Christianity in Talmud and Midrash*, p. 125 fol. If, as recorded in John iii., Nicodemus really came to Jesus, he need not have come secretly. And, if the name Nicodemus be merely adapted from that of Nakdimon, a well-known and prominent citizen of Jerusalem at the time of the siege, of whom the Evangelist might have heard, then he did not come to Jesus at all.

[14] When I say the "doctrine of repentance and restoration," I do not mean to imply that Rabbinical theology was an organised and consistent system of doctrines. Such it never was; and it is the fundamental fallacy of Weber's book that he has so represented it. I shall go into this subject, of the sense in which it is legitimate to speak of the theology of the Rabbis, in the next chapter.

[15] The process of building up the system is seen in the Talmud. The Code, or the chief Code, is the Shulhan Aruch, compiled in the sixteenth century by Joseph Caro.

[16] This is Bacher's explanation, as given in an article in the *J. Q. R.*, 1892, p. 406 fol. His argument seems to me unanswerable.

[17] A Midrash says: "One text issues in many meanings.... The school of R. Ishmael teach (in reference to Jer. xxiii. 29), 'Like a hammer that breaketh the rock'; as this is divided into many sparks, so even one text issues in many meanings. For the way of the Holy One, blessed be He, is not like the way of flesh and blood. For flesh and blood cannot say two things at once. But He who spake and the world was, uttered ten words in one act of speaking, as it is said (Ps. lxii. 11), 'God hath spoken once.' 'And God spake all these words, saying, etc.'" (Exod. xx. 1). Yalkut Shim'oni on Ps. lxii. 11, § 783.

[18] As, *e.g.* when they give the name of Lot's wife, which was Idith (Tanḥ. i. 45^b), or are able to say that the fare which Jonah paid to go in the ship was 4000 gold pieces (b. Nedar. 38^a), or that Noah took with him into the ark suitable food for the different creatures:—hay for the camel, barley for the ass, grape-vines for the elephant, and *glass* for the ostrich (Tanḥ. 15^a).

[19] See my *Christianity in Talmud and Midrash*, pp. 286-8.

[20] It is worth noting in passing that the name by which the Pharisees called themselves and each other was "ḥābēr," "companion"; and their societies were "ḥaburoth," "companies." In Ps. cxix. 63, the Psalmist says, "I am *companion*, 'ḥaber,' to all them that fear thee." Whether the Psalmist used the term because he was a Pharisee, or whether the Pharisees borrowed it from the Psalm, I do not know; but there is evidently a connection between them.

[21] *Cf.* what was said, in Chapter III., of the position taken up by the Pharisees in regard to the question of healing on the Sabbath. See above, p. 149.

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